

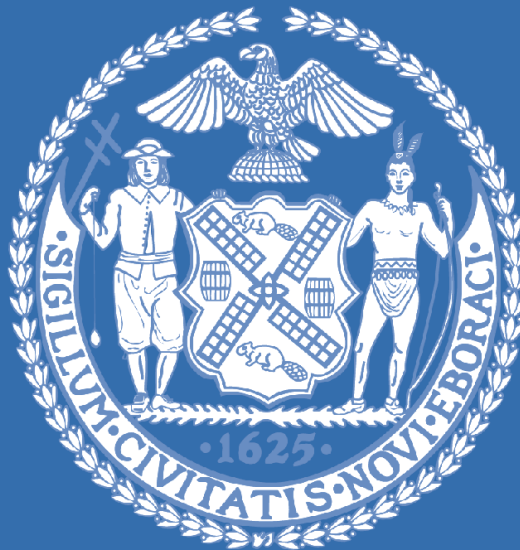


CIVILIAN COMPLAINT REVIEW BOARD

ERIC L. ADAMS, Mayor

DR. MOHAMMAD KHALID Interim Chair

JONATHAN DARCHE, Esq. Executive Director



Annual Report

2024

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MISSION

The New York City Civilian Complaint Review Board (CCRB, the Agency, or the Board) is an independent agency that is empowered to receive, investigate, prosecute, mediate, hear, make findings, and recommend action on civilian complaints against members of the New York City Police Department (NYPD or the Department) that allege the use of excessive or unnecessary Force, Abuse of Authority, including biased-based policing and racial profiling, Discourtesy, and the use of Offensive Language. The CCRB is also authorized to investigate, hear, make findings, and recommend action on the Untruthfulness of an official statement made by a subject officer during the course of a CCRB investigation (FADO&U). The Agency's staff, composed entirely of civilian employees, conduct investigations, mediations, and prosecutions in an impartial manner.

IN FULFILLMENT OF ITS MISSION, THE BOARD PLEDGES TO:

- encourage members of the community to file complaints when they believe they have been victims of police misconduct;
- respect the rights of civilians and officers;
- encourage all parties involved in a complaint to come forward and present evidence;
- expeditiously investigate each allegation thoroughly and impartially;
- make fair and objective determinations on the merits of each case;
- offer civilians and officers the opportunity to mediate their complaints, when appropriate, in order to promote understanding between officers and the communities they serve;
- recommend disciplinary actions that are measured and appropriate, if and when the investigative findings substantiate that misconduct occurred;
- engage in outreach in order to educate the public about the Agency and respond to community concerns;
- report relevant issues and policy matters to the Police Commissioner and the public; and
- advocate for policy changes related to police oversight, transparency, and accountability that will strengthen public trust and improve police-community relations.



Dear Fellow New Yorkers,

I am honored to return to the Civilian Complaint Review Board as the Interim Chair and pleased to present CCRB's 2024 Annual Report.

A lot has changed since I last served on the Board in 2014. I would like to highlight three developments that have profoundly impacted the CCRB and its workload.

Rising Complaint Filings: In 2023, complaints filings shot up more than 50% from the previous year and filings remained high in 2024. In fact, CCRB received more complaints in 2024 (5,663) than in any year since the end of the Stop & Frisk era in 2012.

Body-worn Cameras: NYPD began the widescale rollout of BWC's in 2019, and CCRB's access to this video has transformed the quality of its investigations. Looking at fully investigated cases, in the ten years prior to BWC, CCRB was unable to identify 21% of subject officers and 52% of complaints were closed as "Unable to Determine." In 2024, only 12% of subject officers were unidentified and just 22% of the complaints were closed as "Unable to Determine," both record lows. Access to BWC footage has increased the quality of CCRB investigations, but it has also increased the burden on its investigators. In 2024 CCRB collected more than 7,500 hours of BWC video, enough to keep a single investigator busy for more than four years!

Expanded Jurisdiction: CCRB's jurisdiction has expanded significantly in the last five years. The Right to Know Act, the advent of BWCs, and the City's Charter revision establishing CCRB's bias-based policing unit have all contributed to an increase in the types of misconduct investigated by the Agency. In 2024, misconduct allegations within the recently expanded jurisdiction accounted for 15% of all fully investigated allegations.

Considering these three developments together – rising complaints, the advent of BWC, and the Agency's expanded jurisdiction – the Agency's workload has never been greater.

As a result, in 2024 CCRB was unable to investigate all of the complaints it received. Faced with a shortage of investigators and the need to allocate resources strategically, CCRB suspended certain types of investigations (as outlined in *Executive Summary* below) and closed 1,440 complaints without conducting a full investigation. It is my hope that this is a temporary measure and that CCRB will again be able to investigate every complaint received within its jurisdiction.

I am committed to the mission of the Civilian Complaint Review Board. I believe in holding officers who commit misconduct accountable and improving police community relations. I look forward to leading the CCRB through the challenges it faces in the coming year.

Sincerely,

A handwritten signature in black ink, appearing to read "Mohammad Khalid".

Dr. Mohammad Khalid

Racial Profiling & Bias Based Policing Unit

In 2021, the New York City Council passed legislation clarifying that the CCRB's jurisdiction included investigations of racial profiling and bias-based policing. The CCRB's Racial Profiling and Bias-Based Policing Unit (RPBP) substantiated allegations of bias-based policing against sixty-three (63) officers in 2024 (see Figure 31). In December 2024, the CCRB's Administrative Prosecution Unit (APU) began its first trial resulting from an RPBP investigation. The case involves allegations of race-related Bias-Based Policing against three officers.

Complaints Received

In 2024, the CCRB received 5,663 (see Figure 01) complaints within its jurisdiction. This follows the 5,542 complaints received in 2023. In both 2023 and 2024, the Agency received more complaints than in any year since 2012.

Strategic Resource Allocation Determination (SRAD) Closures

Faced with a shortage of investigators and the need to allocate resources strategically, the CCRB suspended the following types of investigation, effective January 1, 2024:

- Failure to provide officers' business cards pursuant to the Right to Know Act (RTKA) with no other allegations;
- Refusal to provide name or shield number with no other allegations;
- Discourteous words or actions with no other allegations;
- Threats with no action with no other allegations;
- Refusal to process a civilian complaint with no other allegations;
- Property seizures with no other allegations;
- Forcible removal to hospital with no other allegations;
- Untruthful statements with no other allegations;
- Any complaint that has only the above referenced allegations.

In 2024, the CCRB closed 2,872 complaints as "Unable to Investigate" (see Figure 24); 1,440 of these complaints (50%) fell into the above listed categories.

Board Member Vacancies

New York City Charter § 440(b) mandates that the CCRB have a 15-member board. Five seats are appointed by the Mayor, five are appointed by the City Council, three are designated by the Police Commissioner, and one is appointed by the Public Advocate. The Board Chair is jointly appointed by the Mayor and the City Council. At present only 11 of the requisite 15 Board Members are in place. The CCRB relies on its Board Members to make final determinations on the outcome of investigations. In 2024, Board vacancies contributed to the increase in case closing times for substantiated complaints (see Figure 19).

Youth Advisory Council

The CCRB's 2024 Youth Advisory Council (YAC) consisted of 25 New Yorkers, aged 10 to 18, who met monthly to discuss how to improve police relations with young people. This year, the YAC created radio campaigns for both iHeartRadio and the Spanish Broadcast Systems of NY. The radio ads informed New Yorkers about the CCRB and how to file a complaint about police misconduct. On November 14th, the YAC hosted the 2024 Speak Up Speak Out Youth Summit, which was attended by more than 70 young people.

INTRODUCTION: THE BOARD AND AGENCY OPERATIONS

The Civilian Complaint Review Board (CCRB, the Agency, or the Board) is an agency of the City of New York. It became independent from the New York City Police Department (NYPD or the Department) and was established in its current all-civilian form in 1993.

Board Members review and make findings on misconduct complaints once they have been fully investigated. The Board consists of fifteen (15) Members: the City Council appoints five Board Members (one from each borough); the Police Commissioner designates three; the Public Advocate appoints one; and the Mayor appoints five. The Chair of the Board is jointly appointed by the Mayor and the Speaker of the City Council.¹

Under the New York City Charter, the Board must reflect the diversity of the City's residents and all Members must live in New York City.² No Member of the Board may have a law enforcement background, except those designated by the Police Commissioner, who must have prior experience as law enforcement professionals. No Board Member may be a public employee or serve in public office. Board Members serve three-year terms, which can be renewed. They receive compensation on a per-session basis, although some Board Members choose to serve pro bono.

From 1993 to 2013, all cases in which the Board substantiated an allegation of misconduct against an officer were referred to the Police Commissioner with a disciplinary recommendation. Pursuant to a Memorandum of Understanding between the CCRB and the NYPD³ (effective April 11, 2013), a team of CCRB attorneys from the Agency's Administrative Prosecution Unit (APU) handles most of the cases in which the Board recommends that Charges and Specifications (the most severe form of discipline) be brought against an officer. When the Board recommends discipline other than Charges and Specifications (Command Discipline B, Command Discipline A, or Formalized Training), the case is still referred directly to the Police Commissioner.

¹ New York City Charter § 440(b)1.

² *Id.*

³ https://www1.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/apu_mou.pdf

SECTION 1: COMPLAINT ACTIVITY

CCRB COMPLAINTS RECEIVED

For most New Yorkers, contact with the CCRB begins with filing a complaint alleging police misconduct. This section covers the number of complaints received by the Agency and their characteristics.

All complaints received are entered into the CCRB's Complaint Tracking System, but only those complaints that fall within the Agency's Force, Abuse of Authority, Discourtesy, Offensive Language, and Untruthful Statements⁴ (FADO&U) jurisdiction are investigated.

Figure 01: Complaints Received within CCRB Jurisdiction

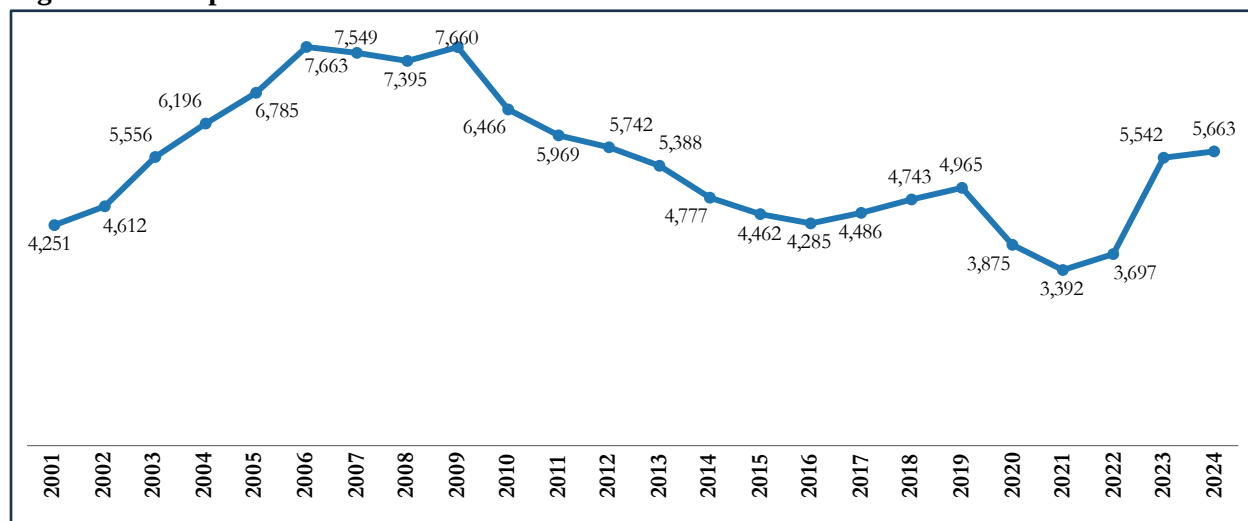
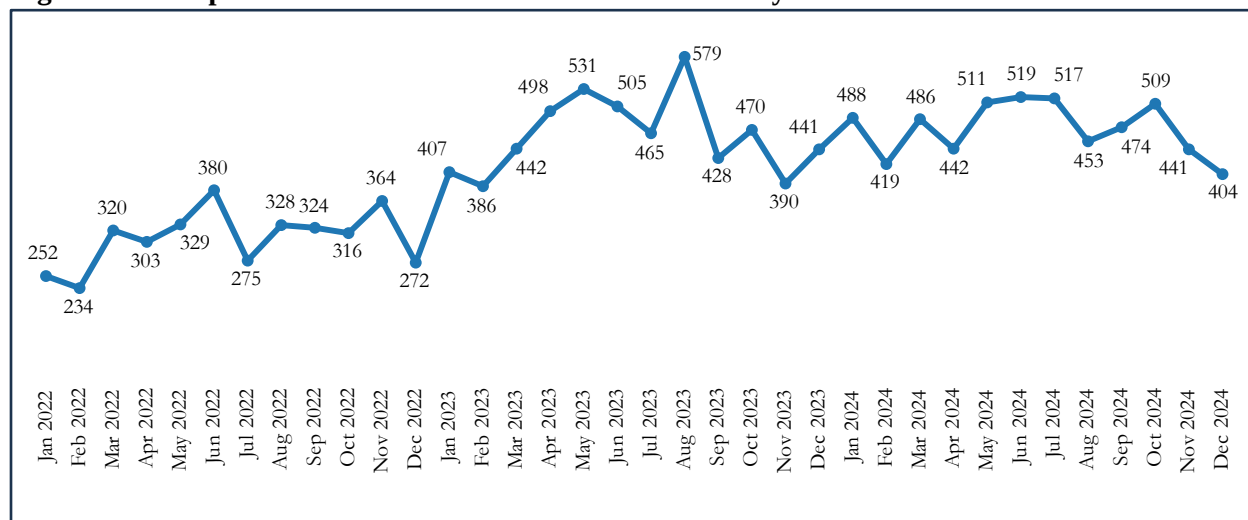


Figure 02: Complaints Received within CCRB Jurisdiction by Month



⁴ Pursuant to a ballot measure revising the New York City Charter, which went into effect on March 31, 2020, the CCRB has jurisdiction to investigate the truthfulness of official statements made by subject officers during the course of CCRB investigations.

TOTAL COMPLAINT FILINGS AND REFERRALS

The CCRB receives a number of complaints that fall outside of the Agency's jurisdiction. These complaints are referred to the governmental entities with the jurisdiction to process them.

Examples of complaints that do not fall within the CCRB's jurisdiction include: (1) complaints against Traffic Enforcement Agents and School Safety Agents; (2) complaints against an NYPD officer involving a summons or arrest dispute that does not include a FADO allegation; (3) complaints against an NYPD officer involving corruption; and (4) complaints against individuals who are not members of the NYPD, such as law enforcement from other municipalities, state police, or members of federal law enforcement, like the Federal Bureau of Investigation (FBI).

Figure 03: Total Filings and Complaints Received⁵



⁵ In previous years, the CCRB distinguished between NYPD referrals made to the Office of the Chief of Department (OCD) and those made to the Internal Affairs Bureau (IAB). The Agency no longer makes this distinction because, in practice, IAB serves as the point of contact for all CCRB complainants following up on a complaint referred to the NYPD.

PLACE AND MODE OF FILING

The CCRB's Intake Unit receives and processes complaints filed directly with the CCRB. The Agency also receives referrals from IAB and other government offices.

The Agency is more likely to succeed in fully investigating complaints filed directly with the CCRB (see Fig. 25). When complaints are not filed directly with the CCRB, the Agency may have difficulty locating and making initial contact with an unidentified complainant/victim or a complainant/victim who has not been informed that the complaint was referred to the CCRB for investigation.

Figure 04: Complaints Received by Complaint Place

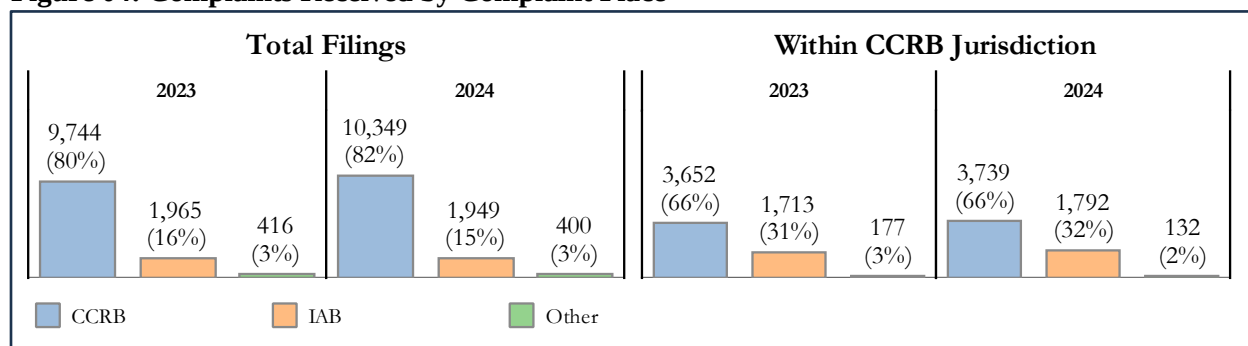


Figure 05: Complaints within Jurisdiction Filed at CCRB by Mode of Filing

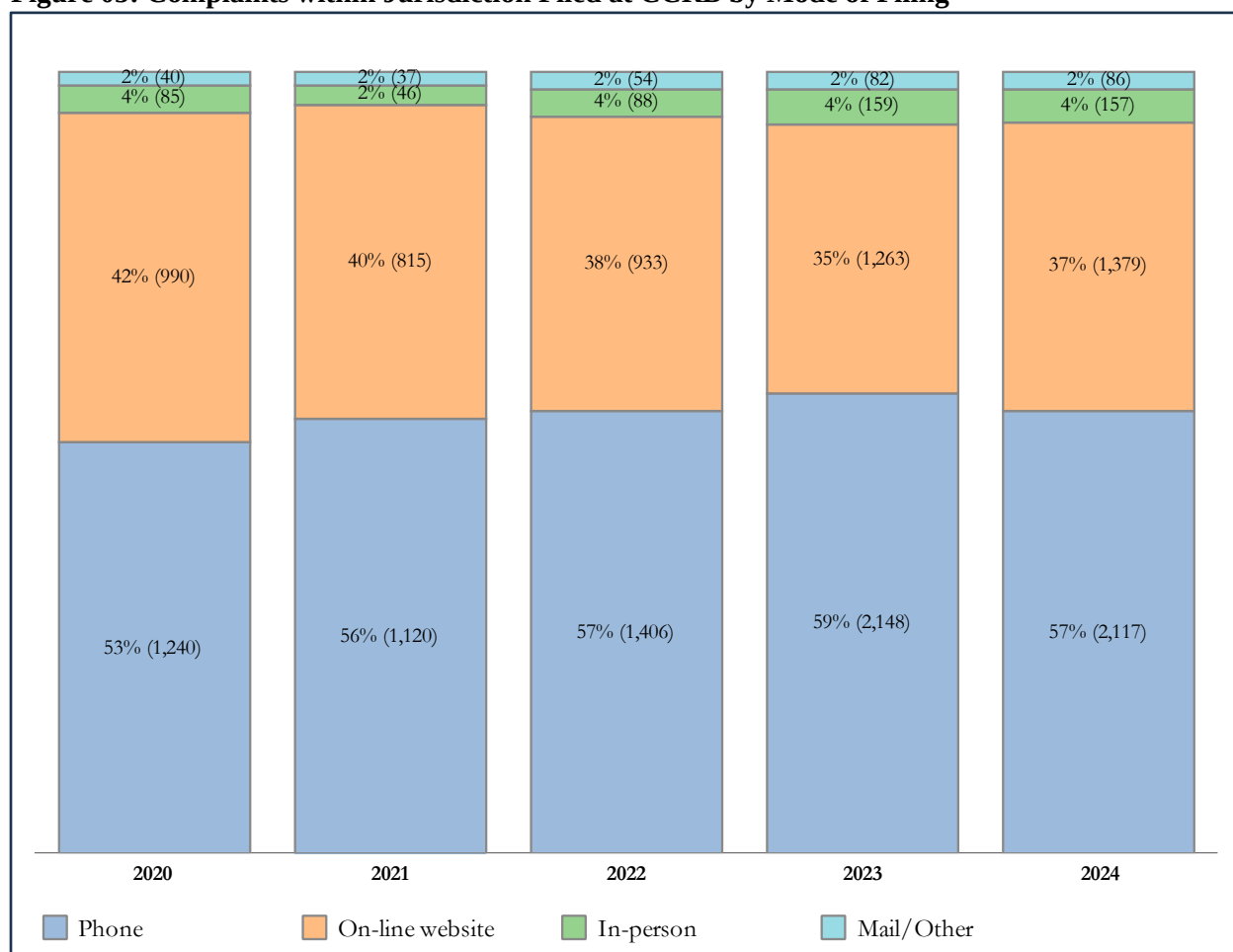


Figure 06: Complaints Received within CCRB Jurisdiction by Borough

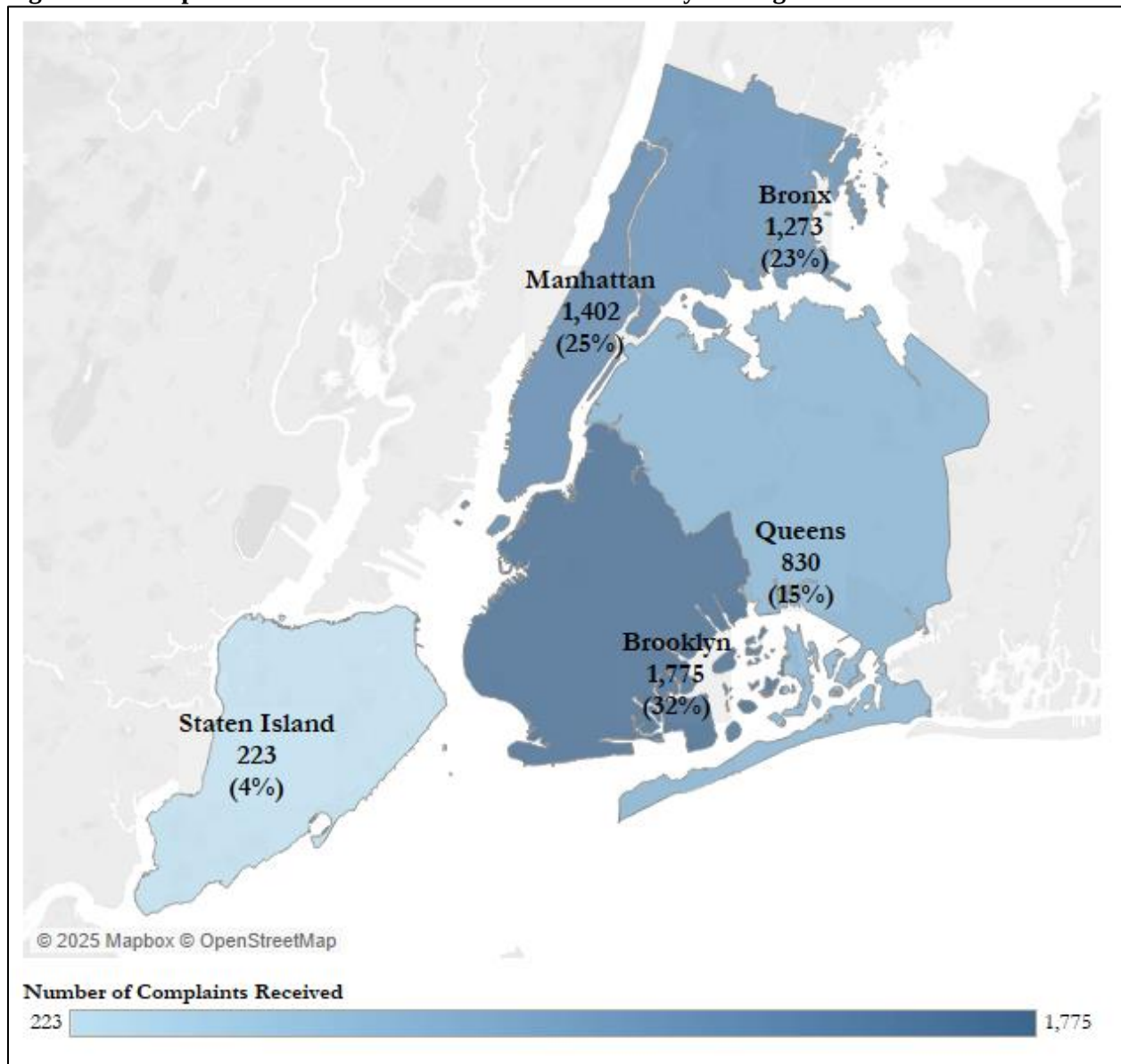


Figure 07: Complaints Received within CCRB Jurisdiction by Precinct

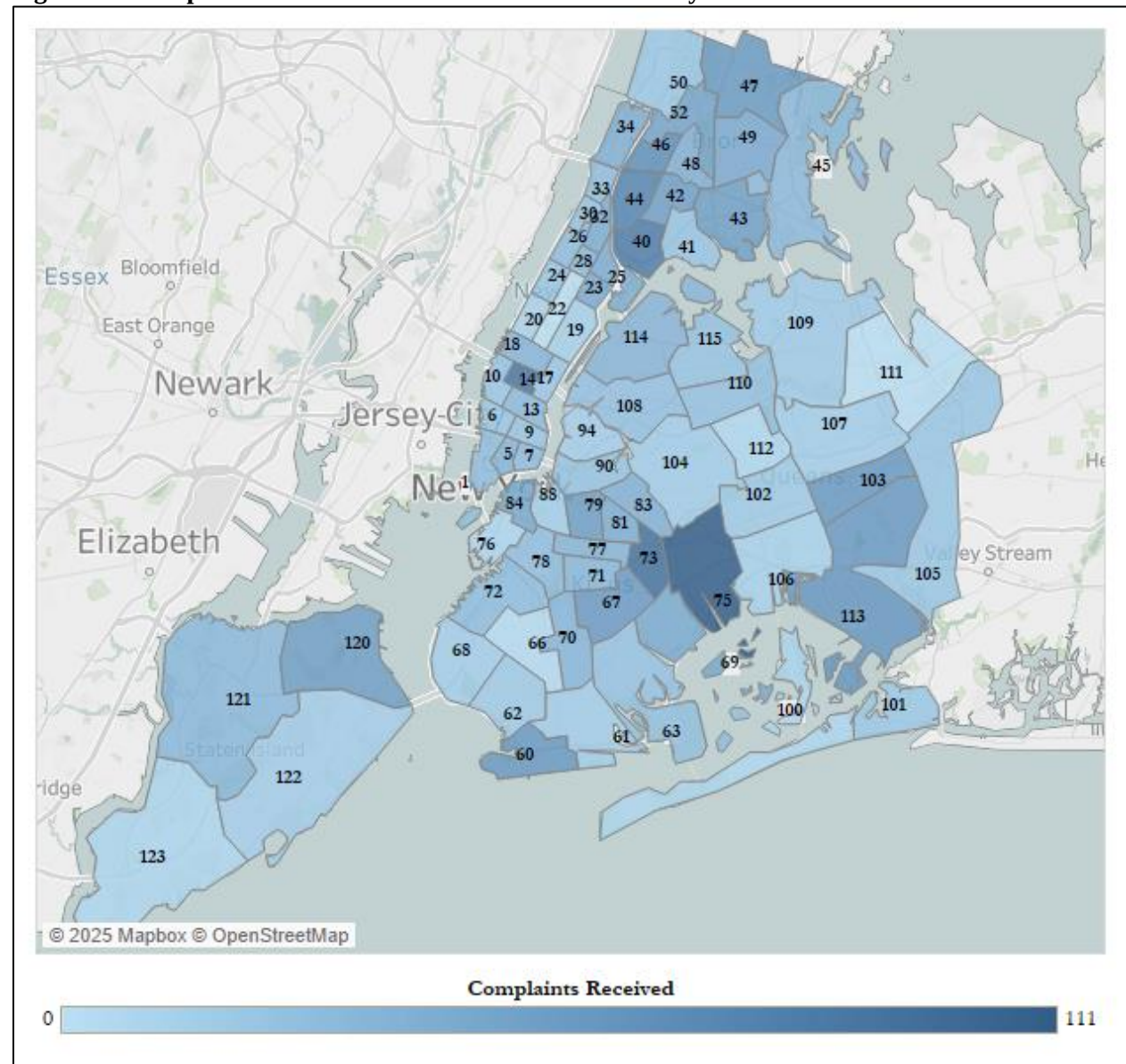


Figure 08: CCRB Complaints Received per Precinct of Occurrence

Precinct	2023	2024
	Complaint Count	Complaint Count
1	58	63
5	44	68
6	41	45
7	52	51
9	49	46
10	47	39
13	71	78
14	148	167
17	49	38
18	78	83
19	41	46
20	27	28
22	2	1
23	78	84
24	52	46
25	78	66
26	39	50
28	91	78
30	40	45
32	105	93
33	76	60
34	71	80
40	172	176
41	66	59
42	105	105
43	96	115
44	164	156
45	54	60
46	112	135
47	109	125
48	114	94
49	65	86
50	37	43
52	112	94
60	102	130
61	43	44
62	35	38
63	53	57
66	21	15

Precinct	2023	2024
	Complaint Count	Complaint Count
67	120	127
68	29	29
69	71	79
70	91	64
71	57	74
72	56	57
73	172	192
75	204	205
76	32	27
77	56	75
78	30	53
79	120	120
81	62	80
83	66	91
84	76	73
88	52	31
90	68	51
94	23	24
100	19	31
101	47	58
102	58	50
103	122	121
104	43	37
105	88	56
106	35	36
107	49	33
108	39	42
109	48	38
110	53	50
111	13	10
112	37	23
113	90	107
114	105	65
115	35	51
116		4
120	87	102
121	48	66
122	46	35
123	26	18

CHARACTERISTICS OF ENCOUNTERS RESULTING IN A COMPLAINT

Figure 09: Top Reasons for Initial Contact

	2023		2024	
	Count	% Total	Count	% Total
PD suspected C/V of violation/crime - auto	321	6%	362	6%
PD suspected C/V of violation/crime - street	613	11%	713	13%
Report of other crime	372	7%	354	6%
C/V requested investigation of crime	330	6%	305	5%
Report-dispute	236	4%	261	5%
PD suspected C/V of violation/crime - subway	283	5%	340	6%
Other violation of VTL	260	5%	281	5%
Moving violation	279	5%	237	4%
Report-domestic dispute	207	4%	215	4%
CV already in custody	191	3%	179	3%
C/V intervened on behalf of/observed encounter w/3rd party	187	3%	212	4%
EDP aided case	149	3%	130	2%
C/V telephoned PCT	168	3%	121	2%
PD suspected C/V of violation/crime - bldg	136	2%	145	3%
Other specified categories combined	1,161	21%	1,137	20%
Not Specified	649	12%	671	12%
Total	5,542	100%	5,663	100%

Figure 10: Outcome of Encounters Resulting in CCRB Complaints

	2023		2024	
	Count	% Total	Count	% Total
No arrest made or summons issued	2,998	54%	2,948	52%
Arrest - other violation/crime	1,367	25%	1,504	27%
Summons - other violation/crime	308	6%	360	6%
Arrest - resisting arrest	155	3%	196	3%
Moving violation summons issued	165	3%	107	2%
Other VTL violation summons issued	146	3%	123	2%
Arrest - assault (against a PO)	88	2%	79	1%
Summons - disorderly conduct	81	1%	82	1%
Arrest - OGA	66	1%	88	2%
Parking summons issued	49	1%	44	1%
Arrest - disorderly conduct	19	0%	22	0%
Juvenile Report	10	0%	16	0%
Arrest - harassment (against a PO)	0	0%	3	0%
Summons - OGA	1	0%	3	0%
Summons - harassment (against a PO)	0	0%	0	0%
N/A	89	2%	88	2%
Total	5,542	100%	5,663	100%

NUMBERS AND TYPES OF ALLEGATIONS CLOSED AND RECEIVED

An individual complaint may contain multiple allegations against one or more members of service (MOS). While each complaint is associated with a distinct report date, the allegations associated with a complaint are not static and can change over time. CCRB investigators may add or remove allegations associated with a complaint as an investigation proceeds.

Figure 11: Types of Allegations Closed

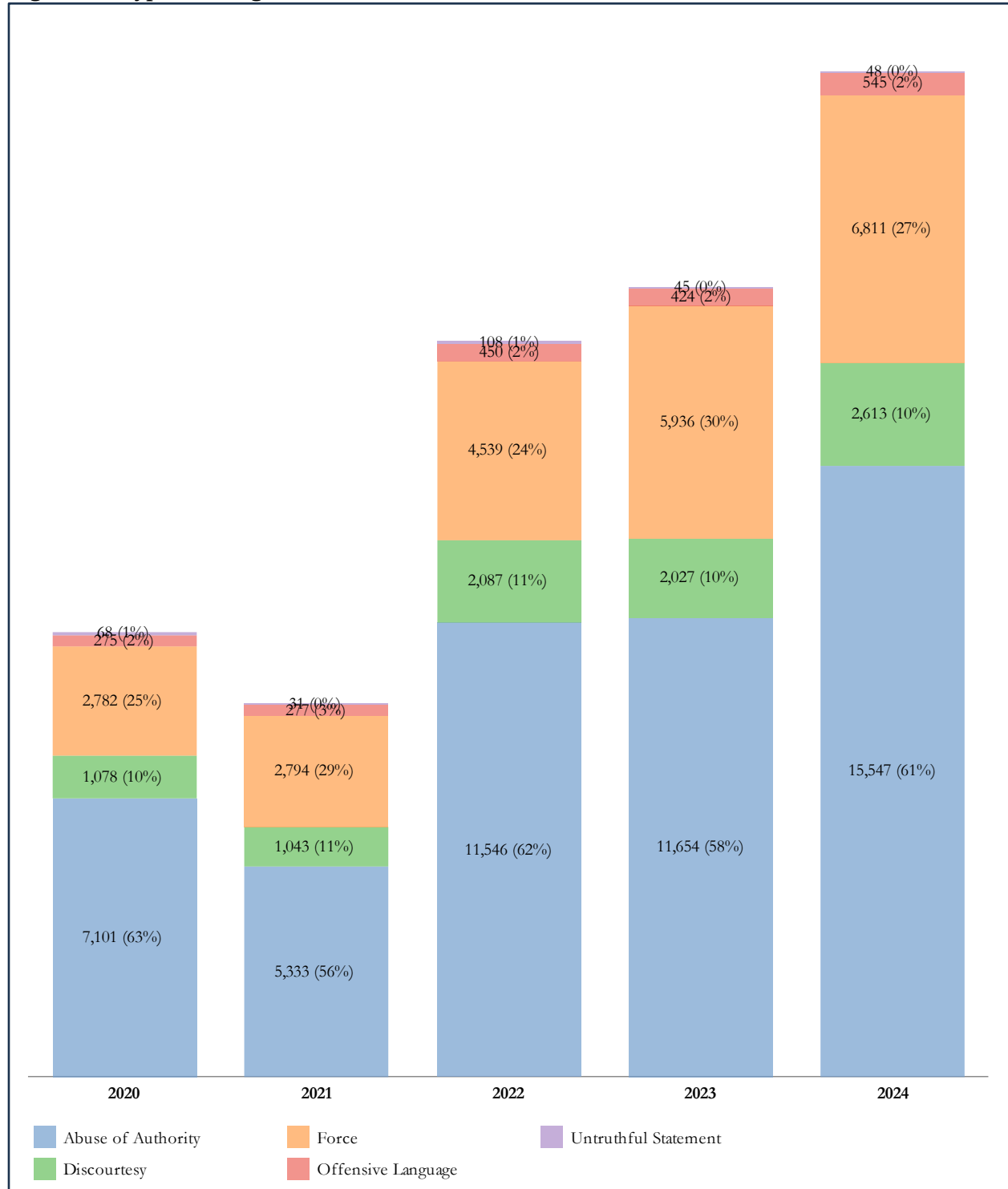


Figure 12: FADO&U Allegations in Complaints Received by Type

Force (F) Allegations	2023		2024	
	Count	% of Total	Count	% of Total
Physical force	4,986	75%	5,293	75%
Hit against inanimate object	299	4%	475	7%
Restricted Breathing	240	4%	213	3%
Chokehold	233	3%	217	3%
Gun Pointed	311	5%	193	3%
Nonlethal restraining device	206	3%	243	3%
Other	93	1%	119	2%
Handcuffs too tight	76	1%	92	1%
Vehicle	90	1%	92	1%
Pepper spray	41	1%	46	1%
Nightstick as club (incl asp & baton)	33	0%	40	1%
Gun fired	27	0%	25	0%
Other blunt instrument as a club	14	0%	17	0%
Gun as club	6	0%	5	0%
Less Than Lethal Force/Device	1	0%	3	0%
Radio as club	2	0%	2	0%
Animal	1	0%	1	0%
Flashlight as club	1	0%	2	0%
Police shield	2	0%	2	0%

Discourtesy (D) Allegations	2023		2024	
	Count	% of Total	Count	% of Total
Word	1,932	78%	1,553	75%
Action	472	19%	462	22%
Gesture	30	1%	36	2%
Other	24	1%	22	1%
Demeanor/ tone	8	0%	0	0%

Offensive Language (O) Allegations	2023		2024	
	Count	% of Total	Count	% of Total
Gender	181	34%	140	32%
Race	103	19%	117	27%
Disability	80	15%	63	14%
Other	74	14%	50	11%
Sexual orientation	50	9%	40	9%
Ethnicity	27	5%	24	5%
Religion	18	3%	6	1%
Gender Identity	0	0%	0	0%

Untruthful Statement (U) Allegations	2023		2024	
	Count	% of Total	Count	% of Total
False official statement	44	72%	11	58%
Misleading official statement	16	26%	6	32%
Inaccurate official statement	1	2%	2	11%
Impeding an investigation	0	0%	0	0%

Abuse of Authority (A) Allegations	2023		2024	
	Count	% of Total	Count	% of Total
Failure to provide RTKA card	1,300	8%	1,022	7%
Stop	1,060	7%	1,161	8%
Improper use of body-worn camera	1,216	8%	918	6%
Threat of arrest	1,087	7%	965	7%
Entry of Premises	918	6%	837	6%
Refusal to provide shield number	916	6%	787	5%
Refusal to provide name	869	5%	671	5%
Vehicle stop	591	4%	721	5%
Forcible Removal to Hospital	671	4%	552	4%
Threat of force (verbal or physical)	636	4%	580	4%
Search (of person)	616	4%	599	4%
Frisk	661	4%	510	4%
Vehicle search	567	4%	542	4%
Bias-Based Policing (Race)	540	3%	461	3%
Property damaged	462	3%	470	3%
Seizure of property	358	2%	438	3%
Question	360	2%	391	3%
Search of Premises	358	2%	321	2%
Refusal to obtain medical treatment	300	2%	344	2%
Refusal to process civilian complaint	335	2%	213	1%
Interference with recording	232	1%	197	1%
Threat to damage/seize property	174	1%	123	1%
Other	167	1%	124	1%
Failure to Explain	107	1%	128	1%
Gun Drawn	126	1%	101	1%
Threat of summons	107	1%	120	1%
Threat re: removal to hospital	130	1%	97	1%
Strip-searched	67	0%	112	1%
Unlawful Summons	93	1%	65	0%
Failed to Obtain Language Interpretation	72	0%	85	1%
Sexual Miscon (Inappropriate Touching)	87	1%	53	0%
Sex Miscon (Humiliation: fail to cover)	67	0%	65	0%
Unlawful Arrest	68	0%	48	0%
Sex Miscon (Sexual Harassment, Verbal)	62	0%	44	0%
Sexual Miscon (Forcible Touching)	51	0%	55	0%
Photography/Videography	43	0%	62	0%
Bias-Based Policing (National Origin)	47	0%	57	0%
Detention	10	0%	87	1%
Obstructed Shield Number	52	0%	44	0%
Search of recording device	51	0%	30	0%
Bias-Based Policing (Disability)	18	0%	38	0%
Refusal to show search warrant	35	0%	20	0%
Sex Miscon (Sexual/Romantic Proposition)	30	0%	25	0%
Bias-Based Policing (Gender)	44	0%	9	0%
Retaliatory summons	33	0%	18	0%
Threat to notify ACS	27	0%	22	0%
Body Cavity Searches	18	0%	22	0%
False official statement	22	0%	17	0%
Sexual Miscon (Rape)	16	0%	20	0%
Electronic device information deletion	18	0%	17	0%
Bias-Based Policing (Age)	24	0%	8	0%
Sex Miscon (Sexual Harassment, Gesture)	18	0%	13	0%
Sexual Miscon (Sexual Assault)	13	0%	15	0%
Bias-Based Policing (Housing Status)	18	0%	8	0%
Bias-Based Policing (Color)	13	0%	12	0%
Bias-Based Policing (Religion)	15	0%	10	0%
Bias-Based Policing (Sexual Orientation)	13	0%	12	0%
Refusal to show arrest warrant	17	0%	6	0%
Sexual Misconduct (Sexual Humiliation)	10	0%	7	0%
Sexual Miscon (Penetrative Sex, Contact)	8	0%	4	0%
Questioned immigration status	7	0%	3	0%
Retaliatory arrest	4	0%	5	0%
Sex Miscon (Sexually Motivated Frisk)	6	0%	2	0%
Bias-Based Policing (Immigration Status)	3	0%	4	0%
Improper dissemination of medical info	3	0%	3	0%
Misleading official statement	4	0%	1	0%
Inaccurate official statement	4	0%	0	0%
Enforcement Action	2	0%	0	0%
Obstructed Rank Designation	1	0%	0	0%
Sex Miscon (Sexually Motivated Question)	1	0%	0	0%
Sex Miscon (Sexually Motivated Search)	1	0%	0	0%
Sex Miscon (Sexually Motivated Stop)	0	0%	1	0%
Threat re: immigration status	1	0%	0	0%
Sex Miscon (Sexually Motiv Photo/Video)	0	0%	0	0%
Sex Miscon (Sexually Motiv Strip-Search)	0	0%	0	0%
Sexual Miscon (On-duty Sexual Activity)	0	0%	0	0%
Untruthful Statement	0	0%	0	0%

CASE ABSTRACTS: FADO&U EXAMPLES

CCRB allegations fall into five categories, generally simplified to the acronym FADO&U: **F**orce, **A**buse of Authority, **D**iscourtesy, **O**ffensive Language, and **U**ntruthful Statements.

1. **Force** – when an officer uses excessive or inappropriate force against a victim. The use of force requires an analysis of the circumstances in which an officer used force in order to determine if it was appropriate and in line with the Patrol Guide. Some acts of force, such as chokeholds, are always considered dangerous and inappropriate. Examples of force are any form of physical force, including physical strikes, body tackles, punches, kicks, and the use of equipment such as chemical sprays, Tasers, shields, or batons.
2. **Abuse of Authority** – covers a broad category of acts where officers misuse their police powers. These can include racial profiling and biased-based policing, sexual misconduct, threats of improper actions, improper searches and seizures, refusal to process complaints, failure to abide by the Right to Know Act, and improper arrests.
3. **Discourtesy** – inappropriate behavioral or verbal conduct by an officer, including general profanity and the use of rude or obscene gestures.
4. **Offensive language** – an officer using slurs, making derogatory remarks or gestures relating to a protected category such as race, ethnicity, gender, religion, sexual orientation, or disability.
5. **Untruthful statements** – statements made by officers during the course of a CCRB investigation that are shown to be untruthful. A false official statement is knowingly false, rather than merely inaccurate. A misleading statement is when an officer intentionally tries to misdirect an investigator by omitting facts that they reasonably would be expected to know or remember. An inaccurate official statement is untruthful, even if the officer did not intend to deceive, where the officer makes material statements so incorrect that it constitutes gross negligence.

The following case abstracts are taken from complaints closed in 2024 and serve as examples of the types of misconduct allegations that fall under the CCRB's jurisdiction:

1. Force

An individual evaded paying a subway fare by jumping over a turnstile. She was approached by an officer who asked for her ID. The individual stated that she could provide her identifying details verbally because she did not have her ID with her. The officer walked away and the individual walked towards the exit gate. The individual was approached once again by the officer and Sergeant Ramon Cepeda. Sgt. Cepeda spoke with the individual and told her that she was trespassing. He told the individual to leave and she refused. A physical altercation ensued and the individual resisted being handcuffed; Sgt. Cepeda tased her on the left side of her stomach. The incident was captured on body-worn camera (BWC). The footage showed Sgt. Cepeda telling the individual to leave and her refusing to do so as she held onto the exit gate. It also showed Sgt. Cepeda telling the individual that he would tase her as other officers struggled to handcuff her, and captured when Sgt. Cepeda tased the individual. Sgt. Cepeda admitted to deploying his taser twice, the second one with prongs deployed into the individual's body. The investigation found that the second taser deployment occurred when the individual was being handcuffed and was only passively resisting, a circumstance under which a taser cannot be used. The Board substantiated the Use of Force allegation.

2. Abuse of Authority

An individual was at home watching the live surveillance video feed of his front yard when he saw Detective Mahmudul Bhuiyan and two other officers walk past his house with flashlights. Det. Bhuiyan went to the individual's property, reached his arm through the fence, and opened a

trashcan that was in the yard. The individual exited his home and asked Det. Bhuiyan what he was doing. Det. Bhuiyan stated that he was looking for a discarded gun and the individual told him that there was no gun in the trashcan and that he needed a warrant to search his property. The incident was captured on the home surveillance camera as well as Det. Bhuiyan's BWC. Both recordings showed that the individual's home was enclosed by a large metal fence made of bars and that Det. Bhuiyan reached his arm through the spaces in between the bars to open the lid of the trashcan in the yard. The investigation found that the trashcan was not publicly accessible because the yard was enclosed by a locked gate, and that Det. Bhuiyan had been searching for a discarded weapon stemming from an arrest that made no mention of weapons being used. The investigation determined that Det. Bhuiyan did not have probable cause to search the individual's property without a warrant. The Board substantiated the Abuse of Authority allegations.

3. Discourtesy

A train conductor onboard a subway train that pulled into a train station observed Police Officer Lamont Hamilton and his partner on the subway platform. Both officers were in uniform and were approximately 15 – 20 feet away from the conductor. Per MTA policy, conductors must play a pre-recorded message that notifies subway passengers that NYPD officers are present at the station. As soon as the message began playing, PO Hamilton extended his middle finger while looking directly at the conductor. PO Hamilton held his finger up for approximately ten seconds, put his finger down, then immediately put it back up. The conductor told PO Hamilton that the gesture was not professional, and he waved to them in response. There was no video evidence of the incident. PO Hamilton stated that when the train doors opened, a lot of people began exiting the train and he saw an off-duty officer who was his friend. PO Hamilton explained that they both laughed and after a brief exchange of words, the off-duty officer stuck his middle finger up and PO Hamilton responded in kind because it was a joke between the two of them. According to PO Hamilton, he was not aware of the conductor's presence and did not mean to offend him. The investigation found that PO Hamilton's gesture violated the NYPD Patrol Guide because it was discourteous, done in a public place while he was in uniform, and did not serve any law enforcement purpose. The Board substantiated the Discourtesy allegation.

4. Offensive Language

An individual got into a vehicle collision with a police vehicle driven by Police Officer Amela Dzihic. PO Dzihic exited her vehicle, approached the passenger side of the individual's vehicle, and said "you bitch" to the individual. The incident was captured on PO Dzihic's BWC. The BWC footage showed the individual stating to someone on the phone that she was just hit by a police officer. PO Dzihic and the individual argued about who caused the collision and PO Dzihic stated "bitch, you were coming on the left-hand side." The individual asked why PO Dzihic called her a bitch and PO Dzihic stated that she would not continue conversing with the individual and walked away. PO Dzihic approached another officer and stated, "I just wanted her information and she's being a bitch." PO Dzihic admitted that she was frustrated at the situation when she used the word "bitch" in reference to the individual. The investigation found that PO Dzihic's use of the word "bitch" served no lawful purpose and violated the NYPD Patrol Guide's prohibition against members of service "using discourteous or disrespectful remarks regarding another person's ...gender." The Board substantiated the Discourtesy and Offensive Language allegations.

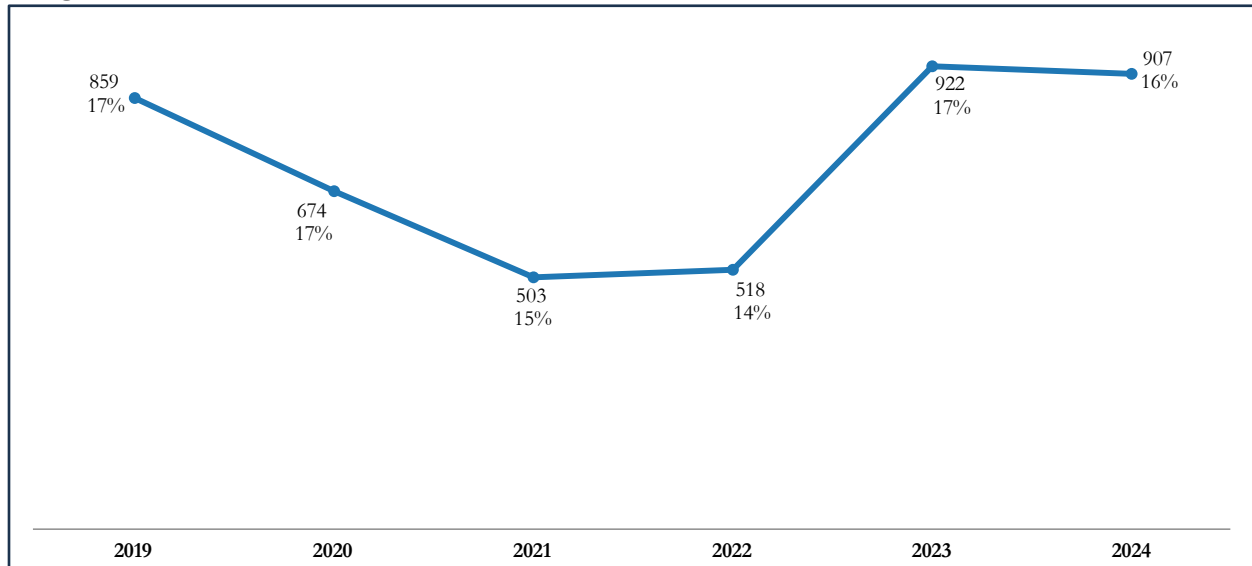
5. Untruthful Statement

An individual double parked her vehicle parallel to a marked NYPD vehicle and then entered a nearby restaurant to order food. While inside the restaurant, she saw Police Officer Michael Boom standing by the door of the restaurant. The individual picked up her food, returned to her vehicle, and started driving home. She noticed that a police vehicle was following her and decided to pull over. As the police vehicle drove past her, she noticed that one of the officers inside the vehicle was PO Boom. Less than 10 minutes later, the individual received a series of text messages from an unknown number. The sender identified themselves by texting, “it’s the cop that saw u at the chicken spot,” and also sent text messages stating, “you’re pretty as hell,” and “I feel like I had to talk to you,” and asking if she was “single or married.” The individual texted back asking the sender how they got her number, and the sender replied, “I got your number from your plate lol.” The individual responded, “that’s scary,” and did not respond to subsequent messages in which PO Boom offered her a PBA card. The investigation found that PO Boom ran two searches on the Domestic Awareness System for the individual and after obtaining her phone number, sent the text messages. PO Boom admitted to sending some of the text messages but stated that the individual altered some of the messages and that he did not offer her a PBA card. PO Boom also denied following the individual after she left the restaurant. The investigation found that the police vehicle log listed PO Boom as the driver and surveillance video showed his vehicle following behind the individual’s vehicle. PO Boom maintained that he did not follow the individual despite the presented evidence. The Board substantiated the Abuse of Authority and Untruthful Statement allegations.

STOP, QUESTION, FRISK AND SEARCH OF PERSON ALLEGATIONS

In light of the longstanding public discussion surrounding “Stop & Frisk” policing, the CCRB keeps track of all complaints containing a stop, question, frisk, or search of person allegation.

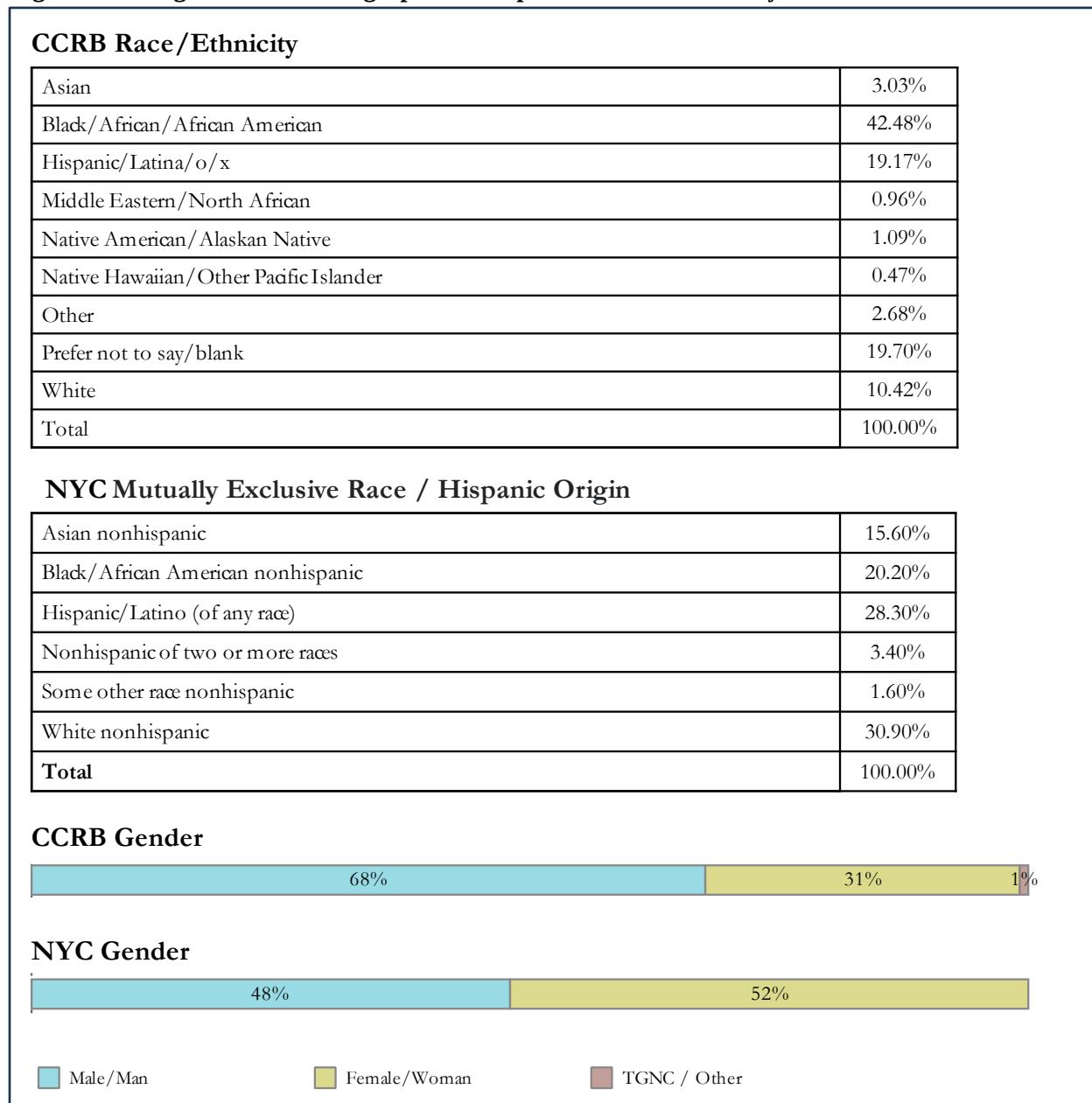
Figure 13: Complaints Received Containing a Stop, Question, Frisk, and Search of Person Allegation



CHARACTERISTICS OF ALLEGED VICTIMS

In September 2022, the CCRB updated the way it collects race/ethnicity information from civilians. Previously, civilians could only identify as one race/ethnicity category. The CCRB now asks civilians to select all racial/ethnic categories that apply. The race/ethnicity percentages for alleged victims shown below use the total number of race/ethnicity selections made as the denominator, rather than the total number of alleged victims.

Figure 14: Alleged Victim Demographics Compared to New York City^{6 7}



⁶ NYC Mutually Exclusive Race / Hispanic Origin: <https://popfactfinder.planning.nyc.gov/explorer/cities/NYC>; NYC Gender: <https://www.census.gov/quickfacts/newyorkcitynewyork>.

⁷ “TGNC” is an acronym that stands for Gender Nonconforming. “Trans” includes individuals who identify as Transmen and Transwomen in CCRB records.

CHARACTERISTICS OF SUBJECT OFFICERS

Figure 15: Subject Officer Demographics Compared to NYPD Officer Population

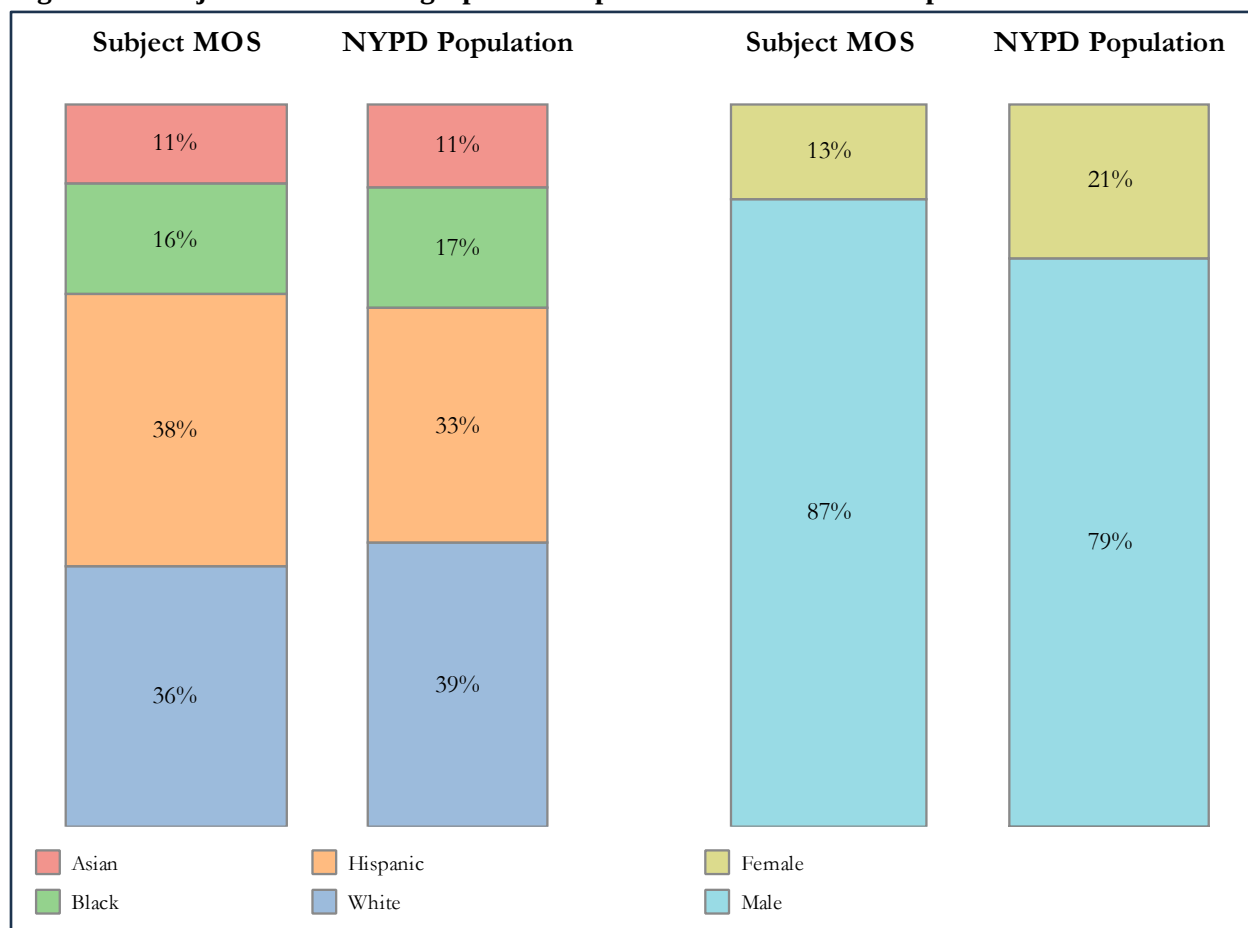


Figure 16: Rank and Tenure of Active MOS with Substantiated CCRB Complaints in 2024

Rank	2024	
	Count	Percent
Police Officer	1,285	74%
Detective	116	7%
Sergeant	230	13%
Lieutenant	83	5%
Captain	9	1%
Inspector/Deputy Inspector	5	0%

Tenure	2024	
	Count	Percent
0-3 Years	336	19%
4-5 Years	498	29%
6-10 Years	426	25%
11-15 Years	247	14%
16-20 Years	195	11%
21+ Years	26	2%

TOTAL COMPLAINTS AGAINST ACTIVE MEMBERS OF SERVICE (MOS)

The charts below depict how complaints are distributed among active members of service. Figure 17 counts both open and closed complaints.

Figure 17: Active MOS with CCRB Complaints

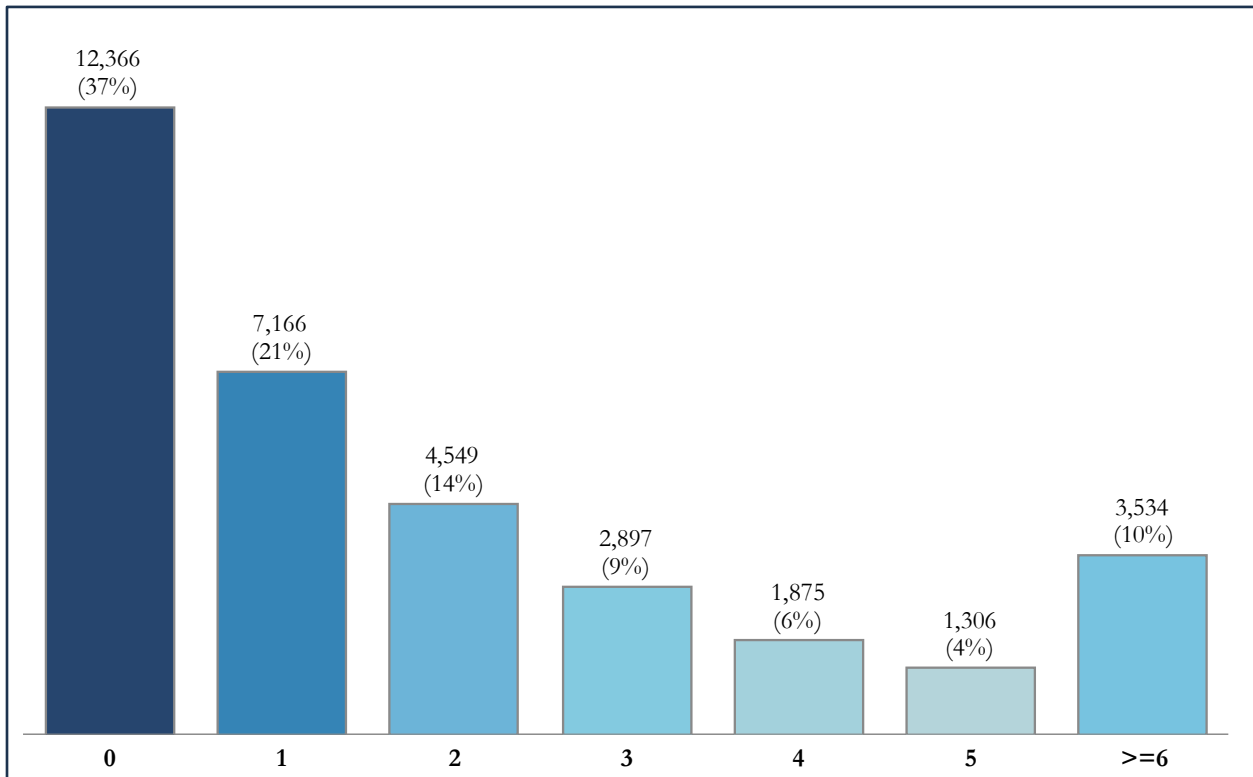
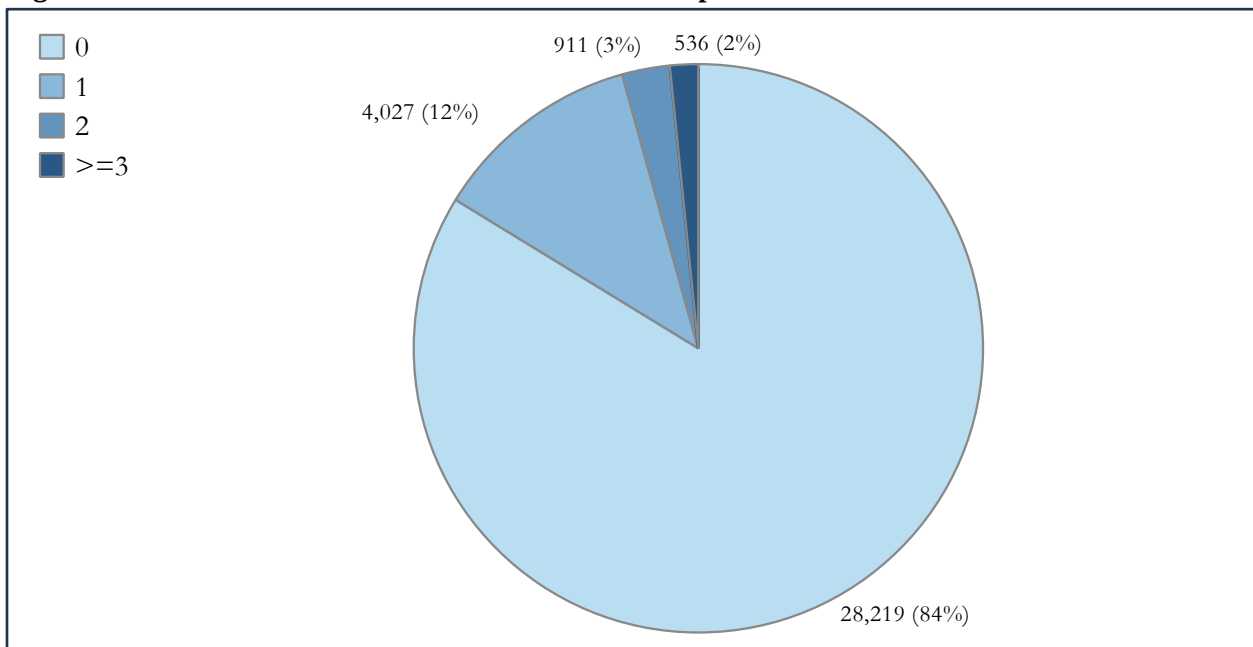


Figure 18: Active MOS with Substantiated CCRB Complaints



SECTION 2: INVESTIGATIONS

Investigating misconduct allegations is the core function of the CCRB. The Agency's primary goal is to complete full and fair investigations.

At the beginning of an investigation, an investigator interviews the complainant and any witnesses, collects evidence, and attempts to identify and interview the police officer(s) involved in the encounter. In many instances, the officers' identities are unknown at the outset of the investigation.

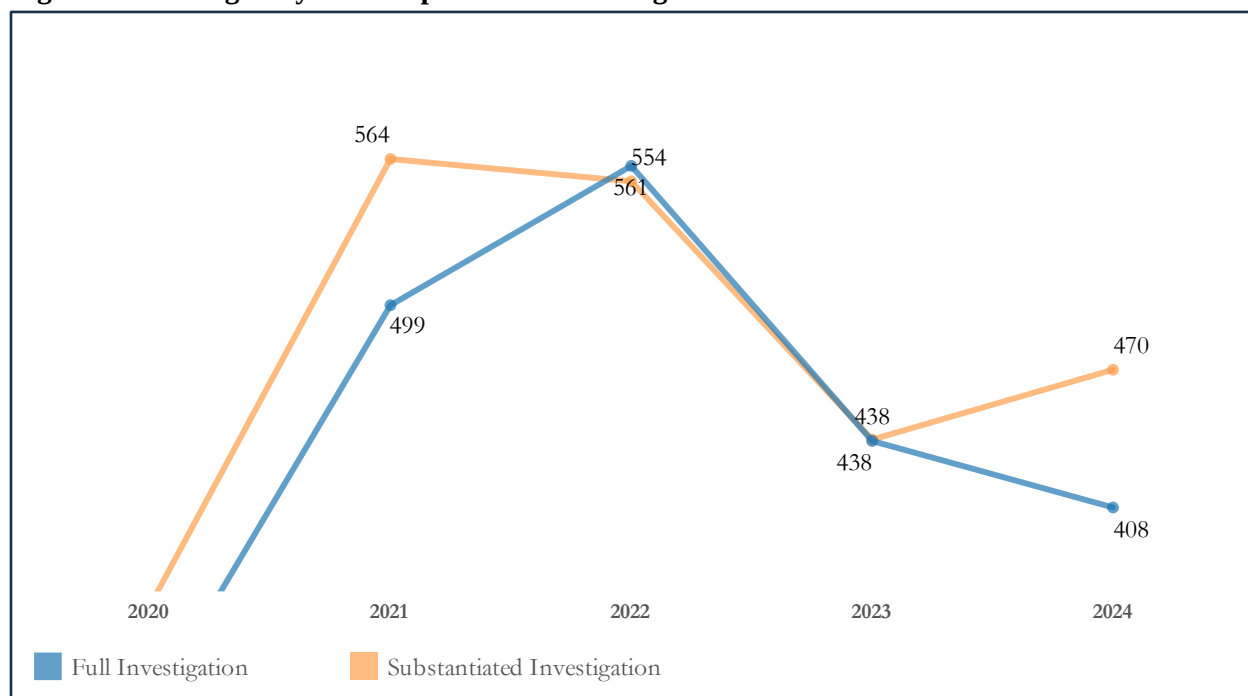
Once all the necessary interviews are conducted and the collected evidence is reviewed, the investigative team recommends a disposition to the Board for each allegation in the case. In most instances, a panel of three Board Members, comprised of one mayoral appointee, one City Council appointee, and one Police Commissioner designee, reviews the case and votes on the allegations.⁸ In certain limited circumstances, the full Board will consider a case.⁹

Every complaint passes through the Investigations Division, even if it is ultimately resolved through mediation. This section covers the performance of the Investigations Division and the outcomes of complaints received by the CCRB.

⁸ 38-A RCNY § 1-31.

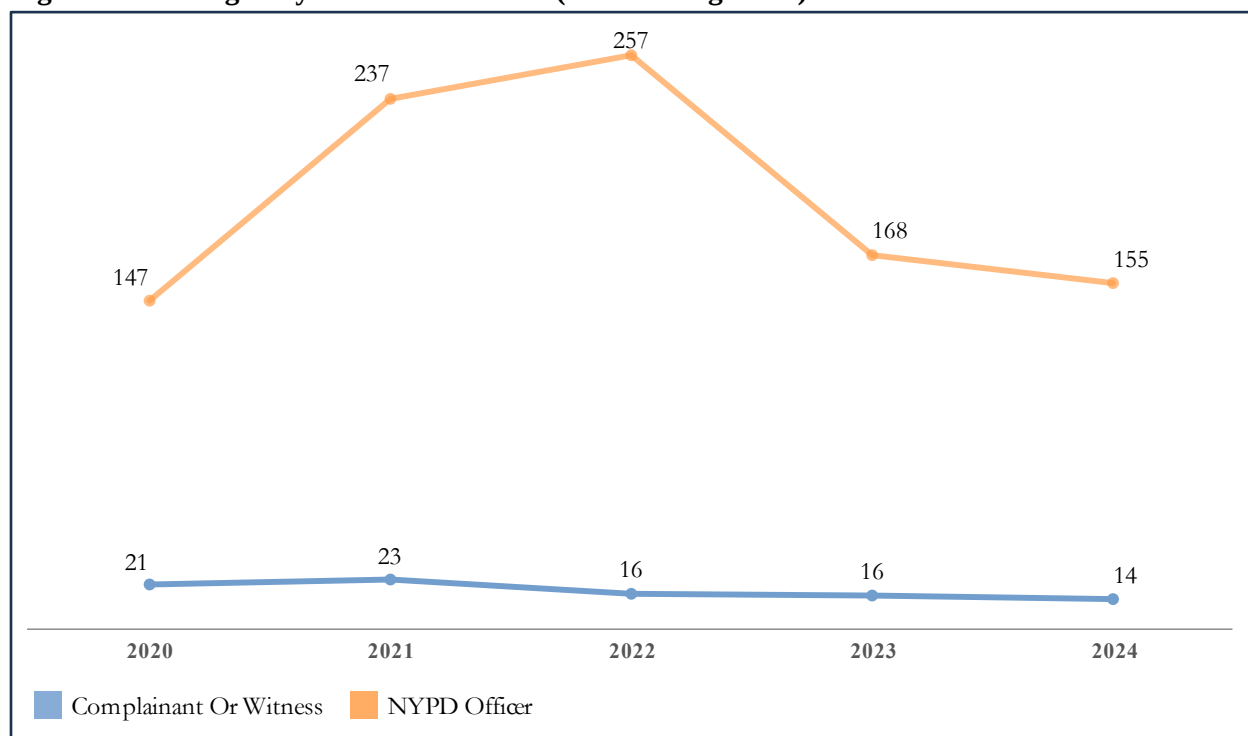
⁹ 38-A RCNY § 1-32.

Figure 19: Average Days to Complete a Full Investigation



Average days exclude re-opened cases and cases that have been placed on hold by the District Attorney or the NYPD's Force Investigative Division.

Figure 20: Average Days to First Interview (Full Investigations)



Average days exclude re-opened cases and cases that have been placed on hold by the District Attorney or the NYPD's Force Investigative Division.

INFORMATION REQUESTS

All CCRB investigations involve requesting information from the NYPD. Investigators generally request two types of information from the Department: 1) body-worn camera (BWC) footage; and 2) other police documents such as roll calls, memo books and officer photographs.

In 2022, the CCRB created a Document Specialists Unit to manage the Agency’s information requests and lighten the burden on investigators. In 2024, the Document Specialists Unit processed and received more than 26,000 information requests from the NYPD.

The charts below show the NYPD’s average response time in days to information requests made by the CCRB.

Figure 21: NYPD BWC Requests: Average Request Turnaround Time in Days

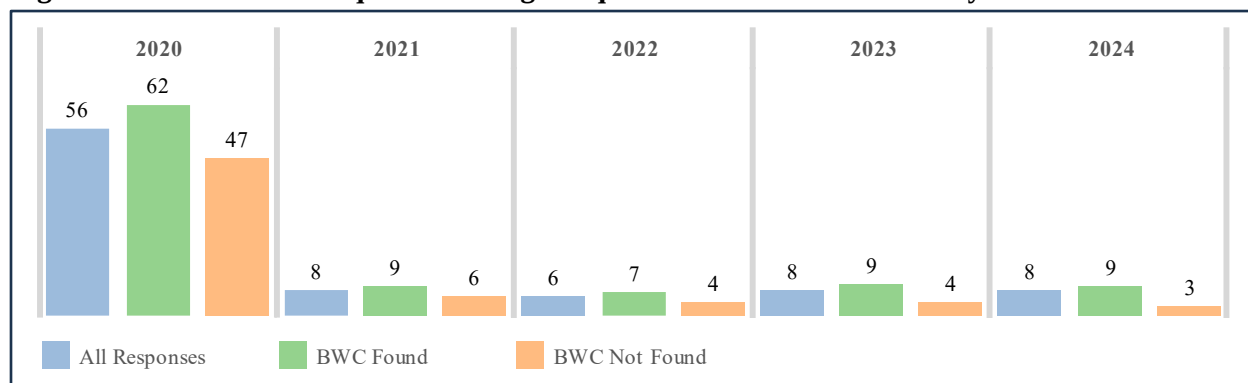
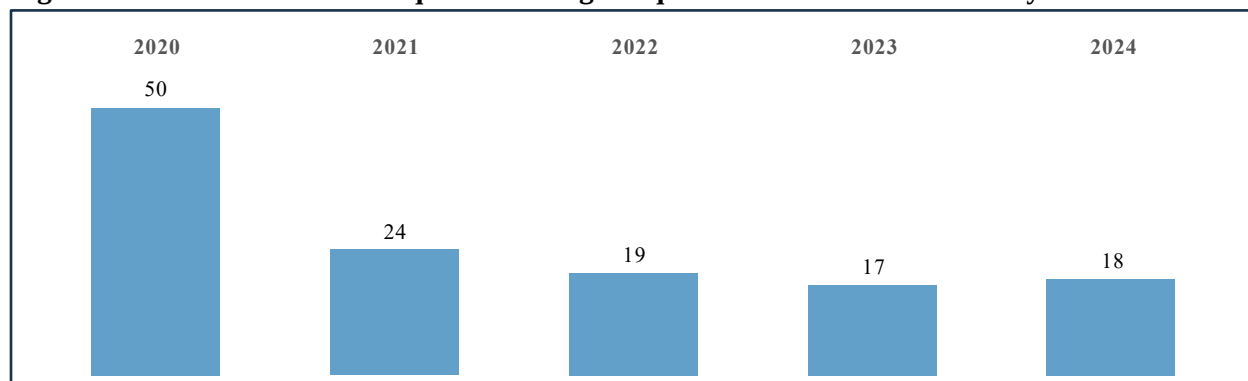


Figure 22: Pending NYPD BWC Requests at End of 2024

Days Pending	BWC Requests	% of Total
00 <= Days < 30	11	15.9%
30 <= Days < 60	20	29.0%
60 <= Days < 90	9	13.0%
90 <= Days	29	42.0%
Grand Total	69	100.0%

Figure 23: NYPD Document Requests: Average Request Turnaround Time in Days



CASE RESOLUTION AND INVESTIGATIVE OUTCOMES

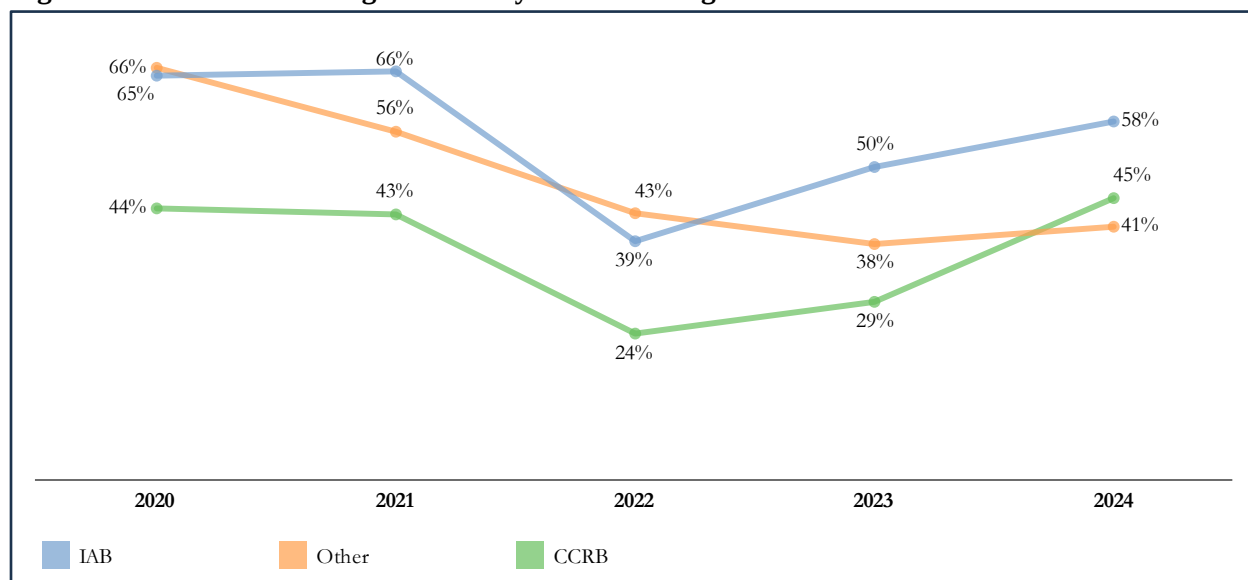
A complaint can be resolved in various ways. The complaint may be fully investigated, mediated, closed after mediation is attempted,¹⁰ or closed as “Unable to Investigate.”¹¹ There are also a small number of cases where the complainant asks to withdraw their case or where the complaint is closed as a miscellaneous closure, which includes administratively closed complaints and complaints in which the subject officer left the Department before an investigation or mediation was completed.

Figure 24: Case Resolutions

	2020		2021		2022		2023		2024	
	Count	% of Total	Count	% of Total	Count	% of Total	Count	% of Total	Count	% of Total
Full Investigation	981	30%	612	23%	2,339	60%	2,580	50%	2,551	40%
Unable to Investigate	1,335	41%	1,059	40%	868	22%	1,479	28%	2,872	45%
Closed - Pending Litigation	332	10%	308	12%	273	7%	585	11%	627	10%
Complaint Withdrawn	407	12%	358	13%	258	7%	403	8%	263	4%
Mediated	30	1%	120	4%	79	2%	104	2%	51	1%
Mediation Attempted	109	3%	140	5%	44	1%				
Misc. Closure	89	3%	80	3%	35	1%	46	1%	38	1%

When complaints are not filed directly with the CCRB, it is often difficult to contact the complainant or victim, as they may not be aware that their complaint was referred to the CCRB. Complaints filed directly with the CCRB are less likely to be closed as “Unable to Investigate.”¹²

Figure 25: Unable to Investigate Rates by Place of Filing



¹⁰ “Mediation attempted” is a designation for a case in which both the officer and the civilian agree to mediate, but the civilian either fails to appear twice for a scheduled mediation session without good cause or fails to respond to attempts to schedule a mediation session and does not request that the case be sent back for a full investigation.

¹¹ “Unable to Investigate” is a term used for reporting purposes that incorporates the following CCRB dispositions: Complainant/Alleged Victim Uncooperative, Complainant/Alleged Victim Unavailable, Witness Uncooperative, Witness Unavailable, Victim Unidentified, OMB PEG Closures and SRAD Closures.

¹² Another contributing factor to this category is the OMB PEG Closures and SRAD Closures.

COMPLAINT AND ALLEGATION DISPOSITIONS FOR FULLY INVESTIGATED CASES

To understand the data presented in the following section, it is important to understand the CCRB terminology used in determining complaint and allegation dispositions.

Allegations that are fully investigated by the CCRB generally result in one of five outcomes:

- An allegation is **Substantiated** if the alleged conduct is found to have occurred and is improper based on a preponderance of the evidence.¹³
- An allegation is **Within NYPD Guidelines** if the alleged conduct is found to have occurred but was not found to be improper by a preponderance of the evidence.¹⁴ Allegations may be **Within NYPD Guidelines** if the officer's behavior was found to be allowed under the law and/or the Patrol Guide.¹⁵
- An allegation is **Unfounded** if the alleged conduct is found by a preponderance of the evidence not to have occurred as the complainant described.
- An allegation is closed as **Officer Unidentified** if the CCRB was unable to identify the officer accused of misconduct.
- An allegation is closed as **Unable to Determine** if there is insufficient evidence to determine whether or not misconduct occurred by a preponderance of the evidence.¹⁶

The disposition of a fully investigated complaint depends on the disposition of the fully investigated allegations within the complaint:

- A complaint is **Substantiated** if any allegation within the complaint is substantiated.
- A complaint is **Within NYPD Guidelines** if all the allegations made against identified officers are Within NYPD Guidelines.
- A complaint is **Unfounded** if there are no Substantiated or Unable to Determine allegations and there is at least one unfounded allegation.
- A complaint is closed as **Officer Unidentified** if the CCRB was unable to identify any of the officers accused of misconduct.
- A complaint is **Unable to Determine** if there are no substantiated allegations and there is at least one unable to determine allegation.

The following section provides case abstracts to help readers better understand the distinctions between the different dispositions of fully investigated allegations.

¹³ "Preponderance of the evidence" is an evidentiary standard used in civil cases, and is commonly interpreted to mean that the fact in question was determined to be "more likely than not" true. *See Foran v. Murphy*, 73 Misc.2d 486 (2d Dept 1973) ("In a disciplinary proceeding, . . . it is sufficient if respondent finds the specifications established by a fair preponderance of the evidence."); *Dep't of Correction v. Jones*, OATH Index No. 393/04 (May 3, 2004) ("burden of proof in this administrative proceeding to prove misconduct by a preponderance of the credible evidence").

¹⁴ Within NYPD Guidelines is reported to the Police Commissioner as Exonerated.

¹⁵ This does not mean that the complainant was untruthful in their account of the incident. Many members of the public are not aware of the range of law enforcement activities that are legally permissible and within the boundaries of proper NYPD protocol.

¹⁶ Unable to Determine is reported to the Police Commissioner as Unsubstantiated.

The following case abstracts are taken from complaints closed in 2024 and serve as examples of what the different case dispositions mean in practice.

1. Substantiated

An individual called 311 to report that her home had been broken into and that money was missing. Police Officer Nicholas Viola and his partner responded, and the individual stated that she wanted to file a police report for the missing money. PO Viola spoke with the individual inside her home while standing over a table on which several documents were stacked. The incident was captured on BWC. The footage showed the individual handing PO Viola a court document from the table. The individual then stepped away from the table to get proof of her missing items and PO Viola went with her. More than 30 minutes later, PO Viola returned to the table, without the individual, and looked through a stack of documents containing the individual's medical records. PO Viola stated that the individual gave him permission to look at the stack of documents. The investigation found that the BWC footage showed that the individual only gave PO Viola consent to look at the court documents and their attached photos, which were in a separate stack on the table. The investigation determined that PO Viola exceeded the scope of the individual's consent by looking at the stack of medical documents. The Board substantiated the Abuse of Authority allegation.

2. Within NYPD Guidelines

An individual alleged that he and a friend were at a deli to purchase snacks when he was approached from behind by two subject officers. The officers told him to put his hands behind his back and he asked what he was being arrested for. They told him that he would find out at the precinct and one of the subject officers slammed the individual's torso against an ice freezer inside the deli. The individual's friend began to record the incident. As the subject officers handcuffed the individual, they told the friend to back up. The incident was captured on BWC, which showed the subject officers entering the deli and approaching the individual. The individual attempted to run away and the subject officers chased after him and hooked him by his arms. They all subsequently fell onto the ice freezer. The subject officers handcuffed the individual. During the struggle to handcuff the individual, a subject officer told the friend to get back or he would be arrested as well. The investigation found that the amount of force used by the subject officers to arrest the individual, who had attempted to flee and demonstrated active resistance, was permissible under the Patrol Guide. The investigation also found that the subject officer was justified in telling the individual's friend to move back or he would be arrested given that they were conducting the arrest in close quarters and the friend had approached the officers from behind and was close enough to interfere as they were trying to handcuff the individual. The Board closed the Abuse of Authority and Use of Force allegations as Within NYPD Guidelines.

3. Unfounded

An individual stated that his vehicle was pulled over by two subject officers who then asked for his license and registration, which he had left at home. The individual alleged that the subject officers told him to exit his vehicle, and when he refused, they grabbed his arms and attempted to pull him out of the vehicle. The incident was captured on BWC. The footage showed the subject officers stopping the individual and asking for his license and registration. After stating that he did not have his license and registration, the individual is asked to step out of the vehicle. The individual asked why, and a subject officer repeated the instruction for him to exit the vehicle, and explained that was because he did not have a license and registration. A subject officer again asked the individual to exit the vehicle, and then opened the vehicle door. When the door was halfway open, the individual grabbed it and moved it toward him. One of the subject officers grabbed the door and pulled it fully open. The other subject officer stepped into the space between the open door and the individual and again asked him to exit. The subject officer reached into the vehicle, but is not shown pulling the individual out of it. The investigation found that the subject officers did not pull the individual out of his vehicle. The Board closed the Use of Force allegations as Unfounded.

4. Officer Unidentified

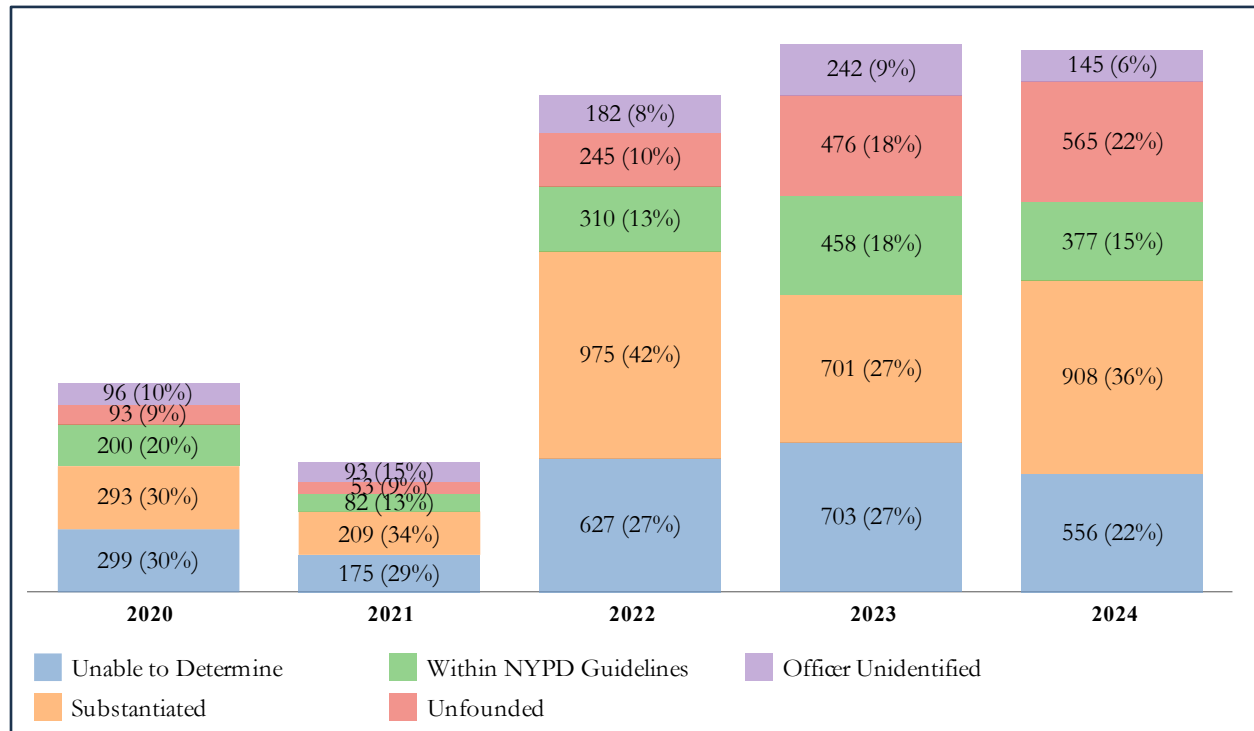
An individual stated that during a four-month period, members of the NYPD surveilled him at home and at the gym and had pepper sprayed his home. The individual could not give a description of the three men he believed to be officers who were involved in these actions. The investigation found no police records that indicated that there were any NYPD investigations concerning the individual or the individual's home. Without additional information, the investigation could not identify the subject officers. The Board closed the Abuse of Authority and Use of Force allegations as Officer Unidentified.

5. Unable to Determine

An individual was arguing with the subject officer while at an intersection. The subject officer allegedly slammed the individual's car door closed, causing it to no longer work properly—the individual stated that the car door now had to be manually locked. The incident was captured on BWC. It showed the individual and the subject officer at the intersection arguing about the individual refusing to follow the subject officer's directions about how to leave the intersection. The subject officer closed the individual's car door in a normal manner. Any internal damage to the car door could not be observed. Without any independent witnesses or additional audio or video evidence, the investigation could not determine if the subject officer damaged the car's door locking mechanism. The Board closed the Abuse of Authority allegation as Unable to Determine.

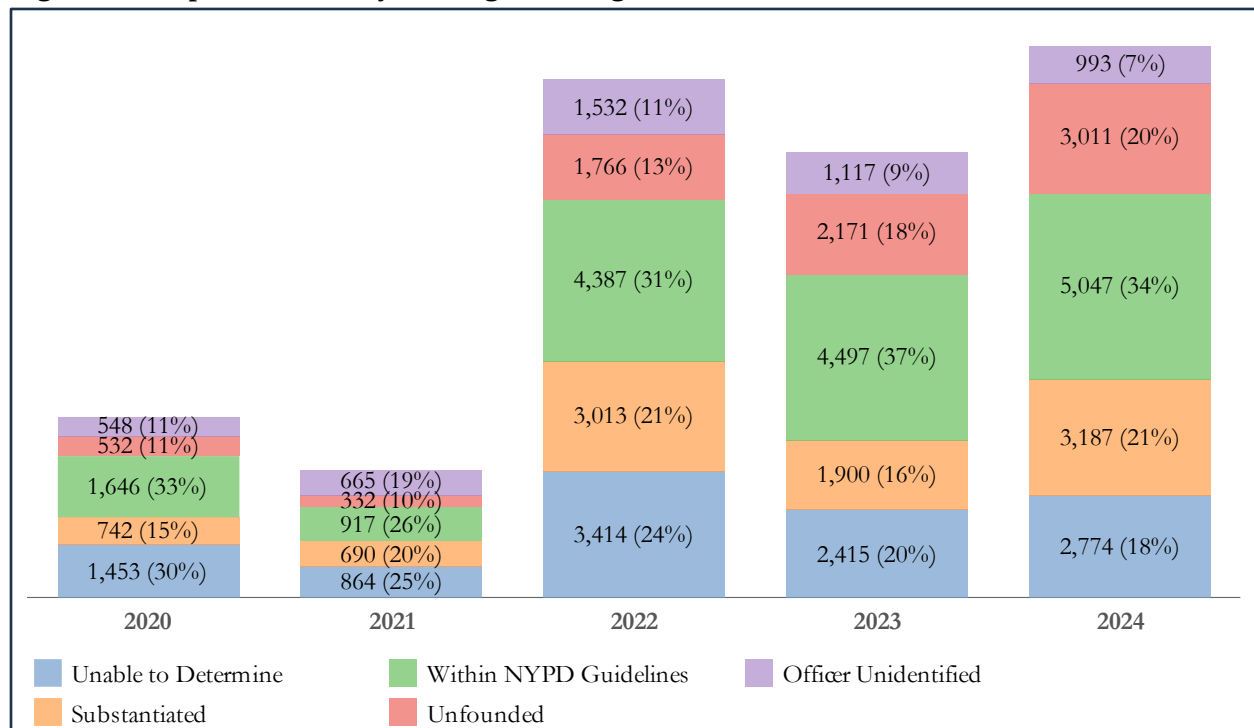
DISPOSITIONS OF COMPLAINTS AND ALLEGATIONS

Figure 26: Disposition of Fully Investigated Complaints



A CCRB complaint may contain one or more allegations. The complaint disposition is a composite of the dispositions of all the distinct allegations within the complaint (see page 26).

Figure 27: Disposition of Fully Investigated Allegations



UNTRUTHFUL STATEMENTS

The CCRB investigates untruthful statement allegations under two different allegation categories. Official statements made directly to the CCRB are investigated under the “Untruthful Statement” allegation category. Official statements made in other contexts (e.g. in court) are investigated under the “Abuse of Authority” allegation category.

All the untruthful official statement allegations are mutually exclusive, meaning that the CCRB will not plead more than one untruthful statement allegation against an officer for the same untruthful act. There are four distinct types of untruthful statement allegation as follows:

1. **False Official Statement:** The false official statement allegation requires a showing of three elements by a preponderance of the evidence: (1) the officer made an intentional statement; (2) the officer knew the statement to be untrue; and (3) the statement was material to the outcome of a CCRB investigation or other proceeding.
2. **Misleading Official Statement:** Misleading statements are statements in which the officer intends to misdirect the fact finder and materially alter the narrative by omitting material facts, stating repeatedly that they do not recall the event or specific actions that a reasonable person would be expected to recall or have been aware, or materially altering their statement after being confronted with evidence that contradicts their initial statement.
3. **Inaccurate Official Statement:** The officer’s statement includes material statements so incorrect, about information that the officer ought to have knowledge, that it constitutes gross negligence. This allegation does not require an intent to deceive.
4. **Impeding an Investigation:** This allegation pertains only to CCRB investigations. It is reserved for instances when “an officer engages in impeding actions” such as destroying digital or material evidence or refusing to provide said evidence.

Figure 28: Substantiated Untruthful Statement Allegations

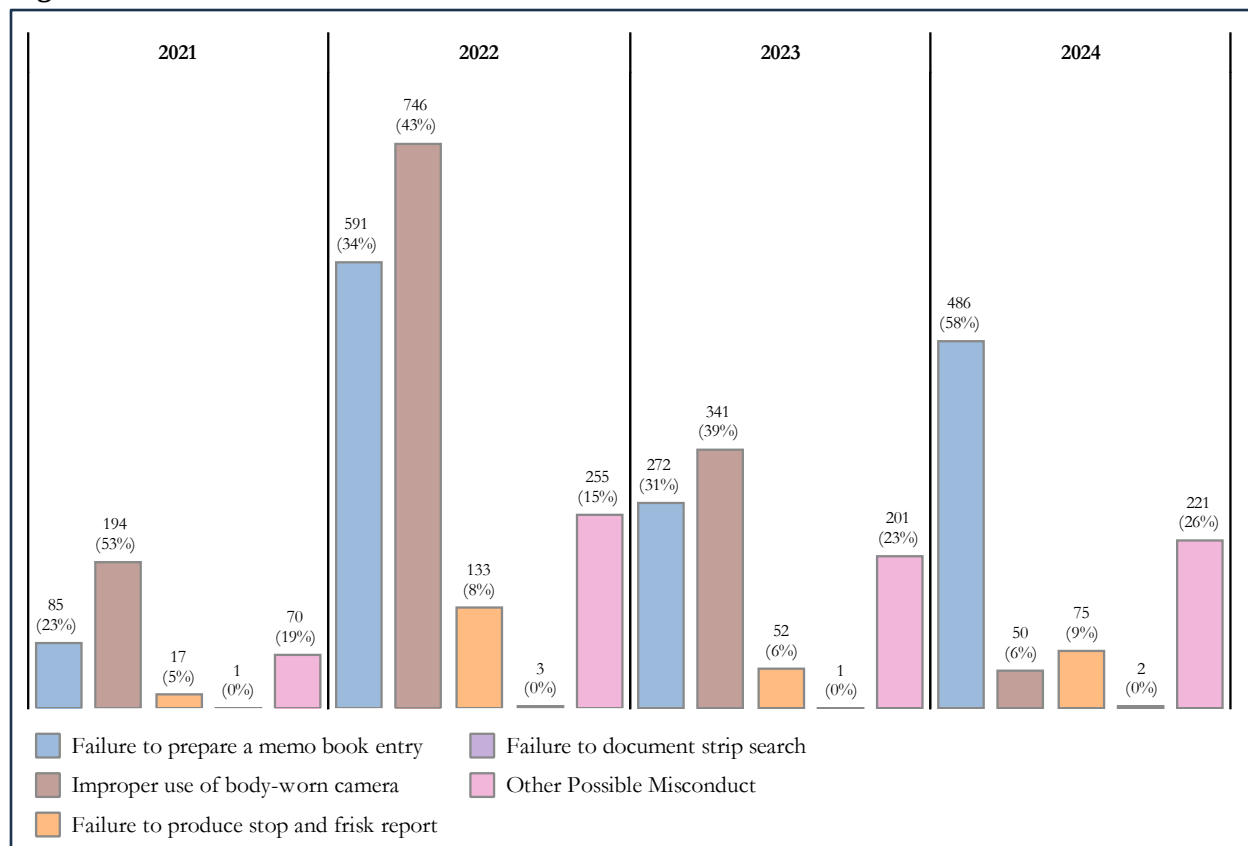
Year	Board Disposition	False Official Statement	Misleading Official Statement	Inaccurate Official Statement	Impeding an Investigation
2020	Substantiated (Charges)	1			
	Substantiated (Command Discipline B)		1		
2021	Substantiated (Charges)	14	7		2
	Substantiated (Formalized Training)			1	
2022	Substantiated (Charges)	52	44		
	Substantiated (Command Discipline A)			1	
2023	Substantiated (Charges)	27	8		
	Substantiated (Command Discipline B)			4	
2024	Substantiated (Charges)	30	11		
	Substantiated (Command Discipline A)	1		1	
	Substantiated (Command Discipline B)	1	1	1	

OTHER POSSIBLE MISCONDUCT NOTED AND FALSE OFFICIAL STATEMENTS

When a CCRB investigation reveals evidence of a Patrol Guide violation that falls outside of the CCRB’s jurisdiction, the Board files this as “other possible misconduct noted” (OPMN) and reports it to IAB for further investigation and possible disciplinary action.

OPMN allegations should not be confused with allegations of corruption or potential criminal conduct, which are also referred to IAB.

Figure 29: Other Possible Misconduct Noted



SECTION 3: RACIAL PROFILING & BIAS-BASED POLICING

In March 2021, Local Law 47 (2021) amended the New York City Charter to clarify that allegations of racial profiling and bias-based policing fall under the CCRB's abuse of authority jurisdiction.

Following the enactment of this amendment, the CCRB established its Racial Profiling and Bias-Based Policing Unit (RPBP). The RPBP Unit investigates civilian complaints of profiling/biased policing by uniformed members of the NYPD based on 10 protected categories: race, national origin/ethnicity, color, religion, age, immigration or citizenship status, gender/gender identity, sexual orientation, disability, and housing status.

Racial profiling occurs when an officer takes law enforcement action against a person (for example: vehicle stop, stop of a person on the street, arrest, summons, search, or move-along order) because of a person's actual or perceived race, ethnicity, national origin, or color. Bias-based policing occurs when an officer takes law enforcement action against a person because of their actual or perceived religion, age, immigration or citizenship status, gender/gender identity, sexual orientation, disability, or housing status.

Below are some examples of racial profiling/bias-based policing:

1. A civilian who wears a turban is pulled over in his vehicle after performing a rolling stop at a stop sign. Most other drivers, who do not appear to be wearing turbans, are not pulled over by the NYPD when they do a rolling stop at the stop sign.
2. After school dismissal, NYPD officers tell Black students from a middle school to leave the neighborhood. White students from the same school are allowed to remain in the area.
3. On a weekend night, two women are standing on the same corner checking their mobile phones. The first, a transgender woman, is stopped by officers, questioned about her activities, and asked for identification. The second, who appears to be cisgender, is not stopped, questioned, or asked for identification.
4. On a subway car late at night, NYPD officers remove a sleeping man who appears to be homeless and issue him a summons. Two other men who are also sleeping in the subway car, but who do not appear to be homeless, are allowed to remain on the train.
5. Two officers stop a group of three young Latino men around 2 a.m., ask them if they have any weapons, and pat them down. When they ask why they were stopped, the officers explain that there have been several recent shootings in the area committed by Latino men in their 20s and that the three men should not be walking around so late at night.
6. A male civilian enters a police station to report domestic abuse by his partner, a woman. The officer on duty refuses to accept the civilian's complaint, saying that he should "man up."

In the event that the Board, the NYPD, the City Commission on Human Rights, the Department of Investigation, or a state or federal court in New York finds an officer to have engaged in an act of bias, the CCRB is also empowered to investigate possible bias in the past professional conduct of that officer.^{17 18}

¹⁷ New York City Charter § 441.

¹⁸ To date, no investigations into the past professional conduct of an officer have been opened.

BIAS-BASED COMPLAINT INVESTIGATIONS: INFORMATION REQUESTS

At the end of 2024, the RBPB Unit had 675 open investigations of complaints that included at least one allegation of bias-based policing.

To conduct bias-based policing investigations, the RBPB Unit needs specific bias-related information from the NYPD—this information previously was not available to the CCRB. The RBPB Unit typically requests a subject officer’s profiling complaint history, lawsuit history, adverse credibility assessments, prior equal employment opportunity bias allegations, and performance evaluations. In many cases, the RBPB Unit also requests various datasets from the NYPD, such as a listing of all the stop reports completed by a subject officer in the year prior to the incident under investigation or a listing of all the summonses issued by a subject officer in the previous year.

In 2023, the CCRB reached a data-sharing agreement with the NYPD, and the Department began fulfilling these information requests from the RBPB Unit.¹⁹

Figure 30: Average Turnaround Time of Information Requests Specific to Bias-Based Policing Investigations in Days

Request Month	Info Request Type Desc Modified	Requests	Open Requests	Partially Received Requests	Rejected Requests	Received Requests	Avg. Closed Received Days Out
Jan, 2024	Data Requests	9	0	2	0	7	82
	Document Requests	14	0	0	0	14	32
Feb, 2024	Data Requests	11	0	0	0	10	55
	Document Requests	18	0	0	0	18	55
Mar, 2024	Data Requests	17	0	3	0	14	123
	Document Requests	42	0	4	0	38	36
Apr, 2024	Data Requests	11	0	2	0	9	103
	Document Requests	22	0	0	0	22	19
May, 2024	Data Requests	14	0	4	0	10	71
	Document Requests	29	0	1	0	28	18
Jun, 2024	Data Requests	14	0	8	0	6	75
	Document Requests	30	2	16	0	12	111
Jul, 2024	Data Requests	6	0	3	0	3	40
	Document Requests	20	0	10	0	10	75
Aug, 2024	Data Requests	14	1	3	0	10	78
	Document Requests	45	1	22	0	22	49
Sep, 2024	Data Requests	16	0	3	0	13	47
	Document Requests	38	2	19	0	17	30
Oct, 2024	Data Requests	13	0	1	0	12	54
	Document Requests	36	2	18	0	16	27
Nov, 2024	Data Requests	24	4	3	0	17	32
	Document Requests	44	8	31	0	5	29
Dec, 2024	Data Requests	10	10	0	0	0	
	Document Requests	20	6	14	0	0	

¹⁹ A copy of the data-sharing agreement between CCRB and the NYPD can be found at: https://www.nyc.gov/assets/ccrb/downloads/pdf/rbpb_mou.pdf.

BIAS-BASED COMPLAINTS & ALLEGATIONS CLOSED

In 2024, CCRB substantiated bias-based policing allegations against 63 officers.

Figure 31: Board Recommendation for Officers with a Substantiated Bias-Based Policing Allegation

Year	Disposition	Officer Count
2024	Substantiated (Charges)	62
	Substantiated (Command Discipline A)	1
Grand Total		63

Figure 32: Disposition of Bias-Based Policing Allegations

Year	Inv. Type	Disposition	Allegation	Count	
2024	Fully Investigated Allegations	Substantiated (Charges)	Bias-Based Policing (Color)	2	
			Bias-Based Policing (Disability)	12	
			Bias-Based Policing (Housing Status)	3	
			Bias-Based Policing (National Origin)	7	
			Bias-Based Policing (Race)	43	
		Substantiated (CD A)	Bias-Based Policing (Gender)	1	
		Unable to Determine	Bias-Based Policing (Age)	7	
			Bias-Based Policing (Color)	1	
			Bias-Based Policing (Disability)	4	
			Bias-Based Policing (Gender)	4	
			Bias-Based Policing (Housing Status)	4	
			Bias-Based Policing (Immigration Status)	1	
			Bias-Based Policing (National Origin)	12	
			Bias-Based Policing (Race)	125	
			Bias-Based Policing (Religion)	2	
			Bias-Based Policing (Sexual Orientation)	1	
			Unfounded	Bias-Based Policing (Age)	10
		Bias-Based Policing (Color)		4	
		Bias-Based Policing (Disability)		3	
		Bias-Based Policing (Gender)		19	
		Bias-Based Policing (Housing Status)		4	
		Bias-Based Policing (Immigration Status)		2	
		Bias-Based Policing (National Origin)		11	
		Bias-Based Policing (Race)		152	
		Bias-Based Policing (Sexual Orientation)	5		
		Officer(s) Unidentified	Bias-Based Policing (Color)	1	
			Bias-Based Policing (Housing Status)	1	
			Bias-Based Policing (Race)	12	
			Bias-Based Policing (Religion)	2	
		Not Fully Investigated Allegations	Closed - Pending Litigation	Bias-Based Policing (Color)	1
				Bias-Based Policing (Race)	6
			Complaint Withdrawn	Bias-Based Policing (Race)	2
				Bias-Based Policing (Sexual Orientation)	1
	Unable to Investigate		Bias-Based Policing (Color)	1	
			Bias-Based Policing (Gender)	4	
			Bias-Based Policing (Housing Status)	3	
			Bias-Based Policing (National Origin)	7	
			Bias-Based Policing (Race)	39	
			Bias-Based Policing (Religion)	3	
	Miscellaneous - Subject Resigned		Bias-Based Policing (Color)	2	
			Bias-Based Policing (Disability)	2	
			Bias-Based Policing (Housing Status)	1	
			Bias-Based Policing (National Origin)	4	
			Bias-Based Policing (Race)	13	
	Miscellaneous - Subject Retired		Bias-Based Policing (Race)	4	
	Miscellaneous		Bias-Based Policing (Gender)	1	
			Bias-Based Policing (Race)	1	
Grand Total				550	

SECTION 4: DISCIPLINARY PROCESS

DISCIPLINARY PROCESS AND THE CCRB'S ADMINISTRATIVE PROSECUTION UNIT (APU)

After the CCRB substantiates an allegation of misconduct, the NYPD portion of the disciplinary process begins. Although the CCRB recommends the discipline that it deems appropriate, pursuant to the New York City Charter,²⁰ New York City Administrative Code,²¹ and New York State Civil Service Law,²² the Police Commissioner has final approval over all member of service (MOS) discipline. The Commissioner can accept, reject, or modify any discipline recommendation made by the CCRB.

In 2021, pursuant to a Memorandum of Understanding (MOU) with the NYPD,²³ the Board began using the NYPD's Disciplinary System Penalty Guidelines, often referred to as the Disciplinary Matrix,²⁴ to determine its discipline recommendations. Using the Disciplinary Matrix should result in more consistent discipline recommendations from the CCRB, and consequently, less deviations from those recommendations by the Police Commissioner.

The Board follows this three-step process to determine its Disciplinary Matrix recommendation for each officer:

1. Using the Disciplinary Matrix, the Board assigns a penalty day value to each substantiated allegation.
2. The penalty day value of all the substantiated allegations against the officer is summed to arrive at an overall penalty day value.
3. Based on the overall penalty day value, the Board selects one of the following disciplinary recommendations:
 - Less than 1 day: Formalized Training²⁵
 - 1–5 days: Command Discipline A²⁶
 - 6–10 days: Command Discipline B²⁷
 - 11+ days: Charges and Specifications²⁸

In 2024, the CCRB closed substantiated allegations against 1,728 members of service. The Board's discipline recommendation deviated from the Disciplinary Matrix in 45 cases.

²⁰ New York City Charter § 440(d)3.

²¹ New York City Administrative Code §§ 15-08; 15-17.

²² NYS Civil Service Law § 75(3-a).

²³ The MOU can be found here: https://www1.nyc.gov/assets/nypd/downloads/pdf/public_information/nypd-ccrb-discipline-matrix-mou-final.pdf.

²⁴ The version of the NYPD Disciplinary Guidelines that went into effect in January 2021 can be found here: https://www1.nyc.gov/assets/nypd/downloads/pdf/public_information/disciplinary-system-penalty-guidelines-effective-01-15-2021-compete-.pdf. The updated Guidelines, effective September 2024, can be found here: <https://www.nyc.gov/site/nypd/about/about-nypd/policy/nypd-discipline-matrix.page>.

²⁵ Examples include training delivered at the command, the Legal Bureau, and the Police Academy.

²⁶ Issued by the commanding officer and may include a penalty ranging from warning and admonishment up to the officer forfeiting five vacation days.

²⁷ Issued by the commanding officer and may include a penalty ranging from warning and admonishment up to the officer forfeiting ten vacation days.

²⁸ Leads to a prosecutorial process in which officer may either plead guilty or go to trial before the NYPD Deputy Commissioner of Trials or an Assistant Deputy Commissioner of Trials.

After the Board sends its discipline recommendation to the Police Commissioner, the case against that officer can be resolved in one of the following ways:

1. If the Board recommends Instructions,²⁹ Formalized Training, Command Discipline A, or Command Discipline B:
 - a. The recommendation is sent to the Department Advocate's Office, the unit within the NYPD that reviews the CCRB's disciplinary recommendations.
 - b. The Police Commissioner determines what discipline to impose, if any.
 - c. If the Police Commissioner chooses not to impose discipline, or imposes a lesser penalty than recommended, the CCRB is informed in writing of the reason for the decision.³⁰
2. If the Board recommended Charges and Specifications:
 - a. The Police Commissioner can retain the case and choose whether to impose discipline.³¹
 - b. The officer can accept a guilty plea, subject to Police Commissioner approval.³²
 - c. The officer can be prosecuted by the APU at an administrative trial. The Police Commissioner can accept or reject the trial verdict and decide whether to impose discipline.

POLICE COMMISSIONER DOWNWARD DEPARTURE LETTERS

As a result of the November 2019 amendments to the New York City Charter, the Police Commissioner must submit a letter to the CCRB explaining any downward departures from the Board's discipline recommendations.³³ While these letters had always been submitted for APU cases, the Charter amendment extended this requirement to all CCRB cases.

²⁹ With the adoption of the NYPD's Disciplinary Matrix, the Board no longer issues "Instructions" as a discipline recommendation.

³⁰ This letter differs from the letter sent when the Police Commissioner deviates from the Board's recommendation.

³¹ Pursuant to a MOU between the CCRB and the NYPD, the Police Commissioner can retain a case when the Police Commissioner determines that the APU's prosecution of a case would be detrimental to the NYPD's disciplinary process. The MOU can be found here:

https://www1.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/apu_mou.pdf.

³² The APU may reach an agreed upon disposition with the subject officer that is different from the Board's recommendation if there are new aggravating or mitigating facts.

³³ New York City Charter § 440(d)3.

Figure 33: Complaints Substantiated & Officers with Substantiated Allegations

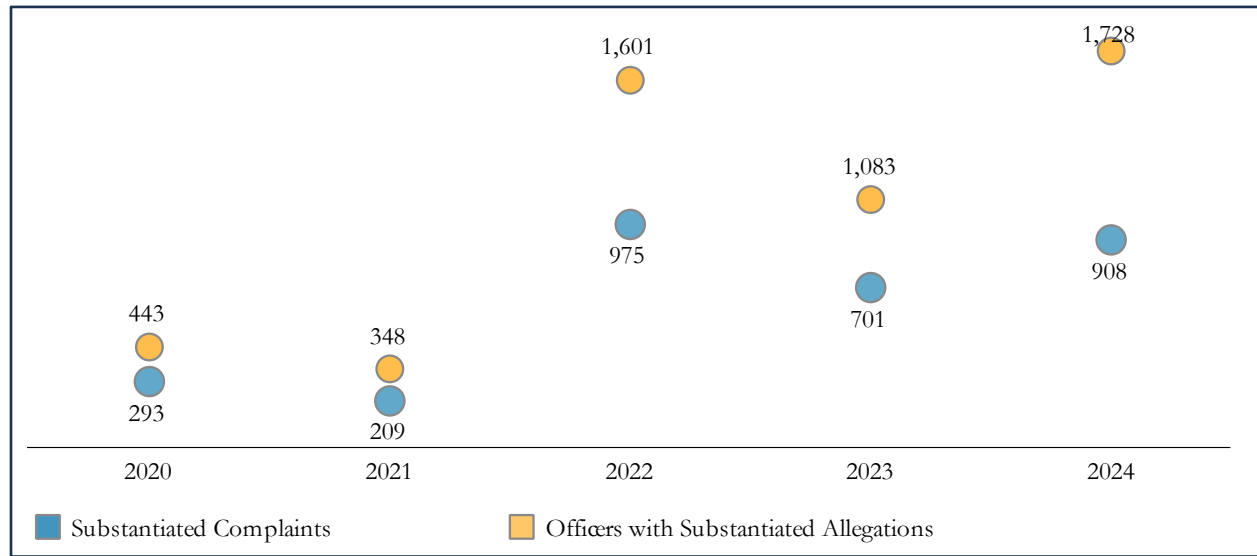


Figure 34: Board Recommendations for Officers with Substantiated Allegations

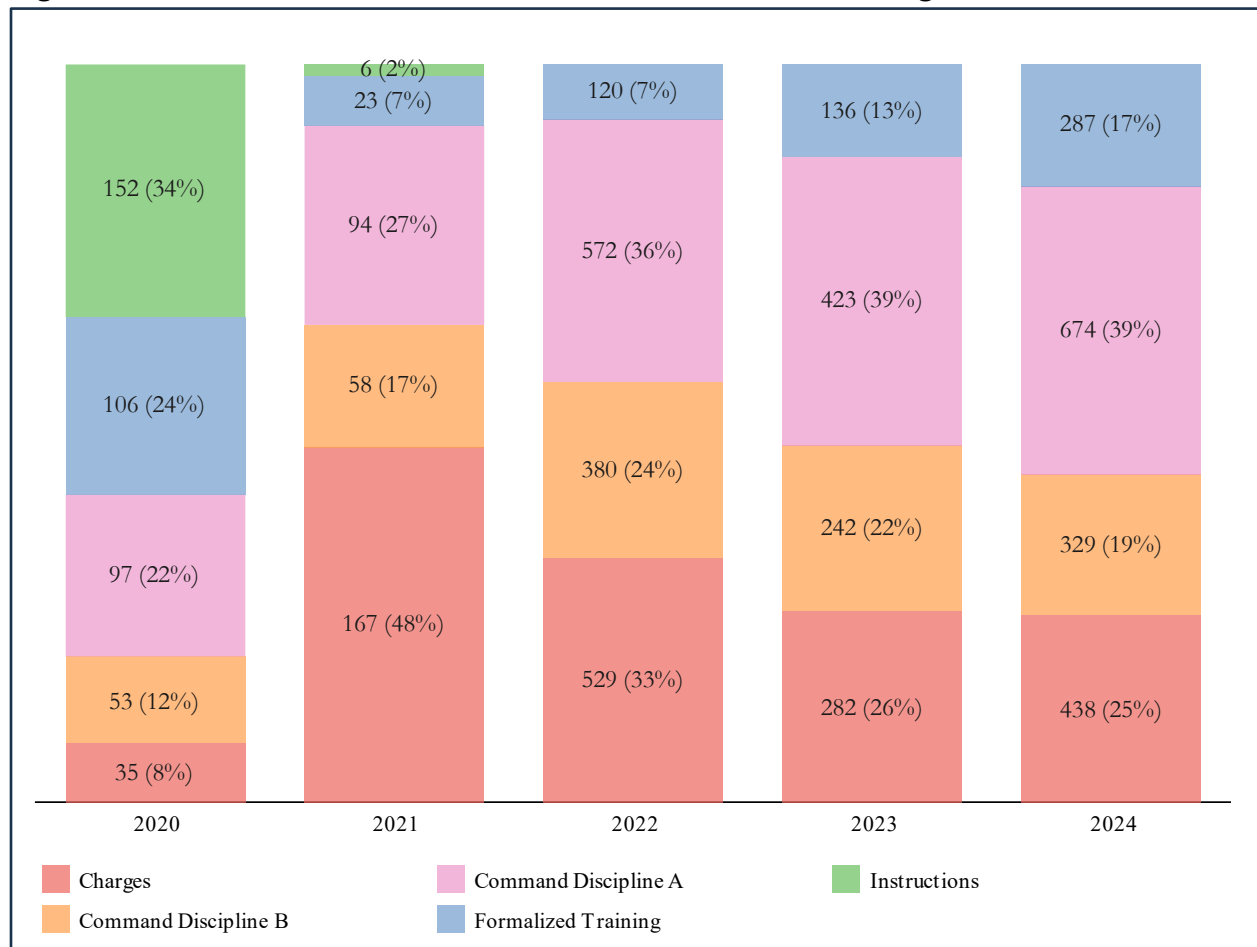
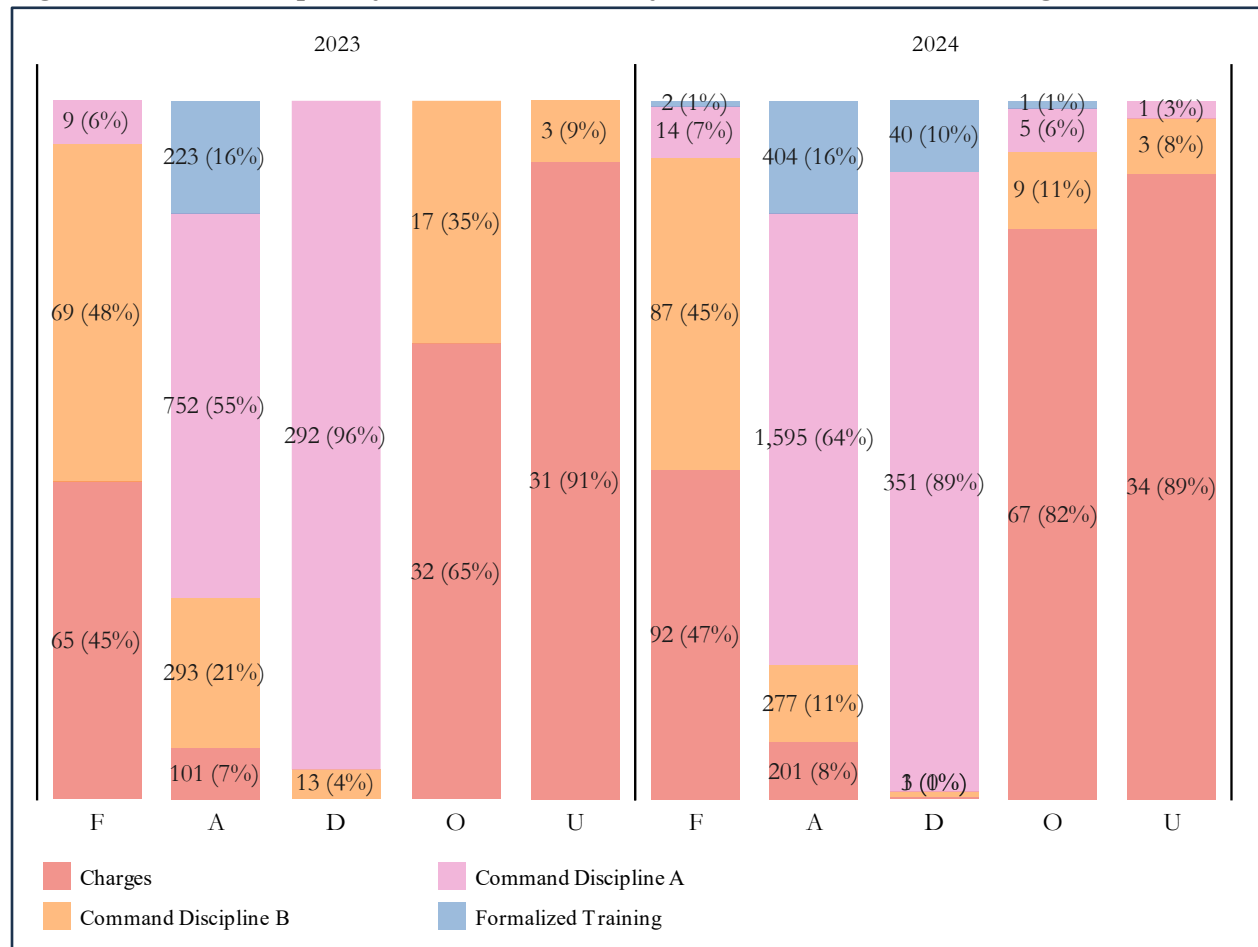


Figure 35: Board Disciplinary Recommendations by Substantiated FADO&U Allegations



NYPD DISCIPLINARY DECISIONS IN NON-CHARGES CASES

When the Board recommends Command Discipline B, Command Discipline A, or Formalized Training, the case is handled by the NYPD's Department Advocate's Office (DAO). DAO reports the final disposition of each case, along with the discipline imposed by the Police Commissioner, if any, back to the CCRB.

DAO case outcomes in non-charges cases are shown in Figure 36 on the following page. Explanations of some of the terms used in Figure 36 are as follows:

1. "Closed Administratively" – the officer's conduct was previously adjudicated, or is currently being adjudicated, by DAO.
 - a. Prior to 2021, DAO did not report the final outcome of previously adjudicated cases.
 - b. Final outcomes are not reported while a case is being adjudicated by DAO.
 - c. Where no final outcome was reported to the CCRB, the case appears as "Closed Administratively: No penalty reported."
2. "Guilty – DCT" and "No Disciplinary Action – DCT Not Guilty/Dismissed" – reference a guilty or not guilty verdict by an NYPD trial commissioner where charges were filed because the officer refused to accept a Command Discipline A/B penalty issued by the Police Commissioner.
 - a. Officers have the right to refuse a Command Discipline penalty and opt for a trial.
 - b. As of 2022, these cases are prosecuted by the APU.
3. "No Disciplinary Action – DUP" – the Department chose not to take any disciplinary action.
 - a. "DUP" stands for "Department Unable to Prosecute."
4. "No Disciplinary Action – Short SOL" – the Department did not pursue discipline because DAO felt that the Board's discipline recommendation was made too close to the expiration of the statute of limitations (SOL) period.
 - a. DAO closed an unusually large number of cases as "No Disciplinary Action – Short SOL" in 2022.
 - b. These cases are discussed in greater detail in the following section (see Figure 37 and Figure 38).

Figure 36: Department Advocate's Office Outcomes by Board Discipline Recommendation

		2020	2021	2022	2023	2024
Substantiated (Command Discipline B)	Command Discipline - B: Detail not reported	37 (8%)	12 (4%)	4 (1%)	12 (1%)	5 (0%)
	Command Discipline - B: Vacation < 6 days		10 (3%)	35 (4%)	87 (11%)	55 (4%)
	Command Discipline - B: Vacation >= 6 days		4 (1%)	9 (1%)	5 (1%)	2 (0%)
	Guilty - DCT: Vacation < 10 days		1 (0%)	1 (0%)		
	Guilty - DCT: Vacation >= 10 days		1 (0%)	3 (0%)		
	Command Discipline - A: Detail not reported	9 (2%)	4 (1%)			
	Command Discipline - A: Vacation < 6 days		1 (0%)	8 (1%)	2 (0%)	7 (1%)
	Formalized Training/Instructions	11 (2%)	7 (2%)	13 (2%)	2 (0%)	1 (0%)
	No Disciplinary Action - DCT Not Guilty/Dismissed		1 (0%)			
	No Disciplinary Action - DUP	6 (1%)	12 (4%)	33 (4%)	45 (6%)	15 (1%)
	No Disciplinary Action - Short SOL		11 (3%)	143 (18%)	113 (14%)	255 (20%)
	Closed Administratively (Command Discipline - A)			2 (0%)	3 (0%)	1 (0%)
	Closed Administratively (Instructions)			1 (0%)		2 (0%)
	Closed Administratively: Detail not reported	1 (0%)	3 (1%)			
	Closed Administratively: Suspension/Probation			1 (0%)		
	No Disciplinary Action - SOL Expired		1 (0%)	8 (1%)	8 (1%)	
	Retired/Resigned	3 (1%)	3 (1%)	7 (1%)	6 (1%)	2 (0%)
Substantiated (Command Discipline A)	Command Discipline - A: Detail not reported	70 (14%)	70 (22%)	165 (21%)	174 (22%)	124 (10%)
	Command Discipline - A: Vacation < 6 days		6 (2%)	41 (5%)	44 (5%)	36 (3%)
	Command Discipline - B: Detail not reported		5 (2%)			
	Guilty - DCT: Vacation < 10 days		2 (1%)	1 (0%)		
	Guilty - DCT: Vacation >= 10 days	1 (0%)				
	Formalized Training/Instructions	5 (1%)	5 (2%)	2 (0%)	6 (1%)	
	No Disciplinary Action - DCT Not Guilty/Dismissed			1 (0%)		
	No Disciplinary Action - DUP	7 (1%)	4 (1%)	9 (1%)	11 (1%)	6 (0%)
	No Disciplinary Action - Short SOL		18 (6%)	192 (25%)	139 (17%)	507 (39%)
	Closed Administratively (Command Discipline - A)			1 (0%)	2 (0%)	6 (0%)
	Closed Administratively (Command Discipline - B)		2 (1%)	2 (0%)	1 (0%)	1 (0%)
	Closed Administratively (Instructions)			6 (1%)	4 (0%)	3 (0%)
	Closed Administratively: Detail not reported	3 (1%)	3 (1%)	2 (0%)	1 (0%)	
	No Disciplinary Action - SOL Expired	1 (0%)		23 (3%)	10 (1%)	5 (0%)
	Retired/Resigned		5 (2%)	17 (2%)	16 (2%)	6 (0%)
Substantiated (Training/ Instructions)	Command Discipline - A: Detail not reported	2 (0%)				
	Command Discipline - A: Vacation < 6 days		2 (1%)		1 (0%)	1 (0%)
	Formalized Training/Instructions	305 (62%)	114 (36%)	34 (4%)	89 (11%)	109 (8%)
	Guilty - DCT: Vacation >= 10 days	2 (0%)				
	No Disciplinary Action - DUP	10 (2%)	1 (0%)	1 (0%)	3 (0%)	3 (0%)
	No Disciplinary Action - Short SOL		3 (1%)	9 (1%)	9 (1%)	128 (10%)
	Closed Administratively (Command Discipline - B)				1 (0%)	
	Closed Administratively (Instructions)				2 (0%)	1 (0%)
	Closed Administratively: Detail not reported	7 (1%)	2 (1%)		1 (0%)	
	No Disciplinary Action - SOL Expired	2 (0%)		5 (1%)	5 (1%)	1 (0%)
	Retired/Resigned	11 (2%)	3 (1%)	4 (1%)	3 (0%)	2 (0%)

Concurrence

Non-Concurrence w/ Discipline

Non-Concurrence w/ Discipline

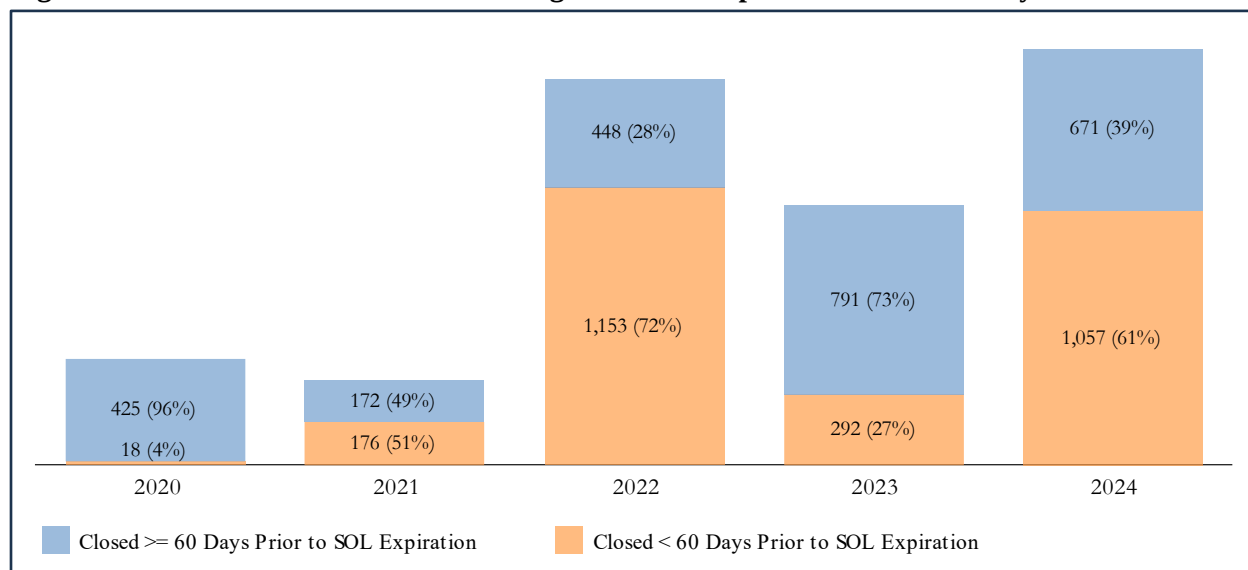
Not Adjudicated

STATUTE OF LIMITATIONS & NYPD’s “SHORT SOL” DISCIPLINARY DECISIONS

In 2024, DAO reported 890 cases as “No Disciplinary Action – Short SOL.” This means that the Department decided not to pursue disciplinary proceedings against an officer because DAO determined that the Board’s discipline recommendation was made too close to the expiration of the statute of limitations (SOL) period. Under Civil Service Law § 75(4), disciplinary proceedings for misconduct generally must be commenced within 18 months of the incident.³⁴

As shown in Figure 37, in 2024, the CCRB substantiated allegations against 1,057 officers in complaints that were closed within 60 days of the SOL expiration.

Figure 37: Officers with Substantiated Allegations in Complaints Closed < 60 Days Prior to SOL



In 2024, DAO reported “No Disciplinary Action – Short SOL” for 337 substantiated officers whose complaints were closed 60 or more days prior to the SOL expiration. Of these, 42 of the “Short SOL” decisions related to MOS with a substantiated Stop, Question & Frisk allegation.

Figure 38: “Short SOL” Decisions Returned by Days to SOL Expiration

	2020		2021		2022		2023		2024	
	MOS w/SQF Sub	All MOS w/Sub	MOS w/SQF Sub	All MOS w/Sub	MOS w/SQF Sub	All MOS w/Sub	MOS w/SQF Sub	All MOS w/Sub	MOS w/SQF Sub	All MOS w/Sub
03 <= Days < 05					0	8				
05 <= Days < 10			1	3	2	16	0	4		
10 <= Days < 20	0	0	3	7	23	149	12	68	2	17
20 <= Days < 30	0	0	1	7	3	70	6	33	5	49
30 <= Days < 40	0	0	0	4	9	64	0	26	15	128
40 <= Days < 50	0	0	2	9	8	31	3	21	14	194
50 <= Days < 60			0	2	0	6	2	24	27	165
60 <= Days < 90	0	0	0	0	0	0	8	85	42	337
90 <= Days	0	0	0	0	0	0	0	0	0	0
Total	0	0	7	32	45	344	31	261	105	890

³⁴ During the COVID crisis, Emergency Executive Orders issued by the Governor tolled most statutory time limits from March 20 to November 3, 2020.

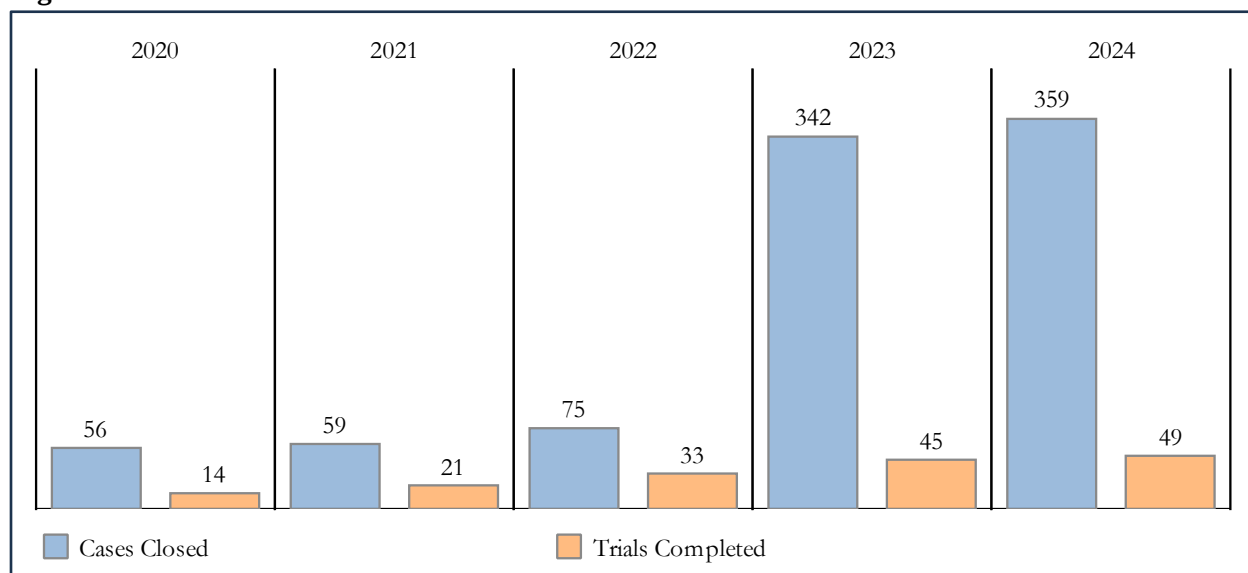
ADMINISTRATIVE PROSECUTION UNIT

When the Board substantiates a misconduct allegation(s) and recommends Charges and Specifications, in most instances the case is prosecuted by the CCRB's Administrative Prosecution Unit (APU) pursuant to a Memorandum of Understanding (MOU) between the CCRB and the NYPD.³⁵ The Police Commissioner may retain a case under the limited circumstances specified in paragraph 2 of the MOU.³⁶

The APU prosecutes cases before the NYPD Deputy Commissioner of Trials (DCT) or an Assistant Deputy Commissioner of Trials (ADCT). The member of service (MOS) can accept a plea offer in lieu of a trial. If the MOS goes to trial and is found guilty, the NYPD trial commissioner will recommend a penalty. The Police Commissioner may accept, reject, or modify any plea agreement, trial verdict, or penalty recommendation.

The APU treats each officer against whom an allegation is substantiated as a separate case.³⁷ A single CCRB complaint may generate more than one APU case depending on the number of officers against whom the Board recommends Charges and Specifications.

Figure 39: APU Trials Conducted and Cases Closed



³⁵ The full text of the MOU, which was signed in 2012 and became effective in 2013, can be found here: https://www1.nyc.gov/assets/ccrb/downloads/pdf/about_pdf/apu_mou.pdf.

³⁶ Paragraph 2 of the MOU states:

...in those limited instances where the Police Commissioner determines that CCRB's prosecution of Charges and Specifications in a substantiated case would be detrimental to the Police Department's disciplinary process, the Police Commissioner shall so notify CCRB. Such instances shall be limited to such cases in which there are parallel or related criminal investigations, or when, in the case of an officer with no disciplinary history or prior substantiated CCRB complaints, based on such officer's record and disciplinary history the interests of justice would not be served.

³⁷ The APU treats each officer's substantiated allegations as a separate "case." All APU data discussed in this Report uses the same terminology. While there may be trials or incidents that involve multiple officers, the word "case" should be interpreted as "case against a single officer."

APU CASE CLOSURES

APU cases can close in one of four ways: (1) trial; (2) plea bargain; (3) Police Commissioner retention; and (4) “Other.”

Cases are typically closed as “Other” when the incident has already been subject to a disciplinary review by the Department or the officer left the Department before the disciplinary process was complete.

Figure 40: APU Case Outcomes

		2020	2021	2022	2023	2024
Trial	Guilty after trial: Dismissal Probation	1 (2%)	1 (2%)			
	Guilty after trial: Forfeit Vacation >= CCRB Reqstd Days	2 (4%)	3 (5%)	2 (3%)	3 (1%)	8 (2%)
	Guilty after trial: Suspension 10 days / Forfeit vacation 10 days		1 (2%)		1 (0%)	
	Guilty after trial: Dismissal Probation < CCRB Reqstd			1 (1%)		
	Guilty after trial: Forfeit Vacation < CCRB Reqstd Days	8 (14%)	9 (15%)	3 (4%)	6 (2%)	20 (6%)
	Guilty after trial: Formalized Training					3 (1%)
	Guilty after trial: Suspension < CCRB Reqstd		1 (2%)			1 (0%)
	Trial verdict reversed by PC, Guilty: Forfeit vacation 5 days					1 (0%)
	Dismissed by Police Commissioner: No penalty			3 (4%)		3 (1%)
	Not guilty after trial: No penalty	10 (18%)	6 (10%)	10 (13%)	22 (6%)	30 (8%)
	Trial verdict reversed by PC, Not Guilty: No penalty	3 (5%)	4 (7%)	1 (1%)	1 (0%)	1 (0%)
Plea	Plea Renegotiated by PC: Forfeit vacation 1 days				1 (0%)	
	Plea Renegotiated by PC: Forfeit vacation 10 days				1 (0%)	
	Plea Renegotiated by PC: Forfeit vacation 3 days / Command Discipline A				1 (0%)	
	Plea Renegotiated by PC: Suspension 10 days				1 (0%)	
	Plea set aside, Comm. Disc. B: Forfeit vacation 10 days / Command Discipline B				1 (0%)	1 (0%)
	Plea set aside, Comm. Disc. B: Forfeit vacation 5 days / Command Discipline B				1 (0%)	
	Plea set aside, Comm. Disc. B: Forfeit vacation 6 days / Command Discipline B					3 (1%)
	Plea set aside, Formalized Training Command Discipline A / Formalized Training				1 (0%)	
	Plea set aside, Formalized Training Formalized Training				11 (3%)	2 (1%)
	Resolved by plea: Command Discipline B					1 (0%)
	Resolved by plea: Command Discipline B 10 days					1 (0%)
	Resolved by plea: Dismissal Probation				3 (1%)	1 (0%)
	Resolved by plea: Forced Separation / Forfeit vacation 26 days				1 (0%)	
	Resolved by plea: Forfeit vacation <= 10 days	10 (18%)	4 (7%)	7 (9%)	45 (13%)	101 (28%)
	Resolved by plea: Forfeit vacation > 10 days	4 (7%)	1 (2%)	7 (9%)	12 (4%)	20 (6%)
	Resolved by plea: Suspension			1 (1%)		
	Resolved by plea: Suspension 15 days / Forfeit vacation 15 days					1 (0%)
	Resolved by plea: Training/Instructions				7 (2%)	4 (1%)
Retained	Plea set aside, Comm. Disc. A: Command Discipline A			3 (4%)	8 (2%)	7 (2%)
	Plea set aside, Without discipline: No penalty			1 (1%)	8 (2%)	16 (4%)
	Retained, with discipline: Command Discipline (A/B)	3 (5%)	2 (3%)		5 (1%)	27 (8%)
	Retained, with discipline: Dismissal Probation		1 (2%)			
	Retained, with discipline: Forfeit vacation <= 10 days	2 (4%)		4 (5%)	4 (1%)	27 (8%)
	Retained, with discipline: Forfeit vacation > 10 days	1 (2%)				
	Retained, with discipline: Suspension	1 (2%)				
Other	Retained, with discipline: Training/Instructions	1 (2%)	1 (2%)		1 (0%)	1 (0%)
	Retained, without discipline: No penalty	1 (2%)	6 (10%)	4 (5%)	11 (3%)	35 (10%)
	Charges not served: No penalty		2 (3%)	2 (3%)	118 (35%)	2 (1%)
	Dismissed by APU: No penalty					2 (1%)
	Other: No penalty		1 (2%)		1 (0%)	6 (2%)
	Prev. adjudicated, with discipline: CD (A/B) / Training/Inst.	2 (4%)	1 (2%)	2 (3%)	2 (1%)	4 (1%)
	Prev. adjudicated, with discipline: Command Discipline B 5 days					1 (0%)
	Prev. adjudicated, with discipline: Dismissal Probation	2 (4%)	1 (2%)	1 (1%)		
	Prev. adjudicated, with discipline: Forfeit vacation <= 10 days	1 (2%)	4 (7%)		1 (0%)	1 (0%)
	Prev. adjudicated, with discipline: Forfeit vacation > 10 days	2 (4%)	1 (2%)		1 (0%)	2 (1%)
	Prev. adjudicated, without discipline: No penalty				1 (0%)	
	Retired / Resigned: Dismissal Probation			1 (1%)		
	Retired / Resigned: Retired/Resigned		9 (15%)	17 (23%)	26 (8%)	23 (6%)
	SOL Expired in APU: No penalty			1 (1%)	3 (1%)	3 (1%)
	SOL Expired prior to APU: No penalty			3 (4%)	32 (9%)	
	Terminal leave: No penalty			1 (1%)		
	Terminated: No penalty	2 (4%)			1 (0%)	

Concurrence	Non-Concurrence w/out Discipline
Non-Concurrence w/ Discipline	Not Adjudicated

CONCURRENCE AND DISCIPLINE RATES

The concurrence rate measures how often the Police Commissioner imposes the same (or more severe) discipline as recommended by the Board. The discipline rate measures how often the Police Commissioner imposes discipline of any kind on officers for whom the Board recommended discipline. Certain “Not Adjudicated” case outcomes, such as when a case was previously adjudicated or when the officer left the force prior to discipline being imposed, do not factor into the concurrence or discipline rate. See Figure 36 and Figure 40 for a complete breakdown of the case outcomes that factor into the concurrence and discipline rates.

Figure 41: Concurrence Rates

	2020			2021			2022			2023			2024		
	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%
Non-APU	465	417	90%	294	227	77%	704	293	42%	742	412	56%	1,254	332	26%
APU	47	17	36%	40	10	25%	47	17	36%	156	90	58%	315	143	45%
CCRB	512	434	85%	334	237	71%	751	310	41%	898	502	56%	1,569	475	30%

Figure 42: Discipline Rate

	2020			2021			2022			2023			2024		
	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%
Non-APU	465	442	95%	294	244	83%	704	316	45%	742	422	57%	1,254	340	27%
APU	47	33	70%	40	24	60%	47	28	60%	156	114	73%	315	230	73%
CCRB	512	475	93%	334	268	80%	751	344	46%	898	536	60%	1,569	570	36%

Due to the high number of cases returned as “No Disciplinary Action – Short SOL,” it is helpful to see what the concurrence and discipline rates would be with these cases removed from consideration.

Figure 43: Concurrence Rates Excluding “No Disciplinary Action – Short SOL”

	2020			2021			2022			2023			2024		
	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%
Non-APU	465	417	90%	262	227	87%	360	293	81%	481	412	86%	366	332	91%
APU	47	17	36%	40	10	25%	47	17	36%	156	90	58%	315	143	45%
CCRB	512	434	85%	302	237	78%	407	310	76%	637	502	79%	681	475	70%

Figure 44: Discipline Rates Excluding “No Disciplinary Action – Short SOL”

	2020			2021			2022			2023			2024		
	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%	Total	Cnt	%
Non-APU	465	442	95%	262	244	93%	360	316	88%	481	422	88%	366	340	93%
APU	47	33	70%	40	24	60%	47	28	60%	156	114	73%	315	230	73%
CCRB	512	475	93%	302	268	89%	407	344	85%	637	536	84%	681	570	84%

SECTION 5: MEDIATION

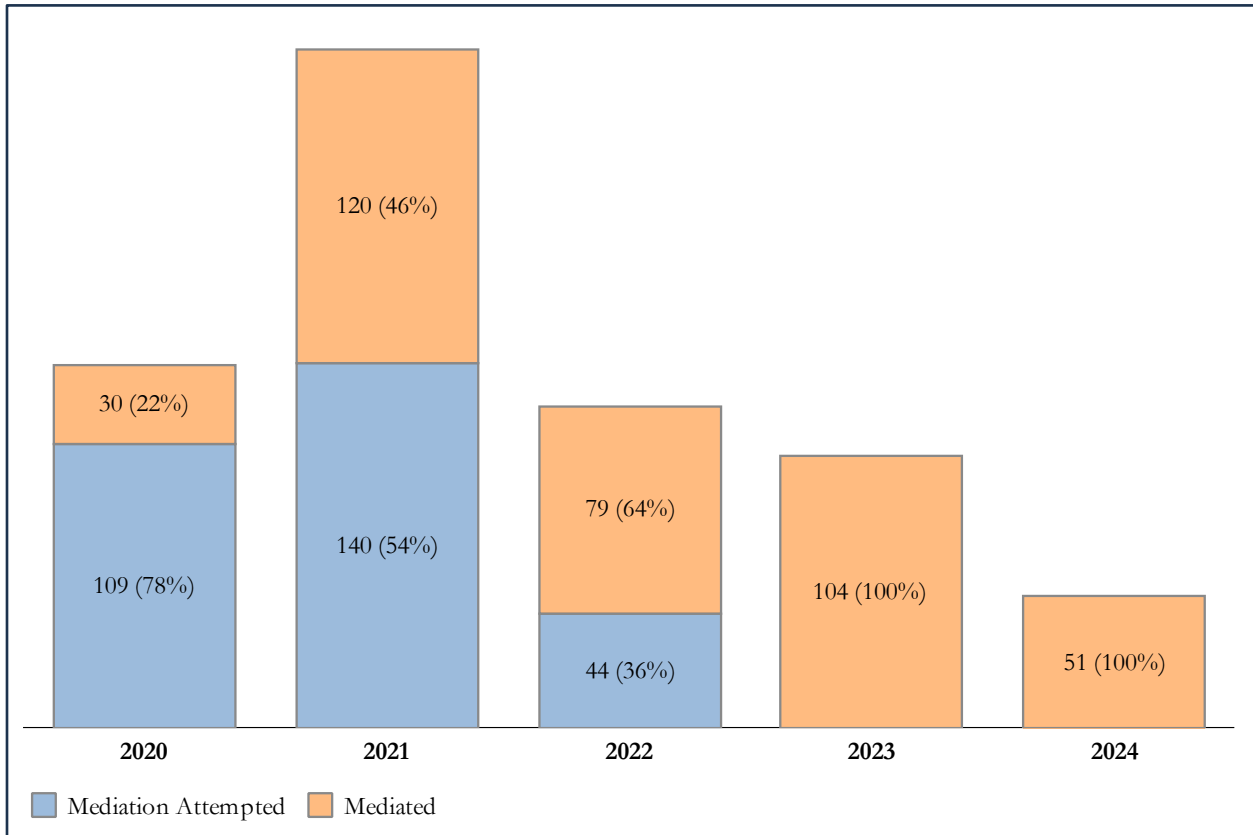
The New York City Charter mandates that the CCRB offer mediation as an option for resolving allegations of police misconduct. The goal of mediation is to allow civilians and officers the opportunity to voluntarily resolve the issues contained in the complaint by means of a face-to-face meeting with the assistance of a neutral mediator contracted by the CCRB. The mediator guides the session and facilitates a confidential dialogue between the complainant and the member of service about the circumstances leading to the complaint.

Mediation is not offered in all cases because some factors render a complaint unsuitable for the Mediation Program. These include allegations of serious physical injury or property damage, a pending criminal case or a civil lawsuit, or a concurrent Internal Affairs Bureau investigation.

Mediation is complainant-driven and voluntary; a case will only go to the Mediation Unit if the complainant wants to participate in mediation. Investigators are required to fully describe both the mediation process and the investigative process to complainants in mediation-suitable cases. After being provided with both options, the complainant chooses the process in which they want to participate. If the complainant selects mediation, the option is then presented to the officer. Mediations only take place when both the complainant and the officer voluntarily agree to mediate the complaint. Complainants reserve the right to have the case returned to the investigative process if they change their mind prior to mediation or are unsatisfied with the outcome of the mediation.

A mediation session ends when all parties involved agree that they have had an opportunity to discuss the issues in the case. In most mediated cases, the parties resolve the allegations raised in the complaint. After a completed mediation, the complaint is closed as “mediated,” meaning that there will be no further investigation and the officer will not be disciplined. If the mediation is not completed or is unsuccessful, the case returns to the Investigations Division for a full investigation.

Figure 45: Mediation Closures



“Mediation attempted” is a designation for a case in which both the officer and the civilian agree to mediate but the civilian either fails to appear twice for the scheduled mediation session without good cause or fails to respond to attempts to schedule a mediation session and the civilian does not request that the investigation resume.

Figure 46: Average Days to Successful Mediation

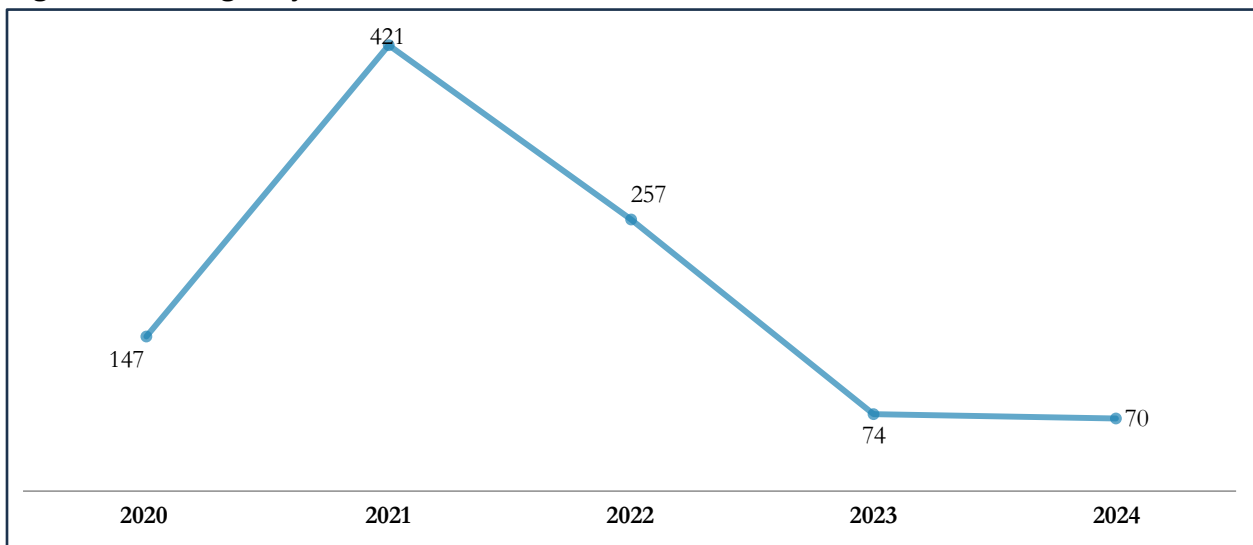


Figure 47: Percentage of Cases in which Mediation was Offered

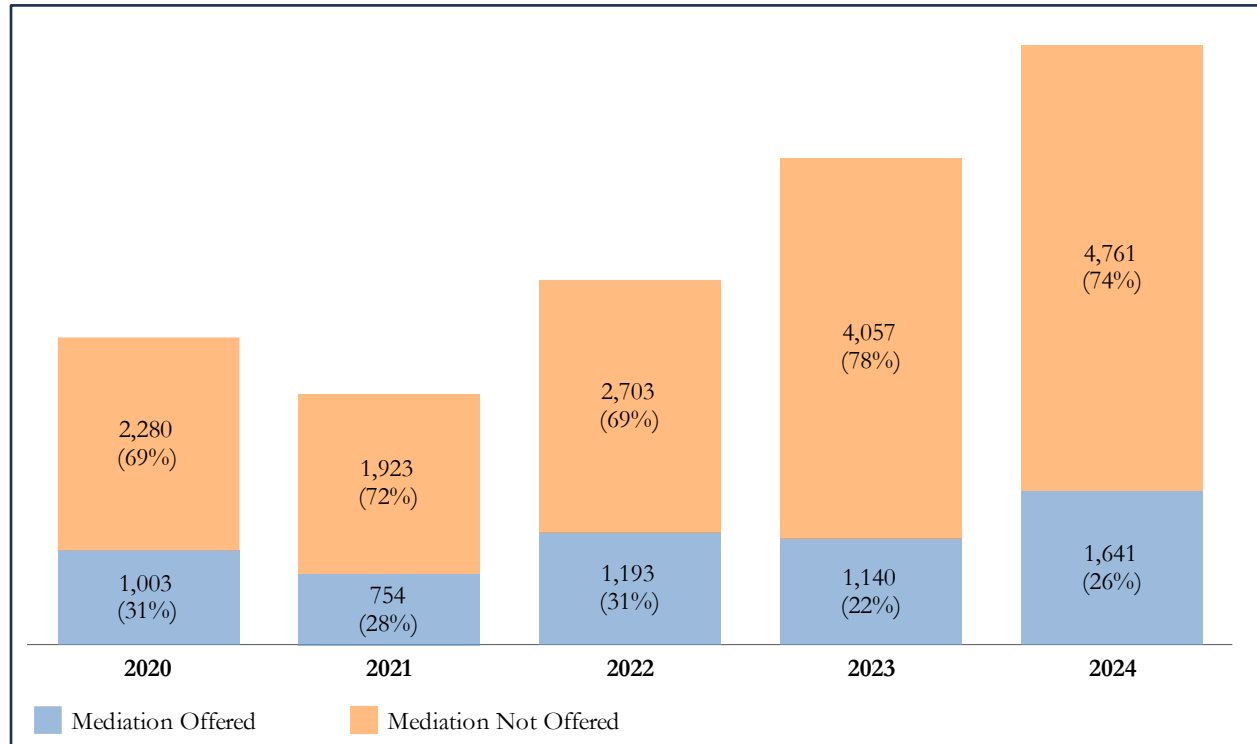


Figure 48: Number of Civilians and MOS that Accepted Mediation When Offered

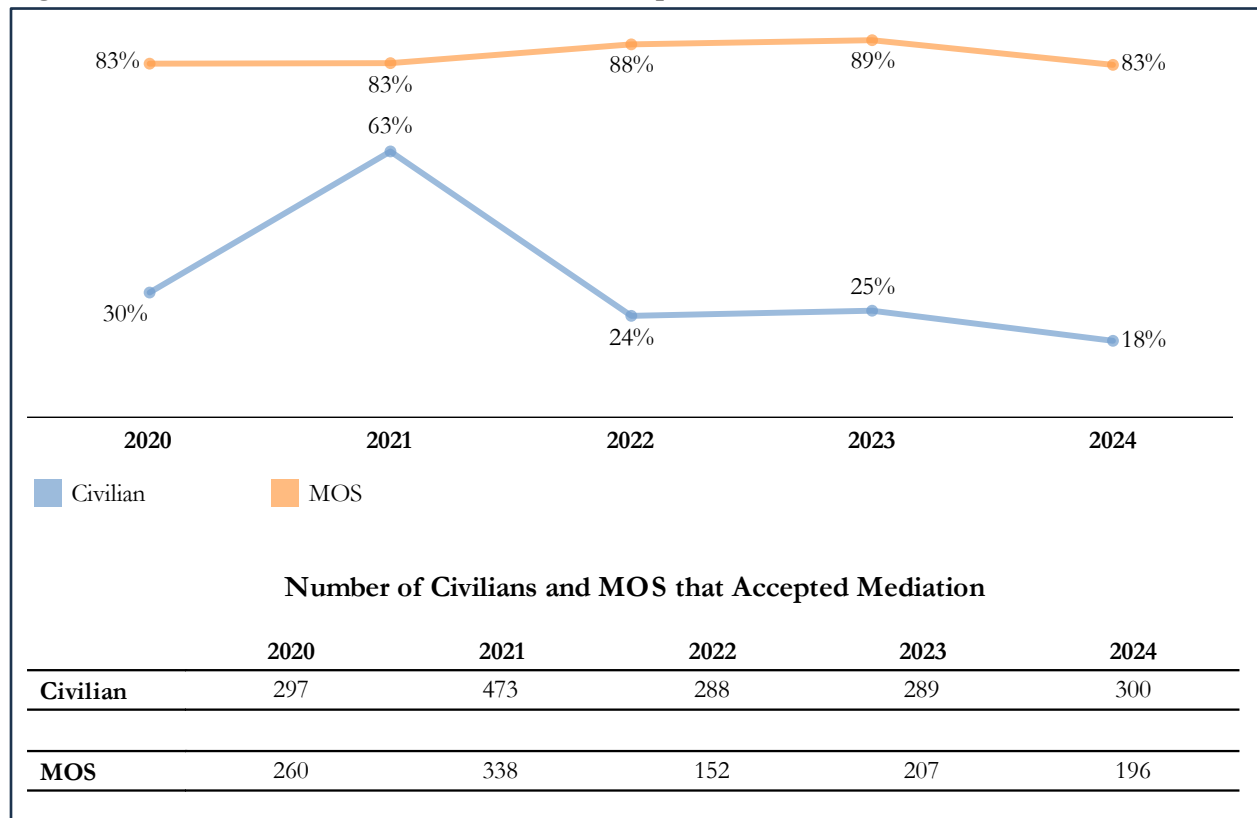
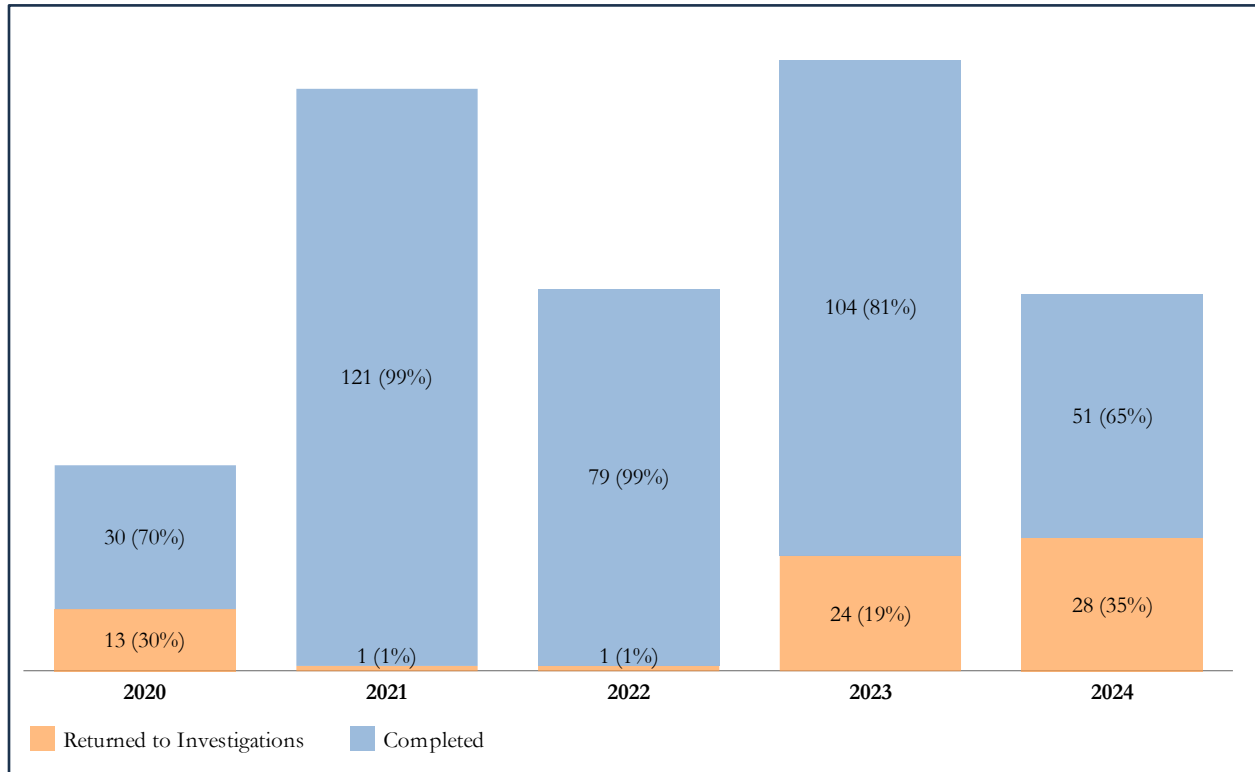


Figure 49: Mediation Completion Rate



SECTION 6: THE IMPACT OF BODY-WORN CAMERA FOOTAGE AND OTHER VIDEO EVIDENCE

In 2013, Judge Shira Scheindlin of the United States District Court for the Southern District of New York, presiding over *Floyd v. City of New York*,³⁸ found that the NYPD violated the Fourth and Fourteenth Amendments through its use of unconstitutional stop, question, and frisk practices. The court also found that the NYPD had a “policy of indirect racial profiling” that disproportionately targeted Black and Hispanic individuals for stops. As a result, the court ordered changes to certain policies, practices, and training curricula and appointed a monitor to oversee these reforms. The court also ordered a one-year Body-Worn Camera (BWC) pilot to determine whether BWCs were effective in reducing unconstitutional stops.

From December 2014 through March 2016, the NYPD conducted a small BWC experiment utilizing 54 volunteer police officers. After reviewing the results of this experiment, the NYPD began the larger-scale court-ordered pilot on a precinct-by-precinct basis starting in April 2017. By December 31, 2018, BWCs had been deployed to 15,826 members of service (MOS) across 81 commands.

Today, the NYPD’s BWC program is the largest in the United States with over 24,000 members of the Department equipped with BWCs. In 2024, the CCRB was able to collect BWC footage in 83% of all fully investigated complaints.

The availability of BWC footage greatly reduces the likelihood that a complaint will be closed as “Unable to Determine” or “Officer Unidentified.”

³⁸ *Floyd v. City of N.Y.*, 959 F. Supp. 2d 540 (S.D.N.Y. 2013).

Figure 50: Complaints With Video

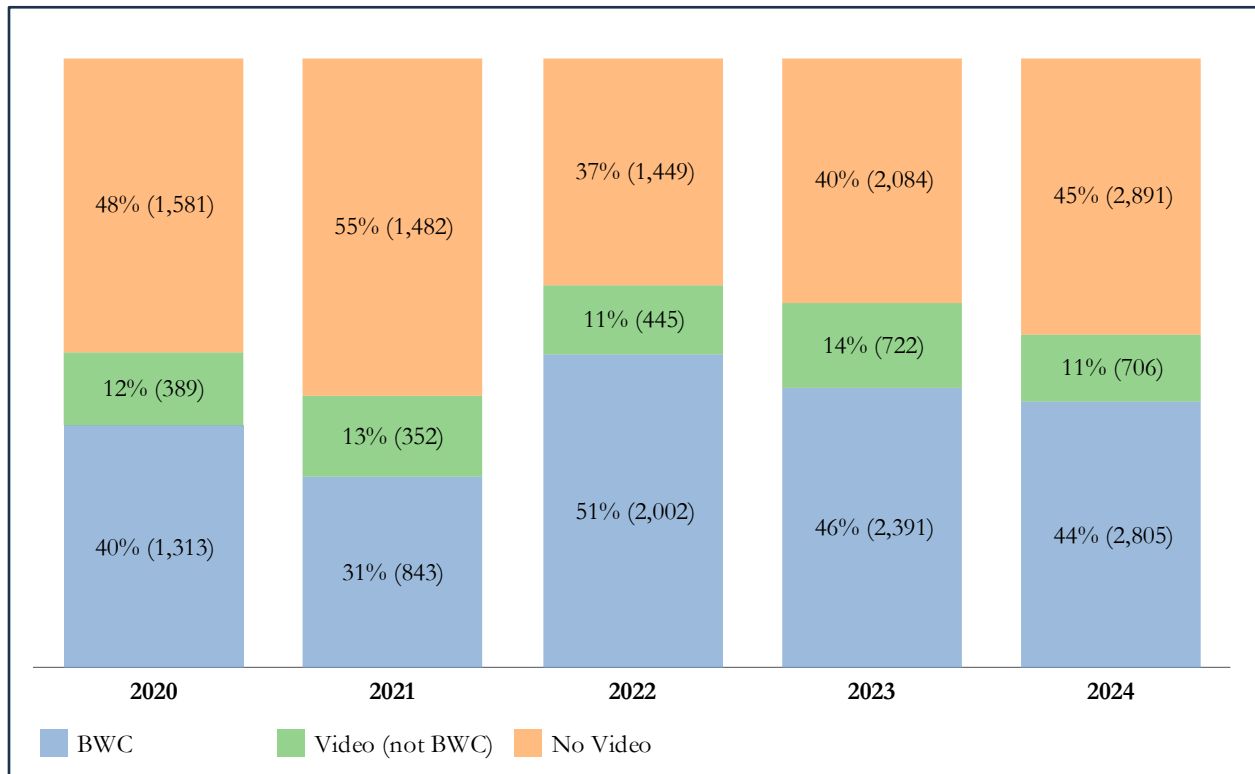


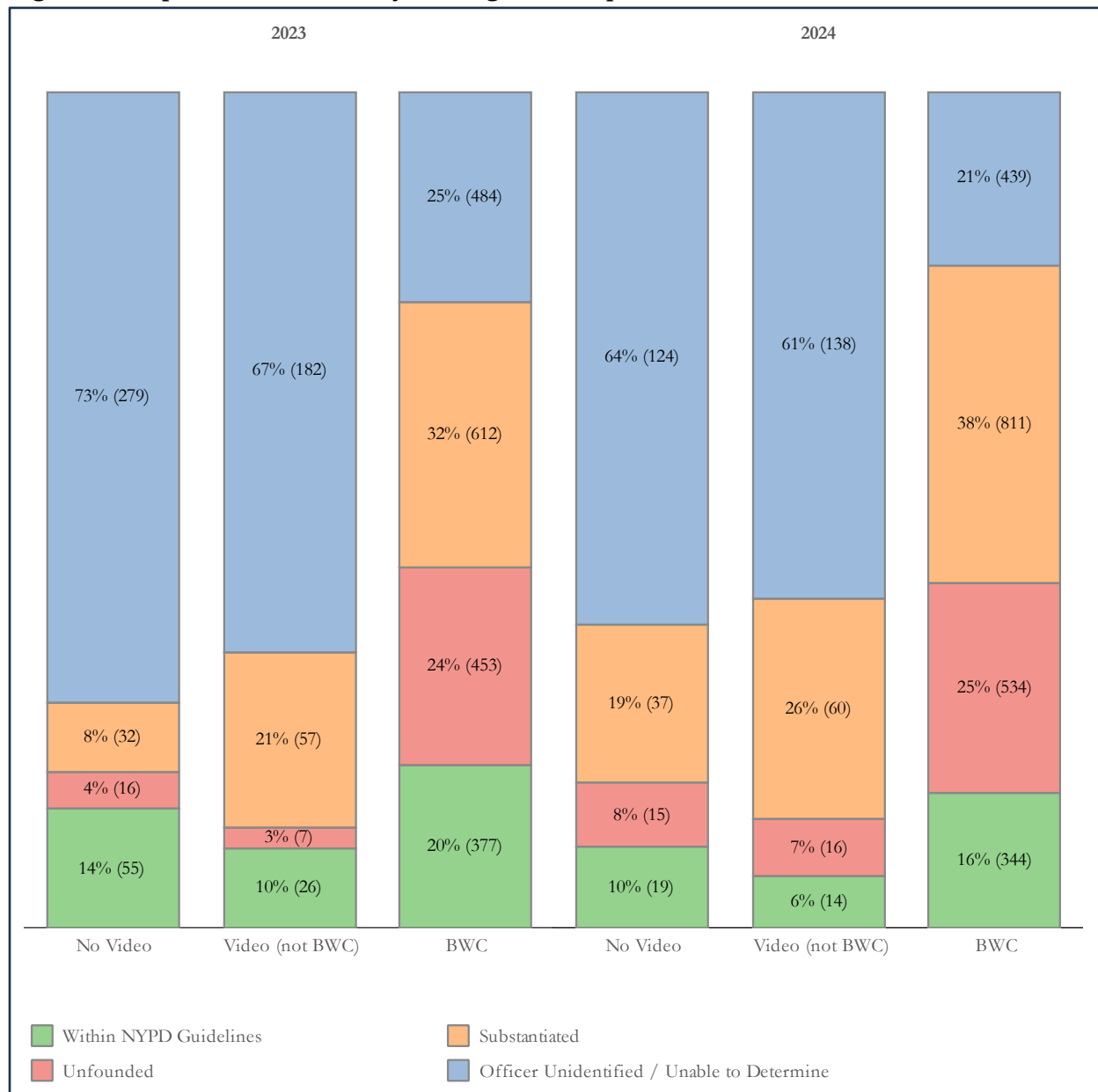
Figure 51: Full Investigations With and Without Video



THE IMPACT OF BWC AND OTHER VIDEO EVIDENCE

The availability of video evidence allows for a more robust interpretation of the circumstances surrounding a police-civilian encounter. Video evidence, especially BWC footage, can have a substantial impact on the outcome of a CCRB investigation, particularly the rate of allegations closed “on the merits” (i.e., Substantiated, Within NYPD Guidelines, or Unfounded).

Figure 52: Impact of Video on Fully Investigated Complaints Closed on the Merits



The availability of BWC evidence has a particularly significant impact on the Board’s ability to decide Discourtesy and Offensive Language allegations on the merits. In the absence of video, and any accompanying audio, the Board often has no means of resolving the conflicting statements of officers and complainants about what was said during an encounter.

Figure 53: Impact of Video on Allegation Closures on the Merits by FADO

FADO Type	Board Disposition	2022						2023						2024					
		No Video		Video (not BWC)		BWC		No Video		Video (not BWC)		BWC		No Video		Video (not BWC)		BWC	
Force	Officer UnId'd / Unable to Determine	102	79%	48	58%	832	29%	94	79%	60	50%	359	14%	61	74%	67	44%	465	15%
	Substantiated			8	10%	344	12%	2	2%	8	7%	133	5%			9	6%	186	6%
	Within NYPD Guidelines	20	16%	17	20%	1104	39%	16	13%	43	36%	1356	53%	19	23%	60	39%	1675	53%
	Unfounded	7	5%	10	12%	559	20%	7	6%	9	8%	700	27%	2	2%	16	11%	842	27%
Abuse of Authority	Officer UnId'd / Unable to Determine	699	68%	373	58%	1989	27%	565	70%	408	64%	1198	20%	307	65%	481	63%	1667	20%
	Substantiated	88	9%	159	25%	1702	23%	38	5%	105	17%	1226	20%	75	16%	157	20%	2245	27%
	Within NYPD Guidelines	224	22%	77	12%	2718	38%	174	22%	106	17%	2571	42%	76	16%	96	13%	2812	34%
	Unfounded	14	1%	31	5%	839	12%	25	3%	16	3%	1066	18%	14	3%	32	4%	1611	19%
Discourtesy	Officer UnId'd / Unable to Determine	173	91%	104	71%	413	30%	191	89%	142	88%	338	31%	71	81%	106	75%	359	26%
	Substantiated	15	8%	35	24%	480	35%	10	5%	13	8%	282	26%	5	6%	20	14%	370	27%
	Within NYPD Guidelines					224	17%	7	3%	1	1%	219	20%	2	2%	8	6%	291	21%
	Unfounded	2	1%	8	5%	238	18%	7	3%	6	4%	260	24%	10	11%	7	5%	362	26%
Offensive Language	Officer UnId'd / Unable to Determine	40	95%	43	77%	119	48%	53	95%	27	100%	86	41%	27	84%	36	95%	108	35%
	Substantiated	2	5%	11	20%	72	29%					49	23%	1	3%			81	27%
	Within NYPD Guidelines					3	1%					4	2%					8	3%
	Unfounded			2	4%	56	22%	3	5%			72	34%	4	13%	2	5%	108	35%

SECTION 7: OUTREACH AND INTERGOVERNMENTAL AFFAIRS

Over the past several years, the CCRB has sought to increase the scope and scale of its Outreach Program to raise awareness of the Agency’s mission and foster the public’s trust in its investigative process. The CCRB Outreach and Intergovernmental Affairs (IGA) Unit has a director, a deputy director, and a coordinator for each borough who acts as that borough’s main liaison for the Agency.

The Outreach and IGA Unit conducts presentations at schools, public libraries, tenant associations, advocacy organizations, cultural groups, religious organizations, community boards, and precinct community councils, among other groups, in all five boroughs. These presentations provide an overview of the CCRB complaint process, explain the basic legal contours of police encounters, and stress the importance of de-escalation when interacting with the police.

Figure 54: Number of Outreach Events

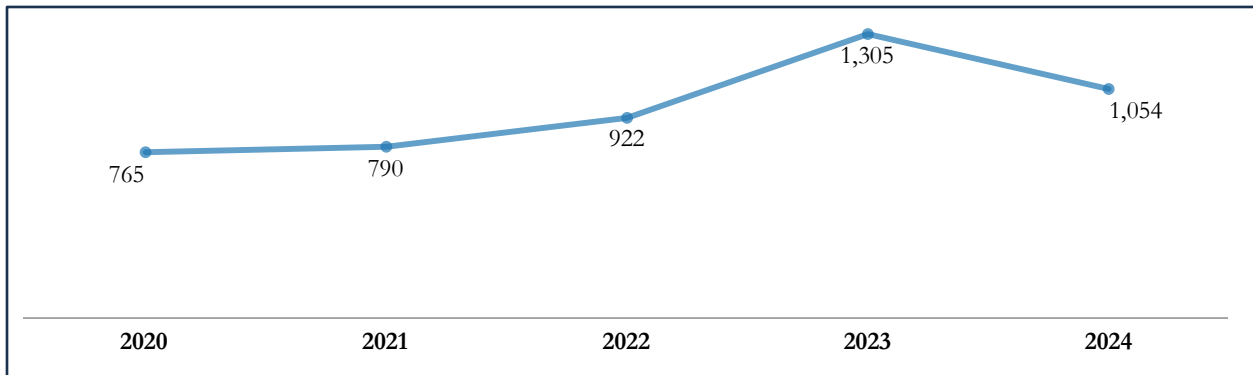


Figure 55: Outreach Events by Borough

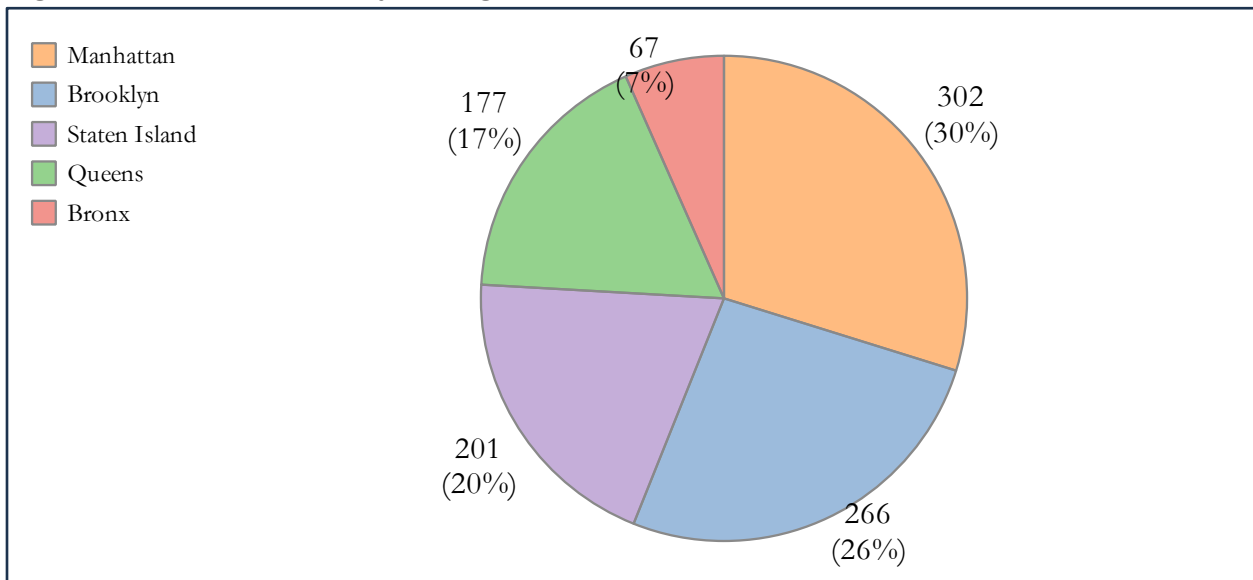
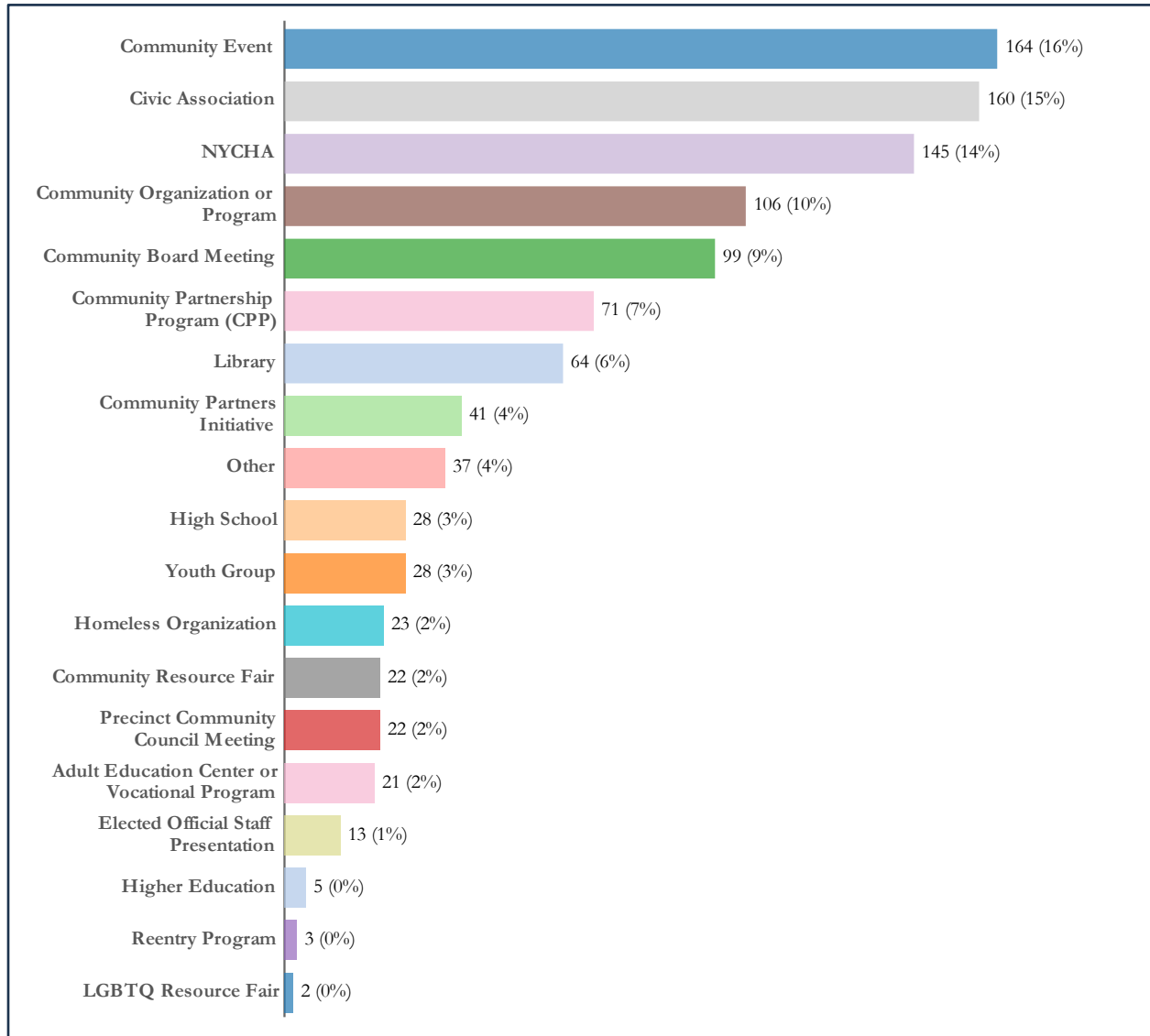


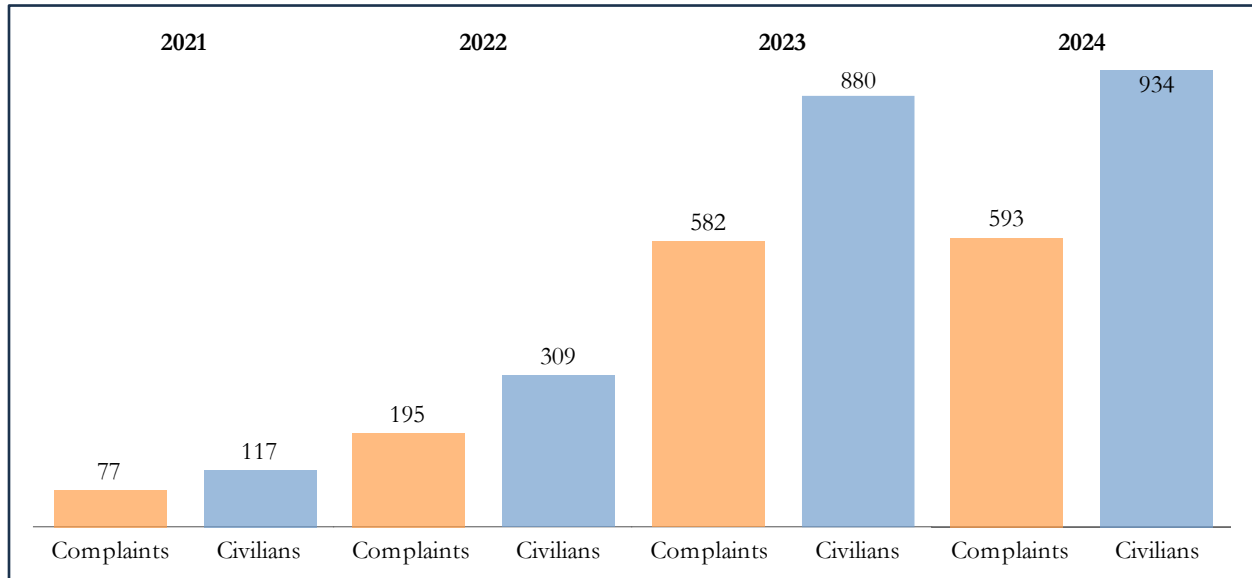
Figure 56: Outreach Events by Specific Organization Type



SECTION 8: CIVILIAN ASSISTANCE UNIT

Launched in 2021, the CCRB's Civilian Assistance Unit (CAU) provides services to civilians who require social and psychological support while navigating the Agency's investigative process.

Figure 57: Complaints Referred to CAU and Civilians Involved



In October 2022, the CCRB developed a system to categorize the types of services provided by CAU.

Figure 58: Specific Services Provided by CAU

	2023	2024
Assistance with restitution	1	
Criminal advocacy/accompaniment	1	
Crisis intervention		1
Emergency financial assistance	1	1
Individual advocacy	1,586	4,003
Individual counseling	252	414
Information about the criminal justice process	29	4
Information about victim rights	264	319
Interpreter services	5	2
Other legal advice and/or counsel		1
Referral to other services	193	277
Referral to other victim service programs	7	12
Therapy	4	
Vocational or Housing Intervention	1	1
Total	2,344	5,035

BACKGROUND OF THE CCRB AND GLOSSARY

The Charter of the City of New York established the CCRB and empowered it to receive and investigate complaints from members of the public concerning misconduct by members of the NYPD. The CCRB is required to conduct its investigations “fairly and independently, and in a manner in which the public and the police department have confidence.” Under the City Charter, the CCRB has jurisdiction to investigate the following categories of police misconduct: **Force**, **Abuse of Authority**, **Discourtesy**, and **Offensive Language**, and **Untruthful Statements**, collectively known as **FADO&U**. The CCRB notes **other possible misconduct** when it uncovers conduct by officers that is outside its jurisdiction but warrants the attention of the Department. Examples of other possible misconduct include failures to enter necessary information in memo books and failures to complete required documentation of an incident.

The **Board** consists of 15 Members, five appointed by the City Council, five appointed by the Mayor, three designated by the Police Commissioner, and one appointed by the Public Advocate. The Chair of the Board is jointly appointed by the Mayor and City Council Speaker. Under the City Charter, the Board must reflect the diversity of the City’s residents and all Members must live in New York City. No Member of the Board may have a law enforcement background, except those designated by the Police Commissioner, who must have had a law enforcement vocation. No Board Member may be a public employee or serve in public office. Board Members serve three-year terms, which can be, and often are, renewed.

The **Executive Director** is appointed by the Board and is the Chief Executive Officer, who is responsible for managing the day-to-day operations of the Agency and overseeing its more than 200 employees. The **Investigations Division** is responsible for investigating allegations of police misconduct and for making investigative findings. The most serious police misconduct cases, for which the Board has substantiated misconduct and recommended discipline in the form of Charges and Specifications, are prosecuted by the **Administrative Prosecution Unit (APU)**. The APU began operating in April 2013, after the CCRB and the NYPD signed a **Memorandum of Understanding** establishing the unit. APU attorneys are responsible for prosecuting and resolving cases before an NYPD Deputy Commissioner of Trials or Assistant Deputy Commissioner of Trials at One Police Plaza.

The Agency also includes a **Mediation** program that works to resolve less serious allegations between a police officer and a civilian. A complainant may **mediate** their case with the subject officer, in lieu of an investigation, with the CCRB providing a neutral, third-party mediator.

The **Outreach and Intergovernmental Affairs Unit** acts as a liaison with various entities and is responsible for intergovernmental relations, outreach presentations, and community events throughout the five boroughs.

Members of the public who file complaints of alleged misconduct by NYPD officers are referred to as **complainants**. Other civilians involved in the incident are categorized as **victims** or **witnesses**. Officers who are alleged to have committed acts of misconduct are categorized as **subject officers**, while officers who witnessed or were present for the alleged misconduct are categorized as **witness officers**. The **Intake Unit** receives complaints from members of the public, which can be filed in-person, by telephone, voicemail, online, or referred by another agency. When a **complaint** is filed, the CCRB assigns it a unique complaint identification number. The CCRB also refers to complaints as **cases**. A single complaint or case may contain multiple FADO&U **allegations**.

Allegations regarding improper entries, searches, or failures to show a warrant fall within the CCRB’s Abuse of Authority jurisdiction. The vast majority of complaints regarding improper entries, searches, or warrant executions involve only a single incident of entry or search, but some complaints involve multiple entries or searches (occurring on the same day or on different days). Each allegation is reviewed separately during an investigation.

During an **investigation**, the CCRB’s civilian investigators gather documentary and video evidence, and conduct interviews with complainants, victims, civilian witnesses, subject officers, and witness officers in order to determine whether the allegations occurred and whether they constitute misconduct. At the conclusion of the investigation, a **closing report** is prepared, summarizing the relevant evidence and providing a factual and legal analysis of the allegations. The closing report and investigative file are provided to the Board before it reaches a disposition. A panel of three Board Members (**Board Panel**) reviews the material, makes findings for each allegation, and if any allegations are substantiated, makes recommendations as to the discipline that should be imposed on the subject officers.

The **Disposition** is the Board’s finding of the outcome of a case. The Board is required to use a **preponderance of the evidence** standard of proof in evaluating cases. Findings **on the merits** result when the CCRB is able to conduct a full investigation and obtain sufficient credible evidence for the Board to reach a factual and legal determination regarding the officer’s conduct. In these cases, the Board may arrive at one of the following findings on the merits for each allegation in the case: **Substantiated**, **Within NYPD Guidelines**, or **Unfounded**. Substantiated cases are those where it was proven by a preponderance of evidence that the alleged acts occurred, and the acts constituted misconduct. Within NYPD Guidelines cases are those where it was shown by a preponderance of the evidence that the alleged acts occurred, but the acts did not constitute misconduct. Unfounded cases are those where there was a preponderance of the evidence that the alleged acts did not occur. **Unable to Determine** cases are those where the CCRB was able to conduct a full investigation, but there was insufficient evidence to establish by a preponderance of the evidence whether or not an act of misconduct occurred. In some cases, the CCRB is unable to conduct a full investigation or mediation and must close the case as **Unable to Investigate**.³⁹

³⁹ Fully investigated cases comprise complaints disposed of as Substantiated, Unable to Determine, Within NYPD Guidelines, Unfounded, Officers Unidentified, or Miscellaneous. Miscellaneous cases are those where an officer retires or leaves the Department before the Board receives the case for decision. Unable to Investigate cases are disposed of in one of the following ways: complainant/victim uncooperative, complainant/victim unavailable, and victim unidentified.

CHAPTER 18-A: CIVILIAN COMPLAINT REVIEW BOARD

§440. Public complaints against members of the police department.

(a) It is in the interest of the people of the city of New York and the New York city police department that the investigation of complaints concerning misconduct by officers of the department towards members of the public be complete, thorough and impartial. These inquiries must be conducted fairly and independently, and in a manner in which the public and the police department have confidence. An independent civilian complaint review board is hereby established as a body comprised solely of members of the public with the authority to investigate allegations of police misconduct as provided in this section.

(b) *Civilian complaint review board.*

1. The civilian complaint review board shall consist of 15 members of the public. Members shall be residents of the city of New York and shall reflect the diversity of the city's population. The members of the board shall be appointed as follows: (i) five members, one from each of the five boroughs, shall be appointed by the city council; (ii) one member shall be appointed by the public advocate; (iii) three members with experience as law enforcement professionals shall be designated by the police commissioner and appointed by the mayor; (iv) five members shall be appointed by the mayor; and (v) one member shall be appointed jointly by the mayor and the speaker of the council to serve as chair of the board.
2. No member of the board shall hold any other public office or employment. No members, except those designated by the police commissioner, shall have experience as law enforcement professionals, or be former employees of the New York city police department. For the purposes of this section, experience as a law enforcement professional shall include experience as a police officer, criminal investigator, special agent, or a managerial or supervisory employee who exercised substantial policy discretion on law enforcement matters, in a federal, state, or local law enforcement agency, other than experience as an attorney in a prosecutorial agency.
3. The members shall be appointed for terms of three years. The public advocate shall make the public advocate's first appointment to the board on or before May 6, 2020. The board member so appointed shall assume office on July 6, 2020. The mayor and the speaker of the council shall make their initial joint appointment to the board on or before May 6, 2020. The member so appointed shall serve as the board's chair and shall assume office on July 6, 2020.
4. Members of the board shall serve until their successors have been appointed and qualified. In the event of a vacancy on the board during the term of office of a member by reason of removal, death, resignation, or otherwise, a successor shall be chosen in the same manner as the original appointment within 60 days from the date such vacancy occurred. A member appointed to fill a vacancy shall serve for the balance of the unexpired term. During any period in which the office of the chair is vacant, the mayor shall select a member of the board to serve as interim chair until such vacancy has been filled.

(c) *Powers and duties of the board.*

1. The board shall have the power to receive, investigate, hear, make findings and recommend action upon complaints by members of the public or complaints initiated by the board against members of the police department that allege misconduct involving excessive use of force, abuse of authority including bias-based policing and racial profiling, discourtesy, or use of offensive language, including, but not limited to, slurs relating to race, ethnicity, religion, gender, sexual orientation and disability. The board shall also have the power to investigate, hear, make findings and recommend action regarding the truthfulness of any material official statement made by a member of the police department who is the subject of a complaint received or initiated by the

board, if such statement was made during the course of and in relation to the board's resolution of such complaint. The findings and recommendations of the board, and the basis therefor, shall be submitted to the police commissioner. No finding or recommendation shall be based solely upon an unsworn complaint or statement, nor shall prior unsubstantiated, unfounded or withdrawn complaints be the basis for any such finding or recommendation.

2. The board shall promulgate rules of procedure in accordance with the city administrative procedure act, including rules that prescribe the manner in which investigations are to be conducted and recommendations made and the manner by which, when a member of the public is the complainant, such member of the public is to be informed of the status of his or her complaint. Such rules may provide for the establishment of panels, which shall consist of not less than three members of the board, which shall be empowered to supervise the investigation of matters within the board's jurisdiction pursuant to this section, and to hear, make findings and recommend action on such matters. No such panel shall consist exclusively of members appointed by the council, or designated by the police commissioner, or appointed by the mayor.
3. The board, by majority vote of its members, may compel the attendance of witnesses and require the production of such records and other materials as are necessary for the investigation of matters within its jurisdiction pursuant to this chapter. The board may request the corporation counsel to institute proceedings in a court of appropriate jurisdiction to enforce the subpoena power exercised pursuant to this chapter, and the board itself may, subject to [chapter 17](#) of the charter, institute such proceedings. The board may, subject to any conditions it deems appropriate, delegate to and revoke from its executive director such subpoena authority and authority to institute proceedings.
4. The board shall establish a mediation program pursuant to which a complainant may voluntarily choose to resolve a complaint by means of informal conciliation.
5. The board is authorized, within appropriations available therefor, to appoint such employees as are necessary to exercise its powers, including but not limited to the power to initiate complaints in accordance with paragraph 1 of this subdivision, and fulfill its duties. The board shall employ civilian investigators to investigate all matters within its jurisdiction.
6. The board shall issue to the mayor and the city council a semi-annual report which shall describe its activities and summarize its actions. Such report shall include, for each investigation initiated pursuant to section [441](#), such investigation's date of initiation, current status and any date of completion or termination, a description of any investigative findings and recommendations set forth in a written statement of final determination and a description of any written reports from the police commissioner in response to a written statement of final determination.
7. The board shall have the responsibility of informing the public about the board and its duties, and shall develop and administer an on-going program for the education of the public regarding the provisions of this chapter.

(d) *Cooperation of police department.*

1. It shall be the duty of the police department to provide such assistance as the board may reasonably request, to cooperate fully with investigations by the board, and to provide to the board upon request records and other materials which are necessary for investigations undertaken pursuant to this chapter, except such records or materials that cannot be disclosed by law.
2. The police commissioner shall ensure that officers and employees of the police department appear before and respond to inquiries of the board and its civilian investigators in connection with investigations undertaken pursuant to this chapter, provided that such inquiries are conducted in accordance with department procedures for interrogation of members.

3. The police commissioner shall report to the board in writing on any action taken, including the level of discipline and any penalty imposed, in all cases in which the board submitted a finding or recommendation to the police commissioner with respect to a matter within its jurisdiction pursuant to this section. In any case substantiated by the board in which the police commissioner intends to impose or has imposed a different penalty or level of discipline than that recommended by the board or by the deputy commissioner responsible for making disciplinary recommendations, the police commissioner shall provide such written report, with notice to the subject officer, no later than 45 days after the imposition of such discipline or in such shorter time frame as may be required pursuant to an agreement between the police commissioner and the board. Such report shall include a detailed explanation of the reasons for deviating from the board's recommendation or the recommendation of the deputy commissioner responsible for making disciplinary recommendations and, in cases in which the police commissioner intends to impose or has imposed a penalty or level of discipline that is lower than that recommended by the board or such deputy commissioner, shall also include an explanation of how the final disciplinary outcome was determined, including each factor the police commissioner considered in making his or her decision.

(e) The provisions of this section shall not be construed to limit or impair the authority of the police commissioner to discipline members of the department. Nor shall the provisions of this section be construed to limit the rights of members of the department with respect to disciplinary action, including but not limited to the right to notice and a hearing, which may be established by any provision of law or otherwise.

(f) The provisions of this section shall not be construed to prevent or hinder the investigation or prosecution of members of the department for violations of law by any court of competent jurisdiction, a grand jury, district attorney, or other authorized officer, agency or body.

(g) 1. Beginning in fiscal year 2021 and for each fiscal year thereafter, the appropriations available to pay for the personal services expenses of the civilian complaint review board during each fiscal year shall not be less than an amount sufficient to fund personal services costs for the number of full-time personnel plus part-time personnel, calculated based on full-time equivalency rates, equal to 0.65 percent of the number of uniform budgeted headcount of the police department for that fiscal year, as determined consistent with published budgeted headcount documents of the office of management and budget. The calculation to determine the minimum appropriations for the personal services expenses of the civilian complaint review board pursuant to this paragraph shall be set forth in the preliminary expense budget, the executive expense budget, and the adopted budget.

2. Notwithstanding paragraph 1 and in addition to any action that may be undertaken pursuant to section [106](#), the appropriations available to pay for the personal services expenses of the civilian complaint review board may be less than the minimum appropriations required by paragraph 1 provided that, prior to adoption of the budget pursuant to section [254](#) or prior to the adoption of a budget modification pursuant to section [107](#), the mayor determines that such reduction is fiscally necessary and that such reduction is part of a plan to decrease overall appropriations or is due to unforeseen financial circumstances, and the mayor sets forth the basis for such determinations in writing to the council and the civilian complaint review board at the time of submission or adoption, as applicable, of any budget or budget modification containing such reduction.

(Am. L.L. 2019/215, 12/11/2019, eff. 12/11/2019 and 3/31/2020; Am. L.L. 2021/047, 4/25/2021, eff. 1/20/2022; Am. L.L. 2022/024, 1/9/2022, eff. 1/20/2022)

§ 441. Investigating past professional conduct by members of the police department.

- a. Definitions. As used in this section, the following terms have the following meanings:

Act of bias. The term “act of bias” means an act stemming from a specific incident:

- (i) that is motivated by or based on animus against any person on the basis of race, ethnicity, religion, gender, sexual orientation or disability, and
- (ii) that the board is empowered to investigate pursuant to paragraph 1 of subdivision c of section 440.

Board. The term “board” means the civilian complaint review board.

Covered entity. The term “covered entity” means the police department, the board, the commission on human rights, the department of investigation, a court of competent jurisdiction or any other officer or body designated by the board.

- b. 1. The board: (i) shall conduct an investigation of past conduct in the course of performance of official duties by a current or former member of the police department whom a covered entity has found, in a final determination reached after such member was afforded an opportunity to respond to the relevant allegations, to have engaged in a severe act of bias, regardless of whether such member was on or off duty when engaging in such act, if the date that such investigation commences would be less than five years after such final determination was made; and (ii) may conduct an investigation of past conduct in the course of performance of official duties by a current or former member of the police department whom a covered entity has found, in a final determination reached after such member was afforded an opportunity to respond to the relevant allegations, to have engaged in an act of bias other than a severe act of bias, regardless of whether such member was on or off duty when engaging in such act, if the date that such investigation commences would be less than five years after such final determination was made.
2. For the purposes of initiating such investigations, the board shall define what constitutes a severe act of bias and, in consultation with each covered entity, what constitutes a covered entity’s final determination that such a member engaged in an act of bias or severe act of bias, provided that off-duty conduct may be the basis for initiating such investigation only if (i) such conduct could have resulted in removal or discipline by the police department, (ii) the board reasonably believes such conduct has had or could have had a disruptive effect on the mission of the police department, and (iii) the police department’s interest in preventing actual or potential disruption outweighs the member’s speech interest.
3. Within 10 days after making or changing a definition made pursuant to paragraph 2 of this subdivision, the board shall communicate such definition or change to each covered entity and shall make such definition or change publicly available online.
4. If a covered entity that is an agency makes a final determination that such a member engaged in an act of bias or a severe act of bias, such covered entity shall promptly provide notice to the board in a time, form and manner designated by the board in consultation with such covered entity.
5. Within 120 days after the effective date of sections one through four of the local law that added this section, each covered entity that is an agency shall, to the extent practicable, provide the board with a written list of such members whom such covered entity has finally determined to have engaged in an act of bias or severe act of bias before such effective date and on or after January 1, 2016; provided that such list shall be provided in a form and manner, and shall include such additional information, as the board may require in consultation with such covered entity.
6. At least once every 4 months after the effective date of sections one through four of the local law that added this section, the board shall request from each covered entity that is not an agency, except a court with jurisdiction within the state of New York, information about final determinations made by such entity that such a member engaged in an act of bias or severe act of bias, including final determinations made on or after January 1, 2016.

7. The board shall consult with the law department to obtain information about final determinations by a covered entity that is a court with jurisdiction within the state of New York that such a member has engaged in an act of bias or severe act of bias, including final determinations made on or after January 1, 2016.
- c. The board shall determine the scope of past conduct in the course of performance of official duties by such member to investigate based on the member's professional rank and assigned roles and the nature of the member's act of bias. The board shall investigate all or a representative sampling of such member's past conduct within such scope beginning from the date of hire by the police department until and including, for a former member of the police department, the last day of employment by the police department, or, for a current member of the police department, the date of initiation of an investigation pursuant to this section.
- d. 1. Within 10 days after the board initiates such investigation, the board shall provide written notice to the member being investigated and to the relevant covered entity.
2. Within 10 days after the completion of such investigation, the board shall provide a written statement of final determination to the member being investigated. Such statement shall include (i) the investigation's details, when it was initiated and concluded, the identity of its subject and a summary of the materials reviewed by the board during the investigation; (ii) the board's investigative findings, including the identification of any threat to the safety of an individual or the public and whether the board found evidence of any additional past acts of bias committed in the course of performance of official duties; (iii) if applicable, any recommendations of the board for remedial action, including training, discipline, where consistent with section 75 of the civil service law, or both; and (iv) if applicable, a statement that the board has determined to terminate the investigation and an explanation why.
3. The board shall provide an opportunity for the member being investigated to answer in writing, within a time period established by rule, any findings or recommendations made by the board. If such member timely submits such an answer, the board shall consider it and determine whether to revise any such findings or recommendations in response.
4. Within 10 days after finalizing the written statement of final determination pursuant to paragraphs 2 and 3 of this subdivision, the board shall submit such written statement to the police commissioner, any other parties to whom notice was sent pursuant to paragraph 1 of this subdivision and any other appropriate agency or official as determined by the board. Within 120 days after receiving such written statement, the police commissioner shall report to the board in writing on any action taken or planned to be taken in response, including the level of discipline and any penalty imposed or to be imposed upon such member, as well as any other remedial action. If such action taken or planned to be taken differs from that recommended by the board, the police commissioner shall provide in such written report a detailed explanation for deviating from the board's recommendations and an explanation of how the final disciplinary or remedial decision was determined, including each factor the police commissioner considered in making such decision. If the police commissioner takes action in response to such written statement of final determination after such 120-day period, the police commissioner shall provide an updated version of such written report to the board within 30 days after taking such action.
- e. 1. The board may, subject to any conditions it deems appropriate, delegate to and revoke from its chair or executive director any responsibility or authority assigned by this section to the board.
2. The board may, subject to any conditions it deems appropriate, designate a third party to assist with any investigation conducted under this section. Any such third party shall keep confidential and is prohibited from disclosing except to the board any information it obtains in the course of such investigation, except as otherwise required by law.
- f. The board shall, in accordance with subdivisions b, c and d of this section, promulgate rules that further prescribe the manner in which the board is to conduct investigations, present findings,

make recommendations, provide notice and provide an opportunity for the member being investigated to be heard.

- g. This section shall not be construed to limit or impair the police commissioner's authority to discipline members of the police department at any time. Nor shall this section be construed to limit the rights of members of the department with respect to disciplinary action, including but not limited to the right to notice and a hearing, which may be established by any provision of law or otherwise.
- h. This section shall not be construed to prevent or hinder any investigation or prosecution undertaken by any covered entity.

(L.L. 2021/047, 4/25/2021, eff. 1/20/2022)

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The data in this report is as of 01/23/2025.

BOARD MEMBERS

INTERIM CHAIR OF THE BOARD: MAYORAL APPOINTEE

Dr. Mohammad Khalid

Dr. Mohammad Khalid is a dedicated community leader who boasts decades of civic involvement and a distinguished career in dentistry. Born in Peshawar, Pakistan, Dr. Khalid immigrated to New York City in 1972 at the age of 23. Dr. Khalid's dental practice in Eltingville, Staten Island has been a steadfast neighborhood institution since 1977. Dr. Khalid's commitment to his community shows through his participation in numerous civic organizations, including the Association of Pakistani Physicians of North America, the Iron Hills Civic Association of Staten Island, and Community Board 2. Dr. Khalid previously served on the Civilian Complaint Review Board from 2005-2014. Dr. Khalid is the Staten Island City Council Designee.

Dr. Khalid holds a Bachelor of Dental Surgery from Khyber Medical College, a Doctor of Dental Surgery from New York University and a Diploma in Orthodontics from the State University of New York.

MAYORAL APPOINTEES

June Northern

June Northern is a born and raised New Yorker based in Brooklyn. After her education and career brought her to Texas, she returned to New York in 2015 to work for Evolution Medical Communications. June has decades of experience in the healthcare and hospitality sectors: “I am honored to have been selected to serve on this prestigious board and have the opportunity to give back to my city. I look forward to working alongside my fellow board members to make New York City safer and fairer for everyone.”.

Ms. Northern received an Associate Degree from Austin Community College

John Siegal, Esq.

John Siegal is a partner in BakerHostetler, a national business law firm, where he handles litigation, arbitrations, and appeals for clients in the financial services, media, and real estate industries. Mr. Siegal’s practice also includes constitutional law, civil rights, Article 78, and other cases both for and against government agencies and authorities. Mr. Siegal’s public service experience includes working as an Assistant to Mayor David N. Dinkins and as a Capitol Hill staff aide to Senator (then Congressman) Charles E. Schumer. Throughout his legal career, Mr. Siegal has been active in New York civic, community, and political affairs. Mr. Siegal was appointed to the Board by Mayor Bill de Blasio.

J.D., New York University School of Law; B.A., Columbia College

Pat Smith

Patrick Smith joins the board with decades of experience across journalism, communications, public policy and New York City politics. Mr. Smith began his career in journalism at the Bucks County Courier Times and the Philadelphia Daily News before dedicating 12 years to the New York Post. At the New York Post, Smith served as Night City Editor, City Hall reporter, special assignment reporter and Brooklyn editor. From there, he went on to serve as the Public Affairs Director to then Brooklyn Borough President Howard Golden. In 1992, he advised Bill Clinton’s Presidential campaign on how best to message and campaign throughout Brooklyn. Mr. Smith then spent nearly 30 years at Rubenstein where he rose to Managing Director. While at Rubenstein, he led many public policy driven initiatives for their clients including founding the Quinnipiac University Poll and growing the NYC Veterans Day Parade to the largest in the nation. Mr. Smith retired in 2020 but remains a very active member of his community, namely as the President of the Battery Park City Homeowners Coalition and as a father and grandfather.

CITY COUNCIL APPOINTEES

Joseph A. Puma

Joseph Puma's career in public and community service has been exemplified by the various positions he has held in civil rights law, community-based organizations, and local government. As a paralegal with the NAACP Legal Defense and Education Fund, Puma handled cases involving criminal justice, voting rights, employment discrimination, and school desegregation. Prior to joining the NAACP LDF, he worked for over six years at the NYC Office of Management and Budget, where he served in roles in intergovernmental affairs, policy, and budget.

From 2003 to 2004, Puma served as a community liaison for former NYC Council Member Margarita López. Since 2007, he has been involved with Good Old Lower East Side (GOLES), a community organization helping residents with issues of housing, land use, employment, post-Sandy recovery and long-term planning, and environmental and public health. A lifelong City public housing resident, Puma currently serves as GOLES's Board President and has participated in national public housing preservation efforts. Mr. Puma was appointed to the Board by the Manhattan City Council.

M.A., Union Theological Seminary; Certificate, Legal Studies, Hunter College, City University of New York; B.A., Yale University

AU Hogan

AU Hogan is the Queens City Council Appointee. Mr. Hogan was born and raised in Queens and has spent over thirty years serving and investing in his local community. Between getting his BA at York College and his masters at Queens College, Mr. Hogan began his career working for NYC Parks and Recreation before pivoting to education. For the last ten years, Mr. Hogan has worked at Life Camp, a non-profit dedicated to providing youth and families that have been impacted by violence with the tools they need to stay in school and out of the criminal justice system. Mr. Hogan served as Assistant Executive Director and Chief Team Leader before taking on his current role as Chief of Streets. Through his work at Life Camp, Mr. Hogan has created a burgeoning community police partnership with the goal of improving public safety.

M.A., Queens College, B.A., York College

Herman Merritt

Herman Merritt is a lifelong New Yorker who has served the city throughout his career. Mr. Merritt worked for the Department of Education (DOE) for 36 years, first as a teacher, then an assistant principal and finally as an elementary school principal for 18 years. After leaving the DOE, Mr. Merritt joined the Council of School Supervisors and Administrators as their Political Director, where he is currently the Assistant Political Director.

Born and raised in Brooklyn, Mr. Merritt attended New York University on a Martin Luther King scholarship and has long considered himself an activist. He joined the DOE right after graduating, aspiring to reform the New York public education system. He is deeply proud of what he accomplished while working for the city and hopes to continue his activism by bringing a fair, impartial perspective to the board. He is excited to give his community a voice and help the CCRB gain awareness. Mr. Merritt was appointed to the board by the Brooklyn City Council.

Professional Diploma, City College of New York; M.A., New York University; B.A., New York University

Esmerelda Simmons, Esq.

Esmeralda Simmons is an accomplished lawyer and public servant who has spent decades fighting for human and civil rights on the federal, state, and municipal levels. Ms. Simmons founded the Center for Law and Social Justice at Medgar Evers College, a community-based racial justice advocacy center that focuses on legal work and research on civil rights and domestic human rights violations. Recently retired, she advocated for equity in public education, voting, policing, and the child welfare system as the Center's executive director for 34 years. Through the Center, Simmons provided community organizations with legal counsel and research assistance.

Before founding and directing the Center for Law and Social Justice, Ms. Simmons served as First Deputy Commissioner at the New York State Division of Human Rights, where she developed and led the implementation of policy in support of New Yorkers' human and civil rights, and as an Assistant Attorney General for the State of New York. In addition, she has served on several major public boards in New York City government, including the NYC Board of Education and the NYC Districting Commission.

Ms. Simmons also volunteers her skills and currently serves on the board of directors of UPROSE, a climate justice organization; the Council of Elders for African Cultural Heritage; and Little Sun People, an African-centered early childhood education center. In the recent past, she has served on several boards of national organizations: the Applied Research Center (now "Race Forward"); Vallecitos Mountain Retreat Center; the Child Welfare Fund; and the Poverty and Race Research Action Council (PRRAC).

Ms. Simmons has served as counsel or co-counsel on numerous major federal Voting Rights Act cases and election law cases and has secured victories before the United States Supreme Court. She is a member of the Metropolitan Black Bar and American Bar associations, Ile Ase, Inc., and the New York Voting Rights Consortium. Ms. Simmons was appointed to the Board by the Public Advocate.

J.D., Brooklyn Law School; B.A., Hunter College, City University of New York

POLICE COMMISSIONER DESIGNEES

Charlane Brown, Esq.

Charlane Brown is a lifelong New Yorker, born and raised in Queens. Following in her father's footsteps, she joined the NYPD in 1986 and served the people of New York for 26 years. While serving as a police officer, Ms. Brown obtained a law degree from New York Law School and rose up the ranks in the police department, eventually becoming one of the NYPD's first African American woman to serve as a Captain and Deputy Inspector. She was awarded a Fulbright Fellowship in police studies and, among other things, is an expert in internal investigations, police community relations, training, bias based policing and equal employment opportunity laws. Since retiring from the NYPD, Ms. Brown has continued to practice law and is a professor of criminal justice and law enforcement at Berkeley College. Ms. Brown has also contributed to numerous publications about counterterrorism and policing. She is a member of the NYC Bar Association, the NYS Bar Association, Linc Inc., and Alpha Kappa Alpha Inc.

Upon appointment to the Civilian Complaint Review Board, Ms. Brown said: "Joining the Civilian Complaint Review Board is the perfect opportunity for me to utilize all the skills I have acquired throughout my life, as an officer, a lawyer, a professor, a New Yorker and someone who has raised young boys of color in this great city. I want to thank Commissioner Sewell and Mayor Adams for once again giving me the opportunity to serve the people of New York."

Ms. Brown received a bachelor's degree from the City University of New York and a law degree from New York Law School.

Frank Dwyer

Frank Dwyer, a Brooklyn native and current Queens resident, consults with and teaches at police departments and educational institutions throughout the United States. In 1983, he joined the NYPD and served in Queens, Brooklyn, and Manhattan in a variety of assignments, including as a Police Academy Law Instructor, the Commanding Officer of the 7th precinct on the lower eastside of Manhattan, and the Commanding Officer of the Office of the Deputy Commissioner for Operations. He worked in lower Manhattan on 9/11 and in the months that followed. Retiring in 2012 at the rank of Deputy Inspector, Dwyer is currently pursuing a doctorate in Criminal Justice. He has consulted for several police departments including Newark, New Jersey, and Wilmington. He has also taught at or consulted to the following educational institutions: John Jay College of Criminal Justice, Teachers College, Boston College, Morgan State University, and the University of San Diego. Mr. Dwyer is a Police Commissioner designee to the Board appointed by Mayor Bill de Blasio.

M.S.W., Hunter College, City University of New York; M.St., Cambridge University; M.P.A., Harvard University; M.A., Fordham University; B.A., Cathedral College

Joseph Fox

Mr. Fox joined the NYPD in 1981, serving 37 years, rising to a three-star Chief. Mr. Fox spent the last seven years of his career in the NYPD as Chief of the Transit Bureau and invested much of his time in personal and professional development of executives and younger officers, as well as strengthening police community relationships throughout the city. Since retiring from the department, Joe currently serves on several boards and travels the country as an executive coach, life coach, leadership trainer, and public speaker.

Mr. Fox received a bachelor's degree from John Jay College and is a graduate of the Police Management Institute at Columbia University.

EXECUTIVE AND SENIOR STAFF

EXECUTIVE STAFF

Executive Director: Jonathan Darche, Esq.

General Counsel: Matt Kadushin, Esq.

Deputy Executive Director of Administration: Jeanine Marie

Chief of Investigations: Mercer (“Monte”) Givhan, Esq.

Senior Advisor to the Executive Director & Director of Intergovernmental Affairs: Yojaira Alvarez

SENIOR STAFF

Chief Prosecutor: Andre Applewhite, Esq.

Deputy Chief Prosecutor: Brian Arthur, Esq.

Deputy Chief Prosecutor: Claudia Avin, Esq.

Director of Human Resources: Jennelle Brooks

Deputy Chief of Special Operations: Lily Carayannis

Director of Racial Profiling and Bias Policing Unit: Darius Charney, Esq.

Director of Budget and Operations: Winnie Chen

Deputy Chief of Investigations: Heather Cook, Esq.

Director of NYPD Relations: Christopher DeNitto

Director of Information Technology: Carl Esposito

Director of Investigative Training: Jennifer Jarett

Director of Analytics & Application Development / Acting Director of Policy: Lincoln MacVeagh

Director of Case Management: Eshwarie Mahadeo

Deputy Chief of Investigations: Suzanne O’Hare, Esq.

Communications Advisor: Clare Platt

Director of Outreach: Jahi Rose

Director of Civilian Witness Assistant Unit: Baiana Turat, LCSW, CCM

Director of IT Infrastructure: Sorin Vatavu